

Data Protection & Information Security Agreement

This Data Protection & Information Security Agreement shall govern the relationship between XYZ [REDACTED] (“Company”) and [REDACTED] (“Vendor” or “Provider”) in connection with the Framework Services Agreement dated April 1, 2024 entered into between Company and Vendor (collectively, the “Agreement”). All capitalised terms not defined in this Data Protection & Information Security Agreement will have the meaning assigned to them in the Agreement, including any schedules and/or exhibits thereto. The purpose of this Data Protection & Information Security Agreement is to provide the data security or data protection requirements to be implemented by Vendor during the term of the Agreement and as long as XYZ Music Data (as defined below) is retained by Vendor (including after the termination or expiration of the Agreement). This Data Protection & Information Security Agreement is in addition to, and not in lieu of, any requirements in the Agreement. Vendor agrees to protect all XYZ Music Data regardless of the location, for example, either on premise or in a cloud environment, in accordance with the security requirements set forth herein. In the event of any conflict between this Data Protection & Information Security Agreement and any requirements in any applicable statements of work (each a “Statement Of Work”), ordering documents or the Agreement, the terms of this Data Protection & Information Security Agreement shall prevail.

1. Certain Definitions. For the purposes of this Data Protection and Information Security Agreement:

- a) “Account Data” means a credit or debit card holder’s credit or debit card account number, bank account number, name, service code, security code, card validation code or value (e.g., CVV number), expiration date, magnetic stripe data, PIN, PIN block, or password, which is (i) disclosed or furnished, in any form, by XYZ Music, its affiliates, agents or employees to Vendor in connection with Vendor’s performance of the Services, or (ii) collected, stored, processed, transmitted, accessed or used by Vendor in connection with Vendor’s performance of Services.
- b) “Authentication Standards” means user authentication to access XYZ Music Environments (as defined in Schedule 4) using one of the following security factors: (1) Cryptographic hardware device (FIDO2 device or smart card); and (2) One-time password (OTP) generated by a cryptographic hard token.
- c) “Data Controller” means a legal person which determines the purposes and means of Processing Personal Information.
- d) “Data Processor” means a legal person which Processes Personal Information on behalf of the Data Controller.
- e) “Data Protection Law” means applicable laws and regulations regarding the collection, use, storage, transfer, disclosure, or other processing of Personal Information, including but not limited to, European Data Protection Law (as defined below), US Privacy Law (as defined below), the Canadian Personal Information Protection and Electronic Documents Act (PIPEDA), the Argentine Personal Data Protection Law, Brazil’s General Data Protection Law, Chile’s Law for the Protection of Private Life no. 19.628 and its updates, Colombia Law No. 1581, Mexico’s Federal Law on the Protection of Personal Data, Peru law No. 29733, Uruguay’s Protection of Personal Data and Habeas Data no. 18.331, Costa Rica Laws No. 7975 and 8968 and any other jurisdictional laws regarding processing or cross-border transfers of Personal Information (e.g., those of Japan, Australia, and New Zealand).
- f) “Data Subject” has the meaning given under Data Protection Law.
- g) “Disaster Recovery Plan” shall have the same meaning as defined in Exhibit A.
- h) “Equipment” shall mean the XYZ Music Equipment and Vendor Equipment.

- i) “European Data Protection Law” means the GDPR, UK Data Protection Act 2018, the UK GDPR, the FADP and any associated or additional legislation in force in the European Economic Area, Switzerland and the United Kingdom as amended, replaced or superseded from time to time.
- j) “EU Personal Information” means the processing of Personal Information to which data protection legislation of the European Union, or of a Member State of the European Union or European Economic Area was applicable prior to its processing by Vendor.
- k) “FADP” means the Swiss Federal Act on Data Protection.
- l) “GDPR” means EU General Data Protection Regulation 2016/679 as amended, replaced or superseded from time to time.
- m) “Generally Accepted Industry Security Practices” means information security standards under the National Institute of Standards and Technology (“NIST”) SP 800-53 rev5 as found in <https://nvlpubs.nist.gov/nistpubs/SpecialPublications/NIST.SP.800-53r5.pdf>.
- n) “Incident” means, regardless of whether encrypted, (i) any adverse event or activity (observable occurrence) that threatens or may threaten (a) Vendor Systems, XYZ Music Systems or XYZ Music Data including an actual or potential accidental or unlawful violation, compromise or breach of the security of Vendor Systems, XYZ Music Systems or XYZ Music Data, (b) use of Vendor Systems, XYZ Music Systems or XYZ Music Data for purposes other than those intended under the Agreement, and (c) the confidentiality, integrity or availability of Vendor Systems, XYZ Music Systems or XYZ Music Data, (ii) disclosure of Personal Information by Vendor in violation of the Agreement or applicable laws pertaining to privacy, data protection or data security, or (iii) any other unauthorised, accidental or unlawful access, acquisition, disclosure or use of Personal Information that has occurred or may have occurred, including, without limitation, any unauthorised access of which Vendor is notified or suspects.
- o) “Interface”, when used as a noun, shall mean either a computer program developed by, or licensed to, XYZ Music or Vendor to (i) translate or convert data from a XYZ Music or Vendor format into another format used by Vendor at XYZ Music as a standard format, or (ii) translate or convert data in a format used by Vendor or a Third Party Vendor to a format supported by Vendor at XYZ Music or vice versa. “Interface”, when used as a verb, shall mean to operate as described above.
- p) “Object Code” shall mean the form of computer software resulting from the compiling, assembly, or other translation or processing of the Source Materials of such software by a computer into machine language or intermediate code, which is not convenient to human understanding of the program logic, but which is appropriate for execution or interpretation by a computer.
- q) “Personal Information” shall have the same meaning as “Persona Data” as defined in Exhibit A (Defined Terms).
- r) “Processing” has the meaning given under European Data Protection Law.
- s) “Protected Area” means:
 - i) in the case of EU Personal Information, the member states of the European Union and the Economic Area and any country, territory, sector or international organisation in respect of which an adequacy decision under Art.45 GDPR is in force;
 - ii) in the case of UK Personal Information, the United Kingdom and any country, territory, sector or international organisation in respect of which an adequacy decision under United Kingdom adequacy regulations is in force; and
 - iii) in the case of Swiss Personal Information, any country, territory, sector or international organisation which is recognised as adequate under the laws of Switzerland.
- t) “Provider Agents” shall have the same meaning as defined in Exhibit A.
- u) “Relevant Law” means:

- i) in the case of EU Personal Information, any legislation of the European Union, or of a Member State of the European Union or European Economic Area;
 - ii) in the case of UK Personal Information, any legislation of any part of the United Kingdom;
 - iii) in the case of Swiss Personal Information, any legislation of Switzerland; and
 - iv) in the case of Personal Information subject to any other Data Protection Law, any legislation in the same jurisdiction in which such Data Protection Law was adopted.
- v) “Services” means, in addition to its definition in the Agreement, and for purposes of this Data Protection & Information Security Agreement, the systems, processes or functions provided or managed by Vendor that involve access to XYZ Music Systems or collecting, storing, processing, transmitting, accessing or using XYZ Music Data.
- w) “Software” shall mean individually each, and collectively all, of the computer programs and software, licensed by XYZ Music or Vendor from a Third Party Vendor, or otherwise provided by Vendor or XYZ Music under the Agreement, including any: (i) embedded or re-marketed Third Party Vendor software or computer programs, (ii) Interfaces, (iii) Source Materials, or (iv) Object Code. Software shall include any and all revisions thereto, and any and all programs provided by a Third Party Vendor, Vendor, or XYZ Music in the future under the Agreement.
- x) “XYZ Music” shall have the meaning set forth in Exhibit A (Defined Terms).
- y) “XYZ Music Data” means, in addition to the definition set forth in Exhibit A (Defined Terms) of the Agreement, collectively and individually, any and all data, including without limitation, All data and information: (i) submitted to Vendor by or on behalf of XYZ Music, including data submitted by or relating to providers, members and customers of XYZ Music; (ii) obtained, developed, or produced by or on behalf of Vendor or Provider Agents in connection with the Agreement; and/or (iii) to which Vendor or Provider Agents have access in connection with the provision of the Services, including all Personal Data (“XYZ Music Data”) shall be and remain the property of XYZ Music. Vendor shall neither possess nor assert liens or other rights against, nor sell, assign, lease, or otherwise dispose of to third parties or commercially exploit, XYZ Music Data. No XYZ Music Data, or any part thereof, shall be sold, assigned, leased, or otherwise disposed of to third parties by Vendor or commercially exploited by or on behalf of Vendor. XYZ Music Data shall not be utilized by Vendor for any purpose other than that of rendering the Services under the Agreement. Vendor hereby irrevocably and perpetually assigns, transfers, and conveys to XYZ Music without further consideration all of its and their right, title, and interest in and to the XYZ Music Data. Upon request by XYZ Music, Vendor shall execute and deliver any financing statements or other documents that may be necessary or desirable under any Law to preserve, or enable XYZ Music to enforce, its rights hereunder with respect to the XYZ Music Data. For the avoidance of doubt, Vendor may not aggregate or commingle XYZ Music Data with the data of other customers.
- z) “XYZ Music Equipment” shall mean the hardware, machines, mobile devices, and other equipment owned, leased, or otherwise obtained by XYZ Music as of the Effective Date and utilized by Vendor to provide the Services.
- aa) “XYZ Music Systems” means XYZ Music’s (including its affiliates and subsidiaries) information systems, mobile devices, applications, databases, infrastructure, platforms, products, and networks.
- bb) “XYZ Music Service Locations” shall mean the premises occupied, owned, operated, or leased by XYZ Music from which Vendor may provide Services or to which Vendor provides the Services, as set forth in Exhibit F (XYZ Music Service Locations), as such Exhibit may be amended from time to time by XYZ Music upon written notice to Vendor.
- cc) “Source Materials” shall mean, with respect to Software, the source code of such Software and all related compiler command files, build scripts, scripts relating to the operation and maintenance of such Software, application programming interface (API), graphical user

- interface (GUI), object libraries, all relevant instructions on building the Object Code of such Software, and all Documentation relating to the foregoing.
- dd) “Standard Contractual Clauses” mean:
- i) in respect of EU Personal Information, the standard contractual clauses for the transfer of personal data to third countries pursuant to the GDPR, adopted by the European Commission under Commission Implementing Decision (EU) 2021/914 including Module Two of such clauses (Transfers Controller to Processor) (“EU Standard Contractual Clauses”);
 - ii) in respect of UK Personal Information, the International Data Transfer Addendum to the EU Commission Standard Contractual Clauses, version B1.0 issued by the UK Information Commissioner and laid before Parliament in accordance with s.119A of the Data Protection Act 2018 on 2 February 2022, as revised under section 18 thereof, found at <https://ico.org.uk/media/for-organisations/documents/4019539/international-data-transfer-addendum.pdf> (“UK SCC Addendum”); and
 - iii) in respect of Swiss Personal Information, the EU Standard Contractual Clauses, provided that any references in the clauses to the GDPR shall refer to the FADP, the term ‘member state’ must not be interpreted in such a way as to exclude data subjects in Switzerland from the possibility of suing for their rights in their place of habitual residence in accordance with clause 18(c) of the clauses and the clauses shall also protect the data of legal persons until the entry into force of the revised FADP.
- ee) “Swiss Personal Information” means Personal Information to which the FADP was applicable prior to its processing by Vendor.
- ff) “UK GDPR” means the GDPR as applicable as part of UK domestic law by virtue of section 3 of the European Union (Withdrawal) Act 2018 and as amended by the Data Protection, Privacy and Electronic Communications (Amendments etc.) (EU Exit) Regulations 2019 (as amended).
- gg) “UK Personal Information” means the processing of Personal Information to which data protection laws of the United Kingdom were applicable prior to its processing by Vendor.
- hh) “US Privacy Law” means the California Consumer Privacy Act as amended by the California Privacy Rights Act (Cal. Civ. Code §§ 1798.100 et seq.) (“CCPA”), the Colorado Privacy Act (Colo. Rev. Stat. §§ 6-1-1301 et seq.), the Connecticut Data Privacy Act (2022 S.B. 6), Florida Digital Bill of Rights (Fla. Stat. §§501.701 et seq.) Massachusetts’ Standards for the Protection of Personal Information of Residents of the Commonwealth (201 CM 17: M.G.L. c. 93H), Montana (2023 MT SB384), Oregon Consumer Privacy Act (2023 S.B. 619), Texas Data Privacy and Security Act (2023 H.B. 4), the Utah Consumer Privacy Act (Utah Code Ann. §§ 13-61-101 et seq.), the Virginia Consumer Data Protection Act (Va. Code Ann. §§ 59.1-571 et seq.), and laws and regulations in the United States of a similar subject matter, as amended or superseded from time to time, as of their respective effective dates.
- ii) “Third Party Vendor” shall have the same meaning as defined in Exhibit A.
- jj) “Threat” means any circumstance or event with the potential to adversely impact organisational operations (including mission, functions, image, or reputation), organisational assets, individuals, other organisations, etc. through an information system via unauthorised access, destruction, disclosure, or modification of information, and/or denial of service.
- kk) “Threat Information” means any information related to a Threat that might help an organisation protect itself against a Threat or detect the activities of a Threat actor.
- ll) “Vendor Equipment” shall have the same definition as “Provider Equipment” as set forth in Exhibit A (Defined Terms).
- mm) “Vendor Service Locations” shall have the same definition as “Provider Service Locations” as set forth in Exhibit A (Defined Terms).
- nn) “Vendor Personnel” shall have the same definition as “Provider Personnel” as set forth in Exhibit A (Defined Terms).

- oo) “Vendor Systems” means Vendor’s information systems, mobile devices, applications, databases, infrastructure, platforms, products, and networks (i) utilised to provide the Services, (ii) collecting, storing, processing, transmitting, accessing or using XYZ Music Data, or (iii) with access to, connection to, use of or otherwise interacting with XYZ Music Systems.

2. Personal Information Requirements.

- a) XYZ Music is and shall remain the Data Controller (or similar term under Data Protection Laws) of all Personal Information within the XYZ Music Data, and Vendor shall be the Data Processor (or similar term under Data Protection Laws) with regard to such Personal Information.
- b) Vendor hereby represents and warrants that it will comply with its obligations under all Data Protection Law in the Processing of Personal Information.
- c) Vendor acknowledges and agrees that it will be responsible for Processing Personal Information on behalf of XYZ Music only in the course of providing the Services and consistent with the Agreement, and only in accordance with XYZ Music's documented instructions and securing XYZ Music Data in accordance with the requirements set forth in this Data Protection & Information Security Agreement, unless Processing is required by Relevant Laws to which Vendor is subject, in which case Vendor will, to the extent permitted by Relevant Law, inform XYZ Music of that legal requirement before Processing such Personal Information.
- d) Vendor will notify XYZ Music immediately if, in Vendor’s opinion, any of XYZ Music’s instructions infringe Data Protection Law.
- e) Vendor will take reasonable steps to ensure the reliability of any employee, agent or contractor who may have access to the Personal Information, ensuring in each case that access is strictly limited to those individuals who need to know and/or access the relevant Personal Information, as strictly necessary for the purposes of the Agreement, and to comply with applicable Data Protection Law in the context of that individual’s duties, ensuring that all such individuals are subject to confidentiality undertakings or professional or statutory obligations of confidentiality.
- f) Vendor agrees that it shall assist XYZ Music with its compliance under all applicable Data Protection Law regarding the collection, use, storage, transfer, processing, duplication or disclosure, destruction, disposition, or other Processing of Personal Information. In particular, it shall assist XYZ Music in any obligations it has to respond to requests from Data Subjects exercising their rights under applicable Data Protection Law, to provide regulators with a record of processing, to report an Incident or to conduct impact assessments required under applicable law or prior consultations with supervising authorities.
- g) Taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of Processing as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons, Vendor will in relation to the Personal Information implement appropriate technical and organisational measures (including in accordance with the requirements of this Data Protection and Information Security Agreement) to ensure a level of security appropriate to that risk, including, as appropriate, the measures referred to in Article 32(1) of the GDPR.
- h) Vendor will assist XYZ Music, taking into account the nature of the processing:
 - i) by appropriate technical and organisational measures (including in accordance with the requirements of this Data Protection and Information Security Agreement) and in so far as is possible, in fulfilling XYZ Music's obligations to respond to requests from Data Subjects exercising their rights;
 - ii) in ensuring compliance with the obligations pursuant to Articles 32 to 36 of the GDPR, taking into account the information available to Vendor; and

- iii) by making available to XYZ Music all information which XYZ Music reasonably requests to allow it to demonstrate that the obligations set out in Article 28 of the GDPR relating to the appointment of processors have been met.
- i) Vendor agrees to protect all XYZ Music Data regardless of the location, for example, either on premise or in a cloud environment, in accordance with the security requirements set out in Schedule 3.
- j) Without prejudice to the Data Processor obligations of this Data Protection and Information Security Agreement, in the event that Vendor also acts as a Data Controller during the performance of the Services with regard to any Data Subject identified within the XYZ Music Data (“Data Controller Services”), the following additional requirements apply:
 - i) Vendor shall disclose to XYZ Music the existence and a description of the Data Controller Services within the applicable Sales Order or within a Summary Description (as defined herein);
 - ii) Vendor represents and warrants that the Data Controller Services are conducted in compliance with applicable law;
 - iii) Vendor is, and shall remain, responsible for providing notice to Data Subjects of the privacy practices for its Data Controller Services and obtaining valid consent where required under Data Protection Law, and shall provide XYZ Music with such privacy notice upon request; and
 - iv) Vendor shall apply the provisions of this Data Protection and Information Security Agreement to assist XYZ Music to comply with its obligations under Data Protection Law, including to respond to requests from individuals exercising their rights, to report Incidents, or to provide information to verify compliance with such laws.
- k) Vendor represents and warrants that Vendor will use Personal Data only in compliance with (i) the Agreement, (ii) XYZ Music’s then current privacy policy (available at www.XYZmusic.com), and (iii) all applicable Laws (including the Gramm-Leach-Bliley Act, Fair and Accurate Credit Transaction Act, and all other current and future Laws relating to spamming, privacy, security of personal information, and consumer protection).

3. Notification of Incident; Remedial Action.

- a) Notwithstanding any other obligations Vendor may have under applicable Law, Vendor agrees to notify XYZ Music within two (2) hours, by a telephone call and email to the XYZ Music Outsourcing Relationship Executive (or such other XYZ Music officer or official as XYZ Music may indicate in writing to Vendor during any Statement of Work Term), after Vendor’s discovery and validation of a potential or actual Incident.

Vendor shall also promptly provide feedback to XYZ Music (as described below) about any impact such potential or actual Incident may or will have on XYZ Music or any XYZ Music customers, potential customers, employees, former employees, or any other individuals. Vendor shall provide the following information during each such notification telephone call:

- (1) problem statement;
- (2) expected resolution time; provided, however, that if the resolution path is unknown at the time of the phone call, Vendor shall promptly advise XYZ Music that the path is unknown and shall promptly work to determine the path and notify XYZ Music promptly after any such determination is made; and
- (3) the name and telephone number of the Vendor representatives that XYZ Music can contact to obtain incident updates.

- b) In addition, upon request by XYZ Music, within forty-eight (48) hours of notification to XYZ Music of the Incident, Vendor will provide a written report via secure email to such XYZ Music Security Official describing in sufficient detail the Incident and Vendor's response and corrective actions. If requested, this written report will include:
- Detailed information on the Incident;
 - Date and time of Incident (if known; where necessary an estimate can be made), and of detection of Incident;
 - Circumstances of the Incident (e.g. loss, theft, copying);
 - Nature and content of the XYZ Music Data concerned;
 - Technical and organisational measures applied (or to be applied) by Vendor to the affected XYZ Music Data;
 - Relevant use of third parties (where applicable);
 - Summary of the circumstances that caused the Incident (including the physical location of the breach and the storage media involved); and
 - Other relevant information needed to assess the impact of the Incident.
- c) Assistance - During each Statement of Work Term, XYZ Music shall make resources from its security group available to assist with each Incident. In addition to the other obligations that Vendor may have under the Agreement, and subject to XYZ Music's continuing obligations as an owner or controller of data, Vendor shall, consistent with XYZ Music's reasonable instructions, if any, which will be based on XYZ Music's assessment of each Incident and the harm that XYZ Music reasonably anticipates may result therefrom: (i) assist in the identification of affected persons and relevant jurisdictions; (ii) allocate call center resources and training to manage inquiries; (iii) provide affected persons with such assistance (credit monitoring, etc.) as XYZ Music deems reasonable under the circumstances; (iv) assist XYZ Music with the delivery of electronic, hard copy, and telephone notifications to affected individuals, as provided to Vendor by XYZ Music; and (v) undertake a procedural review and audit to determine any appropriate corrective measures to avoid the recurrence of a similar situation, and promptly report to XYZ Music all corrective actions taken. If the Incident results from Vendor's acts or omissions, Vendor shall promptly provide the notification assistance described above at no cost to XYZ Music. In each other case, XYZ Music shall be responsible for any reasonable costs associated with Vendor's notification obligations described above.
- d) Remedial Action - If an Incident that results in whole or in part from the negligent or intentional act or omissions by Vendor or any of its affiliates, agents, employees or subcontractors gives rise to a need, at XYZ Music's request, to provide (i) notification to public authorities, individuals, or other persons, or (ii) undertake other remedial measures (including, without limitation, notice, credit monitoring services and the establishment of a call centre to respond to inquiries (each of the foregoing, a "Remedial Action")), Vendor will, at Vendor's cost, undertake such Remedial Action(s). The timing, content and manner of effectuating any notices will be determined by XYZ Music in its sole discretion. In no event will Vendor serve any notice of, inform a third party of, or otherwise publicise the Incident, without the prior written consent of XYZ Music.
- e) Sharing of Threat Information – If Vendor knowledge or awareness of Threat Information gives rise to a need, in Vendor's good faith judgement, to provide notification to XYZ Music of such information (i.e., the Threat Information indicates that XYZ Music Data, XYZ Music Systems, and/or Vendor Systems may be at risk), Vendor will share such Threat Information with XYZ Music. The timing, content and manner of effectuating any notices will be determined by Vendor in its reasonable discretion. Any security controls or precautions required to share such

Threat Information shall follow current standards and best practices in Threat information sharing (e.g., NIST SP 800-150). XYZ Music agrees to share Threat Information with Vendor under similar conditions and in a similar manner, as applicable, in its good faith judgment.

4. Subcontractors. If, consistent with and subject to the terms of the Agreement, Vendor intends to (a) provide access to any XYZ Music Data to any subcontractors or other third parties, or (b) use any subcontractors or other third parties to fulfil information technology or security functions, then it must notify XYZ Music sixty (60) days in advance and in writing (such notice to reasonably provide the identity of such party and its functions including, without limitation, details of the processing it performs or will perform) and obtain written approval from XYZ Music. Vendor will execute with each approved subcontractor formal written agreements that require confidentiality requirements and security controls employed by any such approved subcontractor to be at least as stringent and comprehensive as those provided in the Agreement including, without limitation, this Data Protection & Information Security Agreement and, where applicable, Article 28(3) of the GDPR and other requirements under applicable Data Protection Law. Vendor shall provide a list of approved subcontractors as at the date of the Agreement within the template provided as Annex III of the Standard Contractual Clauses in Schedule 2 below. Vendor will maintain a list of all its subcontractors with details of the date, time and form of approval by XYZ Music and a list of locations where XYZ Music Data is processed. Vendor shall remain fully liable to XYZ Music for the fulfilment of Vendor's obligations under this Data Protection & Information Security Agreement arising from a failure by a third party or subcontractor to fulfil its obligations under any written agreement or any applicable law. If XYZ Music refuses to consent to Vendor's appointment of a subcontractor or other third party on reasonable grounds relating to the protection of XYZ Music Data, then either Vendor will not appoint such subcontractor or third party, or XYZ Music may elect to suspend or terminate the Agreement.

5. Summary Description of the Personal Information. The parties acknowledge and agree that a summary description of the Personal Information shall be mutually agreed by the parties and attached to the Agreement (a "Summary Description"). A template Summary Description is attached to this Data Protection and Information Security Agreement as Schedule 1. In the event that the scope of the Personal Information processed by Vendor changes, the parties shall agree a revised Summary Description e.g., for a new Statement of Work. To the extent that a Summary Description cannot be agreed upon by the time the parties sign each Statement of Work because the information is unknown or unavailable at the time, the parties acknowledge and agree that the Summary Description must be mutually agreed upon in writing prior to the commencement of any Services. As a result, Vendor shall provide XYZ Music, as soon as possible or immediately upon XYZ Music's request, with a first draft of the Summary Description, which shall contain the following information: (a) the subject-matter of the processing or collection; (b) the duration of the processing or collection; (c) the nature and purpose of the processing or collection; (d) the types of Personal Information processed or collected; and (e) the categories of Data Subjects in relation to whom Personal Information is processed or collected. Upon receipt of Vendor's first draft, XYZ Music shall update and revise Vendor's first draft as necessary for Vendor's consideration. If further revisions are necessary, the parties shall exchange drafts for each other's consideration until the parties mutually agree upon the details of the Summary Description, at which point the parties shall sign the Summary Description, incorporating it by reference into the Statement of Work.

6. Cross-Border Personal Information Transfers.

- a) European Data Protection Laws. In the event that Vendor or its affiliates or contractors transfers, accesses or uses EU, Swiss or UK Personal Information outside of the applicable Protected Area, then Vendor and XYZ Music agree to comply with the obligations set out in the EU

- Standard Contractual Clauses as though they were set out in full in this Data Protection and Information Security Agreement, with XYZ Music as the ‘data exporter’ and Vendor as the ‘data importer’, with the parties’ signature and dating of the Agreement being deemed to be the signature and dating of the Standard Contractual Clauses and with the Annexes to the Standard Contractual Clauses being as set out in Schedule 2 to this Data Protection and Information Security Agreement. In addition:
- i) For the purposes of the EU Standard Contractual Clauses, the following shall apply:
 - 1) Clause 7 (Optional docking clause): Not applicable.
 - 2) Clause 9 (Use of sub-processors): Option 1 (prior specific authorisation) shall apply, and the specified time period shall be as set forth in this Data Protection and Information Security Agreement.
 - 3) Clause 11(a) (Redress): Optional provision shall not be applicable.
 - 4) Clause 17 (Governing law): Option 2 shall apply, such that the EU Standard Contractual Clauses shall be governed by the EU Member State in which the XYZ Music entity that is the data exporter is established, except, where such law does not allow for third party beneficiary rights, the law of Ireland; and
 - 5) Clause 18 (Choice of forum and jurisdiction): The courts of Ireland shall have jurisdiction.
 - ii) In the event that Vendor transfers Personal Information in reliance on the basis of one or more data transfer agreement(s) executed by Vendor, its applicable affiliate, contractor or subcontractor, and such data transfer and/or data transfer agreement is held to be invalid under European Data Protection Law by the European Commission or any supervisory authority, Vendor must promptly notify XYZ Music of such determination. XYZ Music may, at its discretion, require Vendor to (a) cease transfers of Personal Information or (b) promptly cooperate with XYZ Music to facilitate XYZ Music’s use of an alternative data transfer mechanism that will permit XYZ Music to continue to benefit from the Services in compliance with applicable law. If Vendor and XYZ Music are unable to promptly enter into such an alternative data transfer mechanism, then XYZ Music shall have the right to terminate the relevant Agreement in whole or in part without liability by providing Vendor written notice of termination which shall be effective as of the date of such notice of termination or such later date as determined by XYZ Music.
- b) United Kingdom Data Protection Laws. The UK SCC Addendum applies to the EU Standard Contractual Clauses as though they were set out in full in this Data Protection and Information Security Agreement. The parties shall deem the UK SCC Addendum executed as of the Effective date of this Data Protection and Information Security Agreement, but, as permitted by clause 17 of the UK SCC Addendum, the Parties agree to change the format of the information set out in Part 1 of the addendum so that:
- i) Table 1 of the UK SCC Addendum shall reflect the Exporter as Data Controller and the Importer as the Data Processor, the Key Contacts of each shall be as set forth in Annex I of the EU Standard Contractual Clauses, in Schedule 2 below;
 - ii) Table 2 of the UK SCC Addendum shall be appended to reflect the selection of modules and disapplication of optional clauses as noted in clause 6(a) above; and
 - iii) Table 3 of the UK SCC Addendum shall reflect the details of Schedule 2 of this Data Protection and Information Security Agreement.
- c) Non-EU/EEA Data Protection Laws. To the extent that applicable Data Protection Law in non-EU/EEA jurisdictions establish a geographical restriction on the cross-border transfer of Personal Information, and where the receipt, access, and/or other Processing of Personal Information by Vendor in connection with the Agreement is subject to such restrictions, the Parties agree that:

- i) the EU Standard Contractual Clauses, Module 2 (Transfer Controller to Processor) in the form described in this Data Protection and Information Security Agreement shall apply to such receipt, access, and Processing of such Personal Information by Vendor;
- ii) any provision in such EU Standard Contractual Clauses that specifically references jurisdictions in the EU/EEA shall be interpreted as applying to non-EU/EEA jurisdictions of the XYZ Music entities that are data exporters with respect to the Personal Information at issue; and
- iii) For the avoidance of doubt, the EU Standard Contractual Clauses, including the third-party beneficiary rights and other terms, generally shall not apply, except where the applicable Data Protection Law specifies a geographical restriction on the cross-border transfer of Personal Information.

7. California and Other US Privacy Laws.

- a) Vendor shall not “Sell” or “Share” any “Personal Information” in the XYZ Music Data, as such terms are defined in the California Consumer Privacy Act, as amended by the California Privacy Rights Act (Cal. Civ. Code §§ 1798.100 et seq.) (“CCPA/CPRA”) or in any rules, procedures, exceptions, guidelines and regulations adopted thereunder, or other applicable US Privacy Laws with materially similar requirements. Vendor shall not collect, retain, use, disclose, or otherwise process any such data outside of the direct business relationship between XYZ Music and Vendor, as such direct business relationship is described in the Agreement. Vendor shall not combine such data with Personal Information that it receives from or on behalf of another person or persons, or collects from its own interaction with individuals or with any other data, provided that the Vendor may combine such data to perform any business purposes permitted by the CCPA/CPRA.
- b) XYZ Music and Vendor agree that (i) any transfer of Personal Information which occurs in connection with the Agreement does not constitute a “Sale” or “Sharing” (as defined under the CCPA/CPRA or other US Privacy Laws) of Personal Information; and (ii) Vendor is deemed a “Service Provider” as defined by the CCPA/CPRA and/or a “Processor” as defined by other US Privacy Laws. Vendor shall apply the provisions of this Data Protection and Information Security Agreement to its obligations under US Privacy Laws, including without limitation any obligations it has to respond to requests from individuals exercising their rights under US Privacy Laws, to provide information to verify compliance with US Privacy Laws, to report Incidents, or to conduct data protection impact assessments.
- c) Vendor hereby certifies that it understands the restrictions and obligations set forth in clauses 7(a) and 7(b) above and that it will comply with them. If Vendor fails to meet the foregoing obligations, XYZ Music may terminate the Agreement without liability by providing Vendor written notice of termination which shall be effective as of the date of such notice of termination or such later date as determined by XYZ Music.

8. Additional Personal Information Requirements. Vendor will execute and adhere to, and will require any of Vendor’s affiliates or subcontractors approved by XYZ Music that process or access Personal Information to execute and adhere to, additional model contracts, agreements, contractual terms and conditions with XYZ Music or its affiliates as XYZ Music may instruct in writing from time to time that XYZ Music deems necessary, in its sole discretion, to address applicable Data Protection Laws.

9. Indemnification. Vendor acknowledges that XYZ Music is relying on Vendor’s representations, warranties and covenants contained in this Data Protection & Information Security Agreement for purposes of XYZ Music’s commitments and representations made in its privacy policy

and XYZ Music's other compliance requirements. Therefore, Vendor agrees, at its own expense, to defend or settle any claim against XYZ Music and its respective officers, directors, employees and agents (collectively, "XYZ Music Indemnitees") and fully indemnify and hold harmless the XYZ Music Indemnitees to the fullest extent permitted by law for any Losses incurred by any XYZ Music Indemnitee to the extent that the Losses are caused by, relate to, or arise out of any breach of said representations, warranties and covenants by Vendor. Notwithstanding the foregoing, this clause 9 does not in any way purport to exclude or limit a Data Controller's or a Data Processor's liability arising under Data Protection Law from a relevant data protection authority

10. Termination; Term; Survival. If Vendor breaches any material obligation of this Data Protection & Information Security Agreement, then XYZ Music shall have the right to terminate the Agreement without liability by providing Vendor written notice of termination which shall be effective as of the date of such notice of termination or such later date as determined by XYZ Music. Vendor shall assist in transitioning the Services to a new vendor, and XYZ Music shall only be responsible for fees and costs as set forth in the Agreement or applicable Statement Of Work for such assistance. The provisions of this Data Protection & Information Security Agreement will become effective as of the Effective Date and will continue in full force and effect until (a) Vendor returns any and all XYZ Music Data to XYZ Music, or (b) Vendor complies with the provisions of Section I(D) of Schedule 3 below as such provisions relate to the destruction of XYZ Music Data. Notwithstanding the foregoing, the provisions of clause 9, this clause 10, and Section I of Schedule 3 of this Data Protection & Information Security Agreement will survive the expiration or earlier termination of the Agreement, as well as any provisions which, by their nature, should survive expiration or earlier termination of the Agreement.

11. Right to Audit. XYZ Music, or its designee, upon 20 business days' prior notice, have the right at any reasonable time to enter any premises at which the Services, or any part thereof, are performed, for the purpose of inspecting, auditing, and determining whether the Information Security Program is consistent with terms herein, whether the obligations on Vendor under this Data Protection & Information Security Agreement are met, and whether the Information Security Program has been adequately implemented to ensure the security of XYZ Music Data. During any such audit or inspection, Vendor will (and will cause its affiliates and its and their agents, contractors and subcontractors to): (i) permit XYZ Music or its designee to observe the operations of Vendor (and its affiliates, its and their agents, and its contractors and subcontractors) and to interview their respective relevant personnel in connection with the Services, and (ii) give XYZ Music, or its designee, access to all records, in whatever form maintained, relating to the provision of the Services, and access to all Vendor Systems used by Vendor (its affiliates, or its or their agents or contractors or subcontractors, as applicable) in performing the Services, as reasonably necessary. Such records will include, without limitation, the results of tests and audits conducted in accordance with this Data Protection & Information Security Agreement. If Vendor's Information Security Program or its implementation does not comply with the terms herein or otherwise has a deficiency, Vendor agrees (if it has not already done so prior to the Effective Date) to provide XYZ Music within thirty (30) days of XYZ Music issuing its findings to Vendor, with a plan for corrective action, including a target date to implement the corrective action. Vendor will provide the corrective action plan to XYZ Music for its approval. While Vendor implements corrective actions, Vendor will provide XYZ Music with on-going progress reports until the deficiencies are corrected.

The above right to audit will be understood as being without prejudice to any obligation on Vendor to audit that may be established herein or by any applicable laws and regulations.

IN WITNESS WHEREOF, THE PARTIES HAVE AGREED TO THE FOREGOING AS OF APRIL 1 2024 (the “Effective Date”).

XYZ MUSIC ENTERTAINMENT

**ABC GLOBAL SERVICES (UK)
INTERNATIONAL LIMITED**

 DocuSigned by:



DATE: 4/1/2024 _____

DATE: 3/30/2024 _____

SCHEDULE 1

SUMMARY OF PERSONAL INFORMATION PROCESSING

1	Subject matter of the processing	Financial and accounting data processing, royalties, global digital business and content protection services.
2	Duration of the processing and retention period of Personal Information	The Personal Information will be processed during the term of the relevant Agreement, including as required during the provision of any termination assistance services. The Personal Information shall be returned or deleted by Vendor thereafter.
3	Nature and Purpose of the processing	The Personal Information described below will be processed by Vendor in the course of providing Services to XYZ Music/and/XYZ Music affiliates: Financial and Accounting data processing, royalties, global digital business and content protection services.
4	Types of Personal Data processed	The Personal Information includes the following data fields: Names; Email addresses; Business contact details such as employment address, telephone number, email address, work ID/username; Bank account information; and Any other Personal Information incidentally processed during routine use of the Services.
5	Categories of Data Subjects in relation to Personal Data Processed	XYZ Music and XYZ Music Affiliate: • Employees • Contractors • Vendors • Customers

**SCHEDULE 2:
ANNEXES TO THE STANDARD CONTRACTUAL CLAUSES (PROCESSORS)**

Annex I of the Standard Contractual Clauses

A: LIST OF PARTIES

Data exporter(s):

1. **Name:** Company (as defined in this Data Protection & Information Security Agreement) and/or Company's affiliate as may be referenced in a subsequent Statement Of Work (as applicable).

Address: As provided in the Agreement or Statement Of Work (as applicable).

Contact person's name, position and contact details: Privacy@XYZMusic.com, unless a privacy point of contact is provided in the Agreement and/or Statement of Work.

Activities relevant to the data transferred under these Clauses: Performance of the Services under the Agreement.

Signature and date: As executed with this Data Protection and Information Security Agreement (or as executed with the relevant Statement Of Work, if applicable).

Role (controller/processor): controller.

And

Data importer(s):

1. **Name:** Vendor, as set forth in this Data Protection and Information Security Agreement or the Agreement, as applicable.

Address: As provided in the Agreement.

And

Name: ABC Global Services Private Limited

Address: Gate No 4, Plant 10 / 11 Godrej & Boyce Complex, Pirojshanagar, LBS Marg, Vikhroli (West), Mumbai, Maharashtra, 400079, India

And

Name: ABC Global Services (Romania) S.R.L.

Address: West Gate Park, H5 Building, 2nd Floor, 24 Preciziei Boulevard, 6th District, Bucharest, Romania

Contact person's name, position and contact details: As provided in the Agreement.

Activities relevant to the data transferred under these Clauses: Performance of the Services under the Agreement.

Signature and date: As executed with this Data Protection and Information Security Agreement (or as executed with the relevant Statement Of Work).

Role (controller/processor): processor.

B: DESCRIPTION OF TRANSFER

MODULE TWO: CONTROLLER TO PROCESSOR

Categories of data subjects whose personal data is transferred: As set out in the Summary Description in Schedule 1 above.

Categories of personal data transferred: As set out in the Summary Description.

Sensitive data transferred (if applicable) and applied restrictions or safeguards that fully take into consideration the nature of the data and the risks involved, such as for instance strict purpose limitation, access restrictions (including access only for staff having followed specialised training), keeping a record of access to the data, restrictions for onward transfers or additional security measures: As set out in the Summary Description.

Frequency of transfer (e.g. whether on a one-off or continuous basis): Throughout the course of providing the Services, or as set out in the Summary Description.

Nature of the processing/ processing operations: As set out in the Summary Description.

Purpose(s) of the data transfer and further processing: As set out in the Summary Description.

The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period: As set out in the Summary Description.

For transfers to (sub-) processors, the subject matter, nature and duration of the processing: As set out in the Summary Description and Annex III, as applicable.

C: COMPETANT SUPERVISORY AUTHORITY

The Irish Data Protection Commission.

Annex II of the Standard Contractual Clauses

Technical and Organisational Measures

See Schedule 3 below.

Annex III of the Standard Contractual Clauses

Vendor Sub-Processor List

The controller has authorised the use of the following sub-processors:

Name of Company	Purpose	Location
HLB Klient KFT.	Preparation and Filing of Tax Returns for XYZ Music - Hungary	1143 Budapest, Stefania u 101-103, Hungary
WTS ALFERY S.R.O	Preparation and Filing of Tax Returns for XYZ Music – Czech Republic	Václavské náměstí 40, 110 00 Prague 1, Czech Republic

SCHEDULE 3: TECHNICAL & ORGANISATIONAL MEASURES

I. Confidentiality of XYZ Music Data.

For the avoidance of doubt, the provisions in this Section I are in addition to the confidentiality requirements set forth in the Agreement. In the event that Confidential Information is defined in the Agreement, all XYZ Music Data will be treated as Confidential Information in accordance therewith. In the event that Confidential Information is not defined in the Agreement and/or the Agreement does not contain confidentiality requirements, then (a) Confidential Information shall mean any non-public information relating to XYZ Music's business that is (i) disclosed or furnished, in any form, by XYZ Music, its affiliates, agents or employees to Vendor in connection with Vendor's performance of the Services, or (ii) collected, stored, processed, transmitted, accessed or used by Vendor in connection with Vendor's performance of Services; and (b) Vendor shall afford XYZ Music Data with at least the same level of protection that it affords its own confidential information, including if longer than Vendor's policy with respect to its own confidential information, maintaining the confidentiality of all XYZ Music Data during the term of the Agreement and for at least three (3) years thereafter. Vendor's obligations of confidentiality regarding Personal Information will be perpetual; provided however, that in jurisdictions that permit a termination of indefinite obligations, Vendor's obligation of confidentiality shall end fifty (50) years after the termination or expiration of the Agreement.

Moreover, XYZ Music Data will be treated in accordance with the following requirements:

- A. Vendor agrees that it will not, without the prior written consent of XYZ Music (except to Vendor's officers and employees who have a need-to-know in order to perform the Services) disclose XYZ Music Data to any person or in any other way permit processing of XYZ Music Data by any person, other than the XYZ Music employee(s) who are directing the activities of Vendor in connection with the Agreement or subsequent Statement Of Work, as applicable.
- B. If XYZ Music consents in writing to the disclosure of XYZ Music Data to a third party, or to the processing of XYZ Music Data by a third party, Vendor will require that third party to execute an agreement with Vendor on terms at least as stringent and comprehensive as the provisions of this Data Protection & Information Security Agreement prior to disclosing any XYZ Music Data to such third party or in any other way permitting processing of XYZ Music Data by such third party.
- C. Vendor will strictly keep in confidence XYZ Music Data and will use the XYZ Music Data only for the purposes of the performance of the Services as set forth in Schedule 1. If it seeks to use the data for other purposes, it must obtain XYZ Music's prior written consent.
- D. Vendor will: (i) promptly retrieve, rectify, restrict, block or erase XYZ Music Data, and (ii) identify Service Level (as defined by Exhibit A) issues caused by any errors or inaccuracies in XYZ Music Data. In addition, Vendor shall deliver or cause to be delivered to XYZ Music all XYZ Music Data (including copies thereof and documents prepared for XYZ Music under the terms of the Agreement) upon demand or upon termination or completion of the Services, in whole or in part, under the Agreement. Vendor shall deliver such XYZ Music Data in the format and on the media in use as of the date of the request. Vendor shall maintain and retain all XYZ Music Data in compliance with XYZ Music's record retention policies during each applicable Statement of Work Term (as defined by Exhibit A) and for seven (7) years after the expiration or termination of the Agreement. Vendor may dispose of such documents following the expiration of the required retention period, provided that Vendor provides XYZ Music with at least ninety (90) calendar days'

notice of such disposal. Vendor shall assist XYZ Music as reasonably requested by XYZ Music in meeting XYZ Music's legal obligations with respect to the retention of records in Vendor's control.

- E. Vendor will keep all system generated security logs created as part of standard operational security procedures associated with the protection of XYZ Music Data in a secure location for a period beginning as of the Effective Date and ending five (5) years after the termination or expiration of the Agreement, or longer if so requested by XYZ Music during that period.

II. Information Security Program and Requirements.

Vendor will implement, maintain and comply with a written information security program ("Information Security Program"), which will include policies, procedures and technical and physical controls, as well as the security measures established herein, to (i) ensure the security, availability, integrity or confidentiality of Vendor Systems, XYZ Music Systems and XYZ Music Data, (ii) identify and protect against potential threats or hazards to Vendor Systems, XYZ Music Systems and XYZ Music Data, (iii) protect against unauthorized access to or use of, alteration of or destruction of Vendor Systems, XYZ Music Systems and XYZ Music Data, (iv) ensure secure disposal of XYZ Music Data, and (v) ensure that XYZ Music is notified as required herein in the event of an Incident. In addition, Vendor will monitor, evaluate, and adjust, as appropriate, the Information Security Program in light of any relevant changes in technology or industry security standards, the sensitivity of XYZ Music Data, internal or external threats to Vendor Systems, XYZ Music Systems, XYZ Music's instructions pursuant to Section 2 of the Data Protection and Information Security Agreement, requirements of applicable work orders, and Vendor's own changing business arrangements, such as mergers and acquisitions, alliances and joint ventures, outsourcing arrangements, and changes to information systems.

In addition, to the extent applicable, Vendor shall establish and maintain (i) security measures and safeguards against the unauthorized access, destruction, loss, or alteration of XYZ Music Data in the possession of Vendor or Vendor Agents that comply with the following: (a) as made available to Vendor, those in effect at XYZ Music from time to time; and (b) as Approved by XYZ Music on a case-by-case basis during Transition, those standard procedures, measures, and safeguards maintained by Vendor for its own information, as such standards are set forth in Exhibit C (Policies and Procedures); and (ii) industry standard best practices in accordance with National Institute of Standards and Technology (NIST) SP 800-53 rev5 as found in <https://nvlpubs.nist.gov/nistpubs/SpecialPublications/NIST.SP.800-53r5.pdf>. Provider Personnel shall not attempt to access and shall not or allow access to, XYZ Music Data to which it is not entitled or that is not required for the performance of the Services by Provider Personnel.

Pursuant to its obligations under Section II.A, Vendor will, at a minimum, comply with the safeguards and requirements set forth below to ensure the protection of all Vendor Systems, XYZ Music Systems and XYZ Music Data, and include or address these safeguards and requirements in its Information Security Program.

- A. **Information Security Program.** Vendor will as part of the Information Security Program: (i) implement an audit program to test and, if necessary, remediate identified gaps of all security controls at least annually or whenever there is a material change in business practices that may reasonably implicate the security or integrity of records containing XYZ Music Data, (ii) conduct, in line with ISO27001 or similar standards, an annual risk assessment that assesses the threats and vulnerabilities associated with Vendor Systems, or Vendor's other processes, facilities, and system components collecting, storing, processing, transmitting, accessing or using XYZ Music Data, and (iii) produce (pursuant to the results of (i) and (ii)) a documented risk assessment and, where

appropriate, risk remediation plan. Vendor will provide XYZ Music with the results of all such tests, assessments and plans and any other audit, review or examination relating to its Information Security Program. Vendor will maintain appropriate and complete documentation describing the Information Security Program it maintains in accordance with the terms herein, and will provide such documentation to XYZ Music upon request.

- B. **Assigned Security Responsibility.** Vendor will designate a management level or above security official employed by Vendor to be responsible for the development, implementation, and ongoing maintenance of its Information Security Program. The appointed official will have appropriate recognised Information Security credentials and qualifications. Vendor will identify such designated official, provide such official's contact information and, upon request, a copy of his/her information security credentials. XYZ Music may, in its sole discretion, determine the sufficiency of the official's qualifications.
- C. **Secure Authentication Protocols and Access Control Measures.** Vendor will implement and maintain Secure Authentication Protocols and Access Control Measures (defined below) and other policies, procedures, and physical and technical controls designed:
- (i) to limit access to Vendor Systems, XYZ Music Systems and XYZ Music Data and the facilities in which they are housed to a limited number of properly-authorised persons, each of whom are under an obligation (written or by policy) of confidentiality and non-disclosure, having a need for such access to perform the Services, and authorised to access such data and systems solely as necessary to perform the Services;
 - (ii) to ensure that all persons having access to Vendor Systems, XYZ Music Systems and XYZ Music Data have appropriately controlled and limited access, and to prevent others who should not have access (including, without limitation, terminated employees) from obtaining access;
 - (iii) to prohibit persons from making copies or reproductions of XYZ Music Data, or otherwise transmitting XYZ Music Data, except to the extent necessary solely to perform the Services, in which case all such copies and reproductions will be deemed XYZ Music Data; and
 - (iv) to include multi-factor authentication for accounts which have remote access, access to XYZ Music Data, and administration access or privileged account permissions.

"**Secure Authentication Protocols and Access Control Measures**" include, without limitation, (a) use of secure user authentication protocols (including control of user IDs and other identifiers), (b) a reasonably secure method of assigning and selecting passwords, or use of unique identifier technologies (such as biometrics or token devices), (c) control of data security passwords to ensure that such passwords are kept in a location or format that does not compromise the security of the information they protect (in particular, passwords must be stored using a salted hash of industry standard algorithms), (d) restricting access to active users and active user accounts only, (e) requiring management approval for administrative user access to XYZ Music Data or XYZ Music Systems with such administrative user sessions expiring within twenty (20) minutes of inactivity, (f) maintaining a list of individuals who have access to Vendor Systems, XYZ Music Systems or XYZ Music Data (including details of any system administrators pursuant to **Section VII**) and promptly removing access when such a user no longer requires access to the same or at any time upon the request of XYZ Music, and (g) ensure end user password reset or token reset are only approved through the use of non-publicly available information.

- D. Additional Security Procedures. In addition to the Secure Authentication Protocols and Access Control Measures described in Section II.C above, Vendor will implement the following Security Procedures.
- a. As more specifically required pursuant to each applicable Statement of Work, Vendor shall adopt security measures for itself and its employees (and also for recommendation for adoption to XYZ Music for its employees) which shall be consistent with (and incorporate) the applicable XYZ Music Policies and Procedures (as defined in Exhibit A), all regulatory obligations and orders applicable to XYZ Music and XYZ Music Affiliates and which shall include the following:
 - i. prohibition of the disclosure of Confidential Information within Vendor's organization except to individuals who have a specific need to know such information to perform Vendor's obligations or exercise Vendor's rights under the Agreement;
 - ii. role-based access controls which shall specifically describe each Vendor individual who has access to XYZ Music Data and XYZ Music Confidential Information and include a description of the access and a reasonably detailed explanation of why such access is required;
 - iii. precluding access to Confidential Information by any Vendor Personnel (as defined in Exhibit A) and Subcontractors until such individual has been trained with regard to the handling of the Confidential Information, use of security measures identified herein, and (a) with respect to Vendor's employees, agreed to abide by Vendor's then-current Code of Business Ethics and Conduct, attached hereto as Exhibit N (Provider's Code of Business Ethics and Conduct) and has executed Vendor's Confidentiality and IP Assignment Agreement attached hereto as Exhibit O (Provider's Confidentiality and IP Assignment Agreement), and (b) with respect to Vendor's representatives, agents, or Subcontractors, such representatives, agents, and Subcontractors have signed Vendor's Confidentiality and IP Assignment Agreement for Vendor Subcontractors attached hereto as Exhibit P (Provider's Confidentiality and IP Assignment Agreement for Vendor Subcontractors) and Vendor has included provisions comparable to Vendor's guidelines and standards that are, at minimum, as protective of XYZ Music's Confidential Information as those contained in Section 35 (Confidentiality) of the Agreement, in the applicable Subcontractor, agent, or other agreements;
 - iv. requiring all (a) employees who provide Services to agree to and abide by Vendor's then-current Code of Business Ethics and Conduct, attached hereto as Exhibit N (Provider's Code of Business Ethics and Conduct), and has executed Vendor's Confidentiality and IP Assignment Agreement attached hereto as Exhibit O (Provider's Confidentiality and IP Assignment Agreement), and (b) with respect to Vendor's representatives, agents, or Subcontractors, such representatives, agents, and Subcontractors have signed Vendor's Confidentiality and IP Assignment Agreement for Provider Subcontractors attached hereto as Exhibit P (Provider's Confidentiality and IP Assignment Agreement for Provider Subcontractors) and Vendor has included provisions comparable to Vendor's guidelines and standards that are, at minimum, as protective of XYZ Music's Confidential Information as those contained in Section 35 (Confidentiality) of the Agreement, in the applicable Subcontractor, agent, or other agreements;
 - v. providing each individual authorized to electronically access Confidential Information with a unique access code and notifying such individual that disclosure of any password, access code, or security device shall result in disciplinary action, up to and including termination;
 - vi. promptly canceling passwords and security access codes when an individual is terminated, transferred, or on a leave of absence, and providing prompt notice of such event to XYZ Music consistent with XYZ Music's then-current security requirements;

- vii. if employment is terminated involuntarily, ensuring that the individual's access to Confidential Information is blocked prior to notifying the individual of the involuntary termination;
- viii. requiring that XYZ Music Policies and Procedures (as defined in Exhibit A) are followed by Vendor Personnel to physically safeguard all telecommunication switches, computer rooms, and tape libraries, as well as restricting access to XYZ Music Service Locations to authorized personnel through card access system ("CAS") badges where such systems are utilized;
- ix. requiring that audit trails are established, maintained, and reviewed regularly for signs of anomalous activity with regard to Trusted Identifications (as defined by Exhibit A) created by Vendor and providing such audit trails to XYZ Music promptly after XYZ Music's request. Vendor shall utilize logical controls and information technology systems to enable it to identify and authenticate Trusted Users (as defined by Exhibit A) with electronic access to the System (as defined by Exhibit A) or XYZ Music Data, and to record and cooperate in any investigation of security related events and provide related data. Vendor shall investigate any attempted or actual security breach, and provide additional security protections, at no additional charge to XYZ Music, to correct any security deficiencies related to Trusted Users identified by XYZ Music and attributable to Vendor;
- x. requiring, to the extent consistent with XYZ Music Policies and Procedures, that the Equipment and the System have the firewalls, segmentation, encryption, and other safeguards designed to (i) protect the transmission of XYZ Music Data and Confidential Information, (ii) properly authenticate users, and (iii) prohibit the unauthorized access to XYZ Music Data and Confidential Information, or the System, all as set forth herein and in any applicable Statement of Work; and
- xi. complying with Federal Deposit Insurance Corporation (the "FDIC") regulations, requirements and guidelines under 12 CFR Part 364 and Appendix B thereto (Interagency Guidelines Establishing Information Security Standards), as updated or amended from time-to-time.

E. **Identification of Possible Instances of Identity Theft.** Vendor acknowledges that XYZ Music has certain obligations to identify patterns, practices, and specific forms of activity that indicate the possible existence of identity theft (defined as fraud committed using the identifying information of another person), pursuant to Section 114 of the Fair and Accurate Credit Transactions Act of 2003 and its implementing regulations 12, CFR Parts 334 and 364. Vendor, to the extent that it holds or otherwise has access to Personal Information, agrees to establish, maintain, and update reasonably effective policies and procedures to detect, prevent, and mitigate the risk of identity theft, and to promptly notify and report to XYZ Music upon request, any instances where Vendor detects potential identity theft in the course of its duties pursuant to the Agreement. Vendor further agrees to immediately report to XYZ Music any confirmed instances of identity theft. In furtherance thereof, Vendor agrees to be guided by the examples of identity theft "Red Flags" (defined as a pattern, practice, or specific activity that indicates the possible existence of identity theft) set forth in Supplement A to Appendix J to 12 CFR Part 41, as updated and amended from time-to-time. Upon request by XYZ Music, Vendor agrees to confirm in writing and, when specified, demonstrate to XYZ Music its compliance with the requirements of this Section II.E.

F. **Incident Response and Data Security Plan ("IRP").** Vendor will implement policies and procedures designed to detect, respond to, and otherwise address Incidents, including specific points of contact available to XYZ Music in the event of an Incident and procedures to: (i) notify XYZ Music in accordance with clause 3 of this Data Protection & Information Security Agreement in the event of an Incident, (ii) monitor and detect actual and attempted attacks on, or intrusions

into, Vendor Systems or XYZ Music Data, (iii) identify and respond to suspected or known Incidents, (iv) immediately mitigate the harmful effects of any Incidents without detriment to measures or actions necessary to determine the seriousness of the breach, and (v) closely track and frequently (at least on a daily basis, or more frequently as required by XYZ Music) provide detailed reports and documentation to XYZ Music regarding such Incidents, and the resulting forensic and remediation efforts and outcomes of such efforts. Vendor will update its IRP at least annually and provide a copy of such IRP to XYZ Music upon request.

Further, Vendor shall implement a data security plan that may include those standard procedures, measures, and safeguards set forth in Exhibit C (Policies and Procedures), all of which shall be designed to impose the industry standards for security on all parts of Vendor's organization that are exposed to, or have access to, XYZ Music or to XYZ Music Data. For the avoidance of doubt, the industry standards shall be those reasonably expected of a diligent Vendor. The data security plan shall provide for: (i) the industry standard security Systems, computers and technologies, including firewalls and encryption; (ii) physical security procedures, including security guards and regular monitoring of all work areas; (iii) background checks on Providers and other personnel; (iv) restriction of use and copying of XYZ Music Data on a "need-to-know" basis and only at authorized locations; (v) regular monitoring of the transport and storage of XYZ Music Data; (vi) regular monitoring of password procedures; and (vii) regular and random monitoring of employees and agents providing Services or working on XYZ Music Systems and programs.

- G. **Device and Media Controls.** Vendor will ensure that all media containing XYZ Music Data sent outside its facilities is encrypted, logged, authorised by management, and sent via secured courier or other delivery method that can be tracked (if applicable). Vendor will encrypt all back-up/archive media containing XYZ Music Data, and restrict access to all off-site backup/archive media to appropriate authorised personnel. Vendor will encrypt any devices including, without limitation, laptops and mobile devices containing XYZ Music Data that may be taken outside its facilities. Vendor will restrict the activation of USB or serial ports for each user profile as appropriate. Vendor's encryption obligations in this Section II.G shall be performed in accordance with Section II.H below. No media on which XYZ Music Data is stored may be used or re-used to store data of any other customer of Vendor or to deliver data to a third party, including another Vendor customer, unless securely erased in a manner Approved by XYZ Music.
- H. **System, Storage and Transmission Security.** Vendor will implement and maintain physical and technical controls designed to: (i) guard against unauthorised access to, disruption of, alteration of, copying of or removal of Vendor Systems, XYZ Music Systems, and XYZ Music Data (including, without limitation, when XYZ Music Data is transmitted over an electronic communications network or while being recorded onto data carriers), and (ii) ensure that no XYZ Music Data is physically co-mingled with any of Vendor's (or any third party's) other data, or virtually co-mingled with other data where such XYZ Music Data shares the same media, device or system, unless the data is logically separated, or compensating controls, approved by XYZ Music, are implemented. Vendor will (a) implement firewall protection, router configuration rules and standards designed to maintain the integrity of XYZ Music Data and that restrict connections between untrusted networks and any system components in the environment, (b) establish up-to-date application security firewalls to ensure protection of "Layer 7" and other application oriented threats, and regular testing of such firewalls to ensure the effectiveness of application oriented threat mitigation by application layer firewalls, (c) implement encryption with respect to all records and files containing XYZ Music Data either at rest or in transit including, without limitation, all XYZ Music Data to be transmitted across public networks or wirelessly, and all XYZ Music Data stored on laptops, servers or removable media, (d) provide endpoint protection, access controls,

and hardening measures specified in Schedule 4. With respect to (c) above, Vendor will use current industry standard encryption algorithms.

- I. **Equipment and Infrastructure Security.** In addition to the security measures in Section II.H. above, the Vendor shall perform the following responsibilities:
- a. **Systems Security:** maintain, with respect to Vendor Equipment, Vendor Systems, and Provider Service Locations, security practices that are in accordance with current Generally Accepted Industry Security Practices. Vendor shall notify XYZ Music of any changes to Vendor's practices and the costs that may be incurred by XYZ Music if XYZ Music wishes to implement similar revised practices on XYZ Music Systems or at XYZ Music Service Locations; provided, however, that XYZ Music shall be under no obligation to do so.
 - b. **Interfaces:** provide the interfaces between Vendor Equipment and Vendor Systems and XYZ Music Systems as necessary to provide the Services.
 - c. **Data Lines:** have all responsibility (including administrative and financial responsibility) for the connectivity and data lines (including all bandwidth, size, and redundancy thereof): (i) between the Vendor Service Locations; and (ii) from the Vendor Service Locations to and from the XYZ Music Service Locations.
 - d. **Communications Infrastructure:** implement and maintain the communications infrastructure and update such infrastructure (including providing additional bandwidth) as may be necessary to provide and for XYZ Music to receive, the Services.
 - e. **XYZ Music Monitors:** acquire and cause Vendor Personnel to use as part of the Services certain XYZ-branded computer screen monitors.
 - f. **Endpoint Protection:** implement security measures to protect against unauthorized access through malware and other malicious code.
- J. **Connections to XYZ Music Systems.** Vendor may not connect or operate any Equipment or Software to or on XYZ Music's Systems without XYZ Music's written Approval. Vendor must comply at all times with XYZ Music's security and use policies and procedures relating to interfacing with, using, or accessing XYZ Music Systems then in effect as communicated to Vendor. XYZ Music may update, replace, or add to these policies from time-to-time during each Statement of Work Term (as defined in Exhibit A) and the Termination/Expiration Assistance Period (as defined in Exhibit A). XYZ Music may make the current version accessible via an internal website (including updates, replacements, or additions) or such other repository of which XYZ Music provides Vendor notice of and access to. XYZ Music shall provide Vendor with the necessary passwords or other information to enable Vendor to access such website. Vendor shall, within a reasonable time following receipt of such notification, but in no event later than as required by Law (as defined in Exhibit A) or XYZ Music's regulators, comply with the latest version of XYZ Music's security and use policies and procedures. Changes to XYZ Music's security and use policies used in the provision of Services that may require Vendor to increase its cost, if any, for providing the Services shall be managed through the Change Control Procedure (as set forth in Exhibit M (Change of Control Procedure)).
- K. **System Testing and Maintenance.** Vendor will test and maintain all Vendor Systems to protect XYZ Music Data including, without limitation: (i) installing of critical security patches for operating systems and applications within thirty (30) days of publication, and within three (3) months for other types of patches and updates, (ii) installing the latest recommended versions of operating systems, software and firmware for all system components, and (iii) ensuring that up-to-

date system security agent software includes malware protection set to receive automatically updated (at least daily) patches and virus definitions.

- L. **Secure Disposal.** Vendor will ensure the secure disposal of XYZ Music Data in accordance with applicable law (including, if applicable, the “PCI Standards”), taking into account available technology so that XYZ Music Data cannot be read, restored or reconstructed. Upon XYZ Music’s written request, Vendor shall provide XYZ Music with written notice describing the details of such manner of disposal and with written evidence in a reasonable format verifying that all such XYZ Music Data has been destroyed or disposed of securely.
- M. **Security Awareness and Privacy Training; Discipline.** Vendor will establish and maintain an ongoing security and privacy awareness and training program for all Vendor personnel (including management, employees, contractors and other agents), which includes training on how to implement and comply with its Information Security Program and setting forth disciplinary measures for violation of the Information Security Program. Security and privacy awareness training shall be required at least annually.
- N. **XYZ Music Scanning and Testing.** Vendor will define and maintain a vulnerability management program which will at a minimum include (i) defined roles and responsibilities, (ii) process and security requirements for vulnerability monitoring, vulnerability scanning and penetration (“PEN”) testing, and (iii) vulnerability severity assessment and vulnerability remediation procedures. Vendor will perform vulnerability assessments of all Vendor Systems at least once per month, and annual PEN testing on all external facing Vendor Systems. Vulnerability assessment and PEN test results will be made available to XYZ Music upon request. In addition to meeting the requirements of routine updates to systems in accordance with Section II.K, Vendor will promptly remediate, at Vendor’s sole expense, identified vulnerabilities or security issues with a common vulnerability scoring system (“CVSS”) score of:
- 8.0 and above within twenty-four (24) hours;
 - 6 to 7.9 within seven (7) days; and
 - all other vulnerabilities with score 4.0 and above will be remediated within thirty (30) days.
- Additionally, Vendor will remediate any vulnerabilities or security issues discovered during the assessment process that do not have associated CVSS scores, but which are categorised as “Critical”, “High”, or “Medium”. Vendor will promptly remediate at Vendor’s sole expense any such vulnerability or security issue rated:
- “Level 5” or “Critical” within twenty-four (24) hours;
 - “Level 4” or “High” within seven (7) days;
 - “Level 3” or “Medium” within thirty (30) days; and
 - “Level 2” or “Low” and “Level 1” or “Very Low / Informational” based on risk or within a reasonable time.

Vendor shall provide proof to XYZ Music that all discovered and known vulnerabilities have been remediated.

- O. **Intrusion Detection.** Vendor shall use a current, proven, real-time intrusion detection System. Vendor shall actively monitor the intrusion detection System for known pattern of suspicious activity that may indicate an attack and signatures that correspond to attempts at breaking the security of the Services provided. Along with the deployment of such System, Vendor shall develop intrusion detection operational procedures. Vendor shall adopt and follow operational procedures to stop or mitigate

any real or reasonably foreseeable potential attack or attempted attack, such as by disabling the connection at Vendor's end and then follow the escalation procedures to notify Vendor and XYZ Music security groups of the real or reasonably foreseeable potential attack or attempted attack and of any follow-up actions.

- P. **Contingency and Disaster Recovery Planning.** Vendor will implement and maintain contingency plans to address unexpected business interruptions or other adverse events (such as, by way of example only, fire, vandalism, system failure, and natural disaster) that interrupt access to, damage or destroy Vendor Systems or XYZ Music Data, including a business continuity plan, data backup plan, and a disaster recovery plan, with, at least, annual testing of such plans and continuous improvement of such plans.

Vendor shall provide disaster recovery and business continuity services in accordance with the business continuity plan and disaster recovery plan for each Service Location, all as set forth in the Disaster Recovery Plan attached hereto as Exhibit L (Disaster Recovery Plan), to restore Services in accordance with the restoration times set forth in such Disaster Recovery Plan. At a minimum, the Disaster Recovery Plan shall describe the procedures to be followed with respect to the continued provision of the Services in the event that all or any portion of the Services are unavailable for use by XYZ Music because they have been destroyed, damaged, or are otherwise not available for use for any reason whatsoever. Additionally, the Disaster Recovery Plan shall describe the procedures for declaring a disaster. Vendor shall regularly test such Disaster Recovery Plan and provide the results of such tests to XYZ Music promptly after such tests are performed, and promptly correct any deficiencies discovered in such testing, as scheduled in the Business Continuity Management Calendar attached to Exhibit L (Disaster Recovery Plan). Vendor shall have the continuing responsibility for developing, implementing, and maintaining the Disaster Recovery Plan, together with the associated contents the Disaster Recovery Plan specifies, and shall update the Disaster Recovery Plan on or before the 31st day of January of the following calendar year to deliver the completed documentation to XYZ Music in a single package, and in a manner which reflects the results of the prior year's testing as described in the foregoing sentence, including, changing technology and XYZ Music's changing environments. No later than December 15 of the calendar year in which the testing occurs, Vendor shall provide XYZ Music with drafts of the Disaster Recovery Plan for its review, comment, and Approval (following approval by applicable Vendor executive leadership in the respective business verticals responsible for disaster recovery/business continuity planning). Vendor shall incorporate all reasonable XYZ Music comments or suggestions into such Disaster Recovery Plan and, no later than January 15 of each calendar year, Vendor shall submit any changes to the Disaster Recovery Plan to XYZ Music for its review, comment, and Approval. Additionally, if and as requested by XYZ Music and at XYZ Music's expense, Vendor shall provide reasonable advice and assistance to XYZ Music from time-to-time, with regard to XYZ Music's disaster recovery and business continuity plans as they relate to the Services then being provided to XYZ Music hereunder. Such assistance shall include participating in annual (or more frequent) meetings with XYZ Music (and any applicable Third Party Vendors) regarding disaster recovery and business continuity plans maintained by or on behalf of XYZ Music, assisting XYZ Music and any applicable Third Party Vendors each year (or more frequently) in executing reasonable disaster recovery and business continuity testing as it pertains to the Services, and other similar reasonable assistance that is reasonably requested by XYZ Music or its applicable Third Party Vendors at any time or from time-to-time. If a catastrophic loss or calamity is suffered that results in the loss or destruction of the Services or the System at any of the XYZ Music Service Locations, Vendor shall reasonably cooperate with and assist XYZ Music and its Affiliates, and any of their Third Party Vendors, as applicable, in promptly taking all appropriate measures to facilitate recovery and replacement of such Services and System.

Recommendations of new technology by Vendor's or XYZ Music's communications, equipment, and UPS vendors shall also be reviewed on a regular basis and be included in Vendor's planning process as appropriate.

In addition to the requirements and obligations of Vendor as described above, Vendor shall adhere to and enforce such obligations with respect to all Third Party Vendors who provide any services to XYZ Music, indirectly or directly, via Vendor, or who participate in any event as described above. Additionally, any Third Party Vendor performing any services involving XYZ Music via Vendor shall be considered an extension of Vendor, and all requirements of Vendor herein shall apply to each of such Third Party Vendors. All costs and expenses associated with the foregoing requirements and obligations shall be the responsibility of Vendor. Vendor shall promptly notify XYZ Music of all such Third Party Vendor requests to participate in such events. Additionally, Vendor shall notify XYZ Music promptly in the event Vendor receives solicitations from Third Party Vendors, or when Third Party Vendor participation is anticipated.

- Q. **Disaster Avoidance**. Vendor shall maintain disaster avoidance procedures at all Service Locations designed to safeguard XYZ Music Data and the availability of the Services, throughout each Statement of Work Term. Such disaster avoidance procedures include the following:

a. Physical Security

Access to the Vendor Service Locations shall be strictly controlled by Vendor. A CAS and other appropriate systems will be maintained and utilized by Vendor to control access to the Vendor Service Locations. The access system shall be programmed to permit only persons who have authorized security clearance from Vendor to enter critical areas of the Vendor Service Locations. Additionally, Vendor shall, on a twenty-four (24) hours a day, seven (7) days a week basis, monitor Vendor Service Locations access. Vendor shall also (to the extent such acts do not violate any union agreement) maintain, to the extent Vendor deems necessary, operational video cameras to monitor the main entrance, parking facilities and critical areas within the Vendor Service Locations twenty-four (24) hours a day, seven (7) days a week.

b. Fire Protection

The Vendor Service Locations' fire detection, containment, and fire suppression systems and processes shall meet Vendor, Industrial Risk Insurers (IRI), and National Fire Protection Association (NFPA) requirements and shall be regularly reviewed and updated.

c. Power Supply

Vendor shall maintain two (2) levels of power backup designed to provide uninterrupted operation of the Vendor Service Locations and equipment located in such Vendor Service Locations in the event of a loss of power. Vendor Service Locations will also have emergency power system (EPS) generation as a second source of backup power.

d. Air Conditioning

As to the Vendor Service Locations, Vendor shall maintain two (2) levels of protection against loss of cooling, including a primary backup system and a secondary backup system that shall be capable of providing continuous cooling during a power outage.

e. Disaster Avoidance at XYZ Music Service Locations

As to the XYZ Music Service Locations, Vendor shall be cognizant of the disaster avoidance services and systems provided by XYZ Music or Third Party Vendors on XYZ Music's behalf, and report in writing to XYZ Music any issues of which Vendor becomes aware that may create a physical risk to the XYZ Music Service Location, or any personnel working there.

- R. **Audit Logging**. Vendor will implement and maintain hardware, software, or procedural mechanisms that record and examine activity in Vendor Systems that contain or use electronic

information, including appropriate logs and reports concerning the security requirements set forth in this Data Protection & Information Security Agreement and compliance therewith.

- S. **Public Clouds.** Vendor will not utilise “public cloud” computing services as part of any hosted solution or service, or otherwise connect XYZ Music Systems to, or allow XYZ Music Data to be collected, transmitted, processed or stored on a “public cloud” service without first obtaining written consent from the XYZ Music Security Official identified in clause 3(a) of this Data Protection and Information Security Agreement.
- T. **Web Hosting and Development Requirements.** Vendor will meet the following web hosting and development requirements:
- i. **Remote Access** – Appropriate procedures and measures to prevent personnel performing remote system support from accessing XYZ Music Data without end-user permission and presence and/or accountability during remote access sessions and subject to all applicable confidentiality obligations;
 - ii. **Access Monitoring** – Appropriate procedures and measures to monitor all access to Vendor Systems and XYZ Music Systems and XYZ Music Data, including protocol analysers for applications, network and servers, only by authorised Vendor personnel, and to track additions, alterations, and deletions of XYZ Music Data;
 - iii. **Additional Application and Website Coding, Security, and Testing Requirements** –
 - Vendor must write code that appropriately addresses known security risks. At a minimum, Vendor must comply with any applicable published Open Web Application Security project (“OWASP”) security guidelines and must address the then-current OWASP top ten web application security risks;
 - When new code is deployed, or existing code modified, Vendor must take all reasonable steps to ensure that the code is secure, including appropriate testing from a security vulnerability perspective, prior to going live on the Internet. Full regression testing must also be conducted to ensure that security remains strong across the entire site;
 - Captcha technology must be used when designing any website registration page to prevent ‘robot scripts’ from registering false users;
 - Any website with a login and password must be designed using strong passwords. All website “reset” password and “forgotten” password features must be designed to use an industry standard secure mechanism to reset user passwords; and
 - Any servers that host XYZ Music Data, or websites that provide an interface to access XYZ Music Data, must be security hardened using industry best practices, and all operating systems and software configurations (including applications and databases) must conform to best industry security practices;
 - iv. **Vulnerability Testing** – XYZ Music, or its designee, will have the right at any reasonable time to perform vulnerability testing upon the web hosting environment for the purpose of inspecting, auditing, and determining whether the environment is consistent with the terms herein, and whether the web hosting requirements have been adequately implemented to ensure the security of XYZ Music Data;
 - v. **External Website Deployment Integrity** – Appropriate procedures, controls, and measures to ensure that only XYZ Music-approved information and/or services are deployed to the Internet per an approved XYZ Music deployment schedule; and
 - vi. **Application/Software Testing** – If Vendor is developing an application on behalf of XYZ Music, Vendor shall:
 - 1. disclose all source code of the software, including all libraries or components;
 - 2. disclose the development origin of all software components used in the product; and

3. allow XYZ Music to review source code for security flaws prior to delivery.

III. XYZ Music Assessments.

Upon XYZ Music's request, if Vendor has not already done so, Vendor shall complete the information security questionnaire provided to Vendor by XYZ Music (the "Questionnaire"). Vendor represents and warrants that, to the best of its knowledge, all information provided by Vendor in the Questionnaire is accurate as of the Effective Date. Vendor acknowledges and agrees that upon completion of the Questionnaire, XYZ Music may require additional technical, process, or security related information to complete the XYZ Music security assessment (the "Assessment"), and Vendor will comply with all requests for such information. Further, upon XYZ Music's request, if Vendor has not already done so, Vendor shall provide information necessary for XYZ Music to complete a Privacy Impact Assessment ("PIA"). Vendor represents and warrants that, to the best of its knowledge, all information provided by Vendor for the PIA is accurate as of the Effective Date. If, with respect to the Assessment and/or PIA, XYZ Music identifies any risks or security issues or privacy issues, Vendor agrees (if it has not already done so prior to the Effective Date), to provide XYZ Music (within thirty (30) days of XYZ Music issuing its findings from the Assessment or PIA to Vendor, whichever was issued first) with a plan for corrective action, including a target date to implement the corrective action. Vendor will provide the corrective action plan to XYZ Music for its approval. While Vendor implements corrective actions, Vendor will provide XYZ Music with regular on-going progress reports until the deficiencies are corrected. If Vendor fails to correct such issues within ten (10) business days, XYZ Music will be entitled to terminate the Agreement without liability upon written notice to Vendor.

IV. [Intentionally Omitted].

V. Controls Report.

- A. Upon XYZ Music's request, once per year during the term of the Agreement (unless Vendor obtains such reports more frequently), Vendor will prepare and deliver to XYZ Music the appropriate third party audit report (for example, SOC 2, ISO27001, NIST 800-53, PCI DSS, IASME, BITS AUP, MPAA, CDSA or similar reports) covering internal security controls relevant to Vendor Systems, XYZ Music Data, and XYZ Music Systems (each a "Controls Report"). Vendor will cover all costs to obtain each Controls Report. If Vendor refuses to provide such Controls Report, XYZ Music may appoint a qualified audit firm to perform the review and prepare the Controls Report, at Vendor's sole expense, and Vendor shall permit such audit firm to perform its review and shall support, coordinate and facilitate such review. Any required Controls Report will be provided no later than forty-five (45) days following Vendor's receipt of such Controls Report. Notwithstanding the foregoing, if any Controls Report reveals control issues or other weaknesses, Vendor will: (i) prepare within thirty (30) days of its receipt of such Controls Report a timely remediation action plan to correct any deficiencies or resolve any problems identified in such Controls Report, provided that such corrective action plan is discussed with and approved in advance by XYZ Music, and (ii) assist XYZ Music in meeting its obligations under the applicable laws in connection with the Agreement. Costs of remediation will be borne solely by Vendor.
- B. All control reviews performed to produce the Controls Report will be conducted by an appropriately accredited and independent third-party auditing firm that is objective and impartial to the audit process. Standards for each Controls Report will be defined by the appropriate accrediting body such as International Auditing and Assurance Standards Board (IAASB), America's National Accreditation Body (ANAB), PCI Data Security Standard (PCI DSS), or similar standards.

- C. Finally, Vendor will provide an update letter for each Controls Report, as necessary. The update letter will indicate: (i) any material changes in the overall control environment, and (ii) any failure to meet control objectives required by the applicable standard. Such letters will be made available to XYZ Music forty-five (45) days following the end of each audit which produced such Controls Report.

VI. Background Checks.

Vendor shall initiate Security and Background Checks (as defined in Exhibit A) as promptly as possible, but in no event later than forty-eight (48) hours after assigning any Vendor Personnel to perform Vendor's obligations under the Agreement. Thereafter, each Security and Background Check shall be completed as promptly as possible following the initiation of a Security and Background Check. In the event any such Security and Background Check is not completed within eight (8) weeks following initiation thereof, then, in XYZ Music's discretion, the Vendor Personnel (as defined in Exhibit A) to which the Security and Background Check relates may be removed from performing responsibilities under the Agreement and shall be promptly replaced pursuant to Section 14.3(B) (Removal of Provider Personnel) of the Agreement. Subject to the foregoing, Vendor shall, and shall ensure that each Subcontractor has, subject to any prohibitions or limitations imposed by applicable Law, performed a Security and Background Check with respect to such individual that includes the conducting of job performance and reference checks, verification of educational degrees, and drug testing. Each Security and Background Check shall also include the investigation and reporting of any and all criminal convictions (regardless of classification or jurisdiction of conviction) or other criminal charges pending against such individual, during the immediately preceding seven (7) years, and an investigation of whether the individual has a history of workplace violence, sexual harassment, and child molestation. Without the prior written consent of XYZ Music, no individual shall be assigned to the performance of Vendor's obligations hereunder without having passed a Security and Background Check in accordance with the reasonable, lawful, uniform, and consistently-applied standards and procedures of Vendor (except that, in any event, any individual who has been convicted in any criminal proceeding or who has tested positive for drug use shall be not be deemed to have passed a Security and Background Check). XYZ Music retains the right to audit the methodology and process used by Vendor to perform Security and Background Checks, as well as the results of any Security and Background Check, and to supplement the Security and Background Checks in those situations that XYZ Music deems appropriate, subject to compliance with all applicable legal and regulatory requirements. Subject to compliance with all applicable Laws, XYZ Music may reject the assignment of any Provider Personnel to the performance of the Services, or cause the removal of such Provider Personnel, based upon the results of a Security and Background Check or upon any other reliable background information obtained by XYZ Music. Vendor shall promptly fill the position of any individual so rejected with an appropriately qualified person, in accordance with the Agreement, and XYZ Music shall not be liable under any legal theory for any kind of claim whatsoever arising out of or resulting from any such rejection.

VII. System Administrators.

Vendor agrees that it will comply with the following obligations with respect to any of its personnel performing the role of a system administrator (which for the purposes of this Section VII shall be deemed to include database administrators, network administrators and any other professional comparable to system administrators) for Vendor Systems:

- A. Regular Checks: Vendor will check system administrators' activities at least annually to verify that they are compliant with Vendor's data processing obligations set out in this Data Protection & Information Security Agreement.
- B. Personnel List: Vendor will maintain a list of its personnel who have been appointed as system administrators for Vendor Systems, including details of the operations that each system administrator can perform (such list to be made available to XYZ Music on request).
- C. Access Logs: Vendor will log any access to Vendor Systems, XYZ Music Systems and XYZ Music Data as performed by system administrators, including timestamps and event descriptions (such logs to be made available to XYZ Music on request). Vendor will retain the logs for a reasonable period which shall be no less than six (6) months.

Schedule 4: Supplemental Endpoint Security Measures

In addition to Vendor's implementation of the technical & organisational measures, Vendor agrees to implement the following Supplemental Endpoint Security Measures in safeguarding XYZ Music Data.

Endpoint Threat Protection & Response:

- Installation, activation and proper configuration of Next Generation Antivirus (NGAV), including software with Endpoint Detection Response ("EDR") and Extended Detection and Response ("XDR") enabled and running a version no less than two-generation away (n-2) from the most current version that is publicly released.
- Adoption of Next Generation Antivirus's EDR and XDR will be configured for automatic endpoint isolation.

Browser Hardening and Security:

- Implementation of Endpoint security measures that will restrict third party browser extensions and add-ons.
- Implementation of Endpoint security measures that will enable and enforce endpoint web content filtering to track and regulate access to websites based on content categories.
- Disabling of web browser password sync feature to prevent sign-in into user's personal account on work laptops.
- Blocking of native/default password managers provided by web browsers.

Endpoint Hardening:

- Use of Center of Internet Security ("CIS") benchmark and controls (Level 1 or above)
- Application of security standards set forth in NIST 800-53 R5, as industry standards as the term is used in this Data Protection and Information Security Agreement.

Endpoint Access Controls

- Implementing endpoint controls restricting network access to XYZ Music only to those devices that are authorized and compliant with this Data Protection & Information Security Agreement.
- Use of digital cryptographically signed trusted certificate to identify users and its machine(s), before granting access to XYZ Music network and resources.

Mobile Device Management

As of the Effective Date, (i) multifactor authentication is a pre-requisite for any Provider Personnel to access the XYZ Music Environment (defined below); (ii) Provider Personnel's mobile devices are not allowed to carry out any other function except for application-based generation or retrieval of multifactor authentication code. To the extent that XYZ Music applications are made available outside of the XYZ Music Environment (as defined below), Provider Personnel will not access such XYZ Music applications without first obtaining prior written approval from XYZ Music.

ABC and XYZ Music will jointly work on implementing a mutually agreed process/IT solution that complies with the requirements set forth in the following paragraph and will agree to any Change through Change Control Procedure upon review and approval by XYZ Music Information Security Department.

ABC agrees that the Provider Personnel's use of non-XYZ Music Equipment, including but not limited to Provider Personnel's personal devices, will be authorized to access XYZ Music Systems, XYZ Music applications, XYZ Music Data, and third party systems processing XYZ Music Data (collectively, "XYZ Music Environment") only upon complying with the following technical or organizational measures: (1) processes implemented by ABC to approve Provider Personnel's use of non-XYZ Music Equipment, including personal devices, to access XYZ Music Environment; (2) measures to approve, restrict or remove, either physically or electronically, XYZ Music applications, including, but not limited to, multifactor authentication application providing access to or facilitating access to XYZ Music Environment; (3) measures to manage and approve XYZ Music applications used to access, store, transfer, or otherwise process XYZ Music Data in XYZ Music Environments such that Provider's manager(s) and its management process are documented and disclosed to XYZ Music; (4) processes to record the identity and details of Provider Personnel and their device(s) accessing XYZ Music Environment, including, but not limited to, Provider Personnel's use of multifactor authentication application; (5) measures to enable automatic updates to non-XYZ Music Equipment, including, but not limited to, Provider Personnel's personal devices, applying the necessary security updates of the supported operating system of the non-XYZ Music Equipment; (6) measures to authenticate Provider Personnel's access to XYZ Music Environment following the Authentication Standard.

ABC represents, warrants, and covenants that Provider Personnel's use of non-XYZ Music Equipment, including, but not limited to personal device, will not result in any malicious activities or Threats, including but not limited to, Incidents, ransomware events, malware, and spyware infections, keylogger installations, removal of data, fraudulent or unauthorized access and/or activities, adversely impacting XYZ Music Environment or XYZ Music Data.

FRAMEWORK SERVICES AGREEMENT

BETWEEN

XYZ [REDACTED]

ABC [REDACTED]

EFFECTIVE DATE: April 1, 2024

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Exhibit O	Provider's Confidentiality and IP Assignment Agreement
Exhibit P	Provider's Confidentiality and IP Assignment Agreement for Provider Subcontractors
Exhibit Q	Form of Amendment (To Add Additional XYZ Music Entities India, Mexico, and Poland for Direct Invoicing)

FRAMEWORK SERVICES AGREEMENT

This Framework Services Agreement (this “Agreement”), which shall become effective as of April 1, 2024 (the “Effective Date”), is made and entered into on the Effective Date by and between **XYZ Music Entertainment**, a general partnership under the Laws of the State of Delaware, with a principal office located at [REDACTED] (“XYZ Music”), and **ABC** [REDACTED] a company incorporated under the Laws of the [REDACTED] (“Provider”). The Agreement includes all of the Exhibits, Appendices, Documentation, initial and future XYZ Music-Approved Statements of Work, and all other materials incorporated herein by reference.

WHEREAS, XYZ Music is a global recording music company seeking to outsource certain of its finance and accounting (“F&A”) and industry specific business (“ISB”) back-office services;

WHEREAS, to achieve such outsourcing, XYZ Music and Provider entered a Master Services Agreement with a term commencing on April 1, 2020, and continuing in effect through March 31, 2024 (the “2020 Agreement”);

WHEREAS, XYZ Music and Provider wish continue their business relationship after expiration of the 2020 Agreement according to the terms and conditions set forth herein;

WHEREAS, both Parties acknowledge and agree that this Agreement shall become effective immediately upon expiration of the 2020 Agreement without any lapse in the services that are being currently provided by Provider to XYZ Music or any lapse in the obligations from one Party to the other pursuant hereto; and

WHEREAS, notwithstanding that the Parties may have signed this Agreement before or after the Effective Date, both Parties acknowledge and agree that this Agreement is made as of and entered into as of the Effective Date.

NOW, THEREFORE, for and in consideration of the mutual promises, covenants, and agreements contained herein, the receipt, sufficiency, and adequacy of which are hereby acknowledged, the Parties, intending to be legally bound, hereby agree as follows:

1. Objectives and Structure of Agreement

1.1 Objectives

Both Parties acknowledge that a principal objective of XYZ Music in entering into this Agreement is to ensure that the Services enable XYZ Music to achieve the following business objectives: (i) reduce the overall cost of providing XYZ Music’s F&A and ISB back-office services by XYZ Music’s receipt of material and realizable savings; (ii) for XYZ Music to obtain unit-based pricing and the opportunity to acquire “units of service” on a variable

basis in instances agreed by the Parties such that the use and cost of services move with both the annual seasonality of the business and the longer-term changes that are taking place in the music industry (as the purchase of “physical” product is replaced by digital consumption); (iii) transact for services that will allow XYZ Music to benefit from an immediate reduction in cost through a “lift and shift” outsourcing model, while contracting with a partner capable of achieving future state transformations yielding further demonstrable savings through a gain-sharing mechanism; (iv) maintain effective “face-to-face” XYZ Music stakeholder interactions by retaining the following: (a) the knowledge base; (b) key relationships; and (c) effective communication with stakeholders; (v) the ability to implement the business process outsourcing (“BPO”) Services for each of F&A and ISB (each individually, “F&A BPO” and “ISB BPO” respectively, and together, the “BPO Services”) on a phased basis thereby mitigating risk by building upon successful implementations and increasing stakeholders’ buy-in; (vi) the ability to implement the BPO Services in a manner that will most effectively realize the benefits of the BPO Services while taking into account the serious change management issues associated with this type of project; (vii) optimizing resources by redeploying XYZ Music employees to higher value roles that allow for career enhancement opportunities and improved focus on the capabilities essential to the achievement of XYZ Music’s strategic objectives; (viii) optimizing performance by improving service delivery and customer experience both for internal and external customers; (ix) improving the management of cost, risk and results; (x) increasing innovation by partnering with providers that will bring technology leadership to XYZ Music; (xi) enabling XYZ Music’s adoption of better practices and solutions to improve business outcomes; (xii) providing “market” unit cost of services with flexibility in consumption of services to allow funding of future requirements; (xiii) receiving reliable and flexible Services from Provider; (xiv) ensuring Provider’s compliance with XYZ Music Policies and Procedures; (xv) obtaining highly-motivated Provider Personnel that will provide high-quality Services at a competitive cost; (xvi) compliance with the Sarbanes-Oxley Act and XYZ Music’s reporting requirements with respect to the Sarbanes-Oxley Act; and (xvii) complying with regulatory obligations and orders that are applicable to XYZ Music and XYZ Music’s Affiliates.

1.2 Agreement Structure

A. References to XYZ Music

References to “XYZ Music” apply to XYZ Music Entities in accordance with the following: (i) a reference includes XYZ Music Entities where this is expressly so stated; (ii) references to XYZ Music in the following definitions include XYZ Music Entities: XYZ Music Data, XYZ Music Intellectual Property, and Third Party Service Contracts; (ii) references to a license or grant by XYZ Music shall mean XYZ Music shall perform the act for itself and on behalf of XYZ Music Entities; (iii) references to assets being in the name of XYZ Music include XYZ Music Entities; (iv) references to the business, operations, methodologies, policies, procedures and the like of XYZ Music include XYZ Music Entities to the extent such XYZ Music Entities are receiving the Services; and (v) subject to the foregoing, other references to XYZ Music shall include XYZ Music Entities as XYZ Music reasonably designates and agreed to by Provider.

B. Due Diligence

Provider hereby acknowledges that XYZ Music has delivered or made available to Provider information and documents that support, including information and documents requested by Provider, Provider's ability to enter into this Agreement and perform its obligations under this Agreement in accordance with its terms (the "Due Diligence Documents"). Provider shall not be relieved of any of its obligations under this Agreement (including any Statement of Work), nor shall the charges be adjusted, as a result of any of the following: (i) Provider's failure to review the Due Diligence Documents; (ii) any inaccuracies, errors, or omissions contained in the Due Diligence Documents that Provider should have uncovered by using commercially reasonable efforts; or (iii) Provider's failure to request any information or documents from XYZ Music.

C. Parental Guarantee

The financial liabilities of Provider under this Agreement are irrevocably and unconditionally guaranteed by **ABC (Holdings) Limited**, as set forth in Exhibit K (Provider Guarantee).

D. Statements of Work

This Agreement's purpose is to establish the general terms and conditions applicable to Provider's provision of the Services to the XYZ Music Entities, as such Services may be further described in more detail in one or more written Statements of Work executed by the Parties, that incorporate this Agreement by reference and which are attached hereto as Exhibit B (Statements of Work). Each Statement of Work will, for each of the specific Services and processes outsourced to Provider, include all documents describing the scope of the Services, Service Levels to be met or exceeded by Provider, including the charges therefor, and any other terms and conditions specified for such Services and processes. Each Statement of Work shall be governed by the terms of this Agreement and, once signed, shall become part of and incorporated into this Agreement. As of the Effective Date, a Statement of Work for BPO Services, attached hereto as Exhibit B.1 (BPO Services Statement of Work), will exist under this Agreement.

E. Relationship to this Agreement

The Parties acknowledge and agree that each Statement of Work shall incorporate this Agreement by reference and is intended to supplement this Agreement with the specifics of a particular transaction or project. However, any Statement of Work may, on a case-by-case basis, include changes to the provisions of this Agreement (which shall be applicable to that Statement of Work only) to address, among other things, specific terms and conditions that address particular technical or commercial aspects unique to such Statement of Work. In such circumstances, the Statement of Work shall explicitly state that it is changing the provisions of this Agreement by specific reference in each case to the Section of this Agreement being changed and, where appropriate, the specific language of the Agreement that is being amended, modified, or deleted. Notwithstanding the foregoing and for the avoidance of doubt, in no event shall the terms

and conditions of any Statement of Work modify the terms and conditions of this Agreement unless: (i) the language purporting to modify this Agreement expressly references the applicable Section of this Agreement that expressly permits such modification and references the specific language of this Agreement that is being amended, modified, or deleted; and (ii) a Vice President-level member of XYZ Music's finance and accounting department and a Vice President or officer of higher authority of Provider personally execute the corresponding Statement of Work.

F. Local Terms and Conditions

Where necessary or appropriate, in XYZ Music's determination, for XYZ Music to receive the Services in a particular country or region, the Parties or their respective local Affiliates (provided that, unless otherwise agreed by the Parties, all such local Affiliates of Provider are wholly owned by Provider's parent company) shall enter into an additional, ancillary agreement in the form of an Appendix to the applicable Statements of Work or any an amendment to this Agreement detailing such additional terms and conditions applicable to such country or region ("Local Terms and Conditions"). The Local Terms and Conditions may address, as necessary, any specific legal, regulatory, human resource, or procedural requirements necessary for compliance with applicable local Law (e.g., tax or employment) or due to variations in practices (e.g., insurance), or additional terms as agreed to by the Parties. All Local Terms and Conditions shall be governed by the terms of this Agreement and each applicable Statement of Work. No Local Terms and Conditions shall be effective or enforceable unless and until approved by the XYZ Music responsible executive and the Provider responsible executive. All references to a Statement of Work shall include any Local Terms and Conditions that reference such Statement of Work. Local Terms and Conditions specific to a Statement of Work shall be attached to the applicable Statement of Work to which it relates.

G. Incorporation of Recitals

The Parties hereby incorporate by this reference the recitals set forth above, which recitals shall constitute a part of this Agreement as if fully set forth herein.

H. Amendment to Add Shared Service Centers as Parties to this Agreement

Provider acknowledges that due to U.S. and foreign tax implications and related financial operations requirements of XYZ Music, XYZ Music may require Provider to directly invoice certain XYZ Music Entities for Services provided thereto. As of the Effective Date, XYZ Music anticipates that such XYZ Music Entities shall be the XYZ Music shared service centers anticipated to be located in India, Mexico, and Poland. Following the applicable Transition Complete Date(s), upon XYZ Music's election, the Parties shall execute the amendments attached hereto and incorporated herein as Exhibit Q (Form of Amendment (To Add Additional XYZ Music Entities India, Mexico, and Poland for Direct Invoicing)) to amend this Agreement and add each of the XYZ Music Entities located in India, Mexico, and Poland as Parties to this Agreement for the foregoing purpose.

2. Term

2.1 Agreement Initial Term and Renewal

This Agreement shall be effective as of the Effective Date and shall continue so long as any Statement of Work is in effect. Each Statement of Work shall remain in effect for the Statement of Work Term of such Statement of Work, as described below.

2.2 Statement of Work Initial Term

Except as otherwise set forth herein, the term of each Statement of Work shall commence on the date set forth therein (the “Statement of Work Effective Date”) and continue until it expires or is terminated in accordance with the terms of this Agreement or the applicable Statement of Work (the “Statement of Work Initial Term”). The BPO Services Statement of Work shall be effective as of the Effective Date of this Agreement (the “BPO Services Statement of Work Effective Date”) and continue in effect until March 31, 2029 (the “BPO Services Initial Term”).

Each Statement of Work, including the BPO Services Statement of Work, may be renewed after the applicable Statement of Work Initial Term by XYZ Music and Provider in accordance with Section 2.3 (Statement of Work Renewal). With respect to each Statement of Work, the Statement of Work Initial Term and any Statement of Work Extended Terms are referred to herein collectively as the “Statement of Work Term”. With respect to the BPO Services Statement of Work, the Statement of Work Term is referred to herein as the “BPO Services Term”.

Provider shall give XYZ Music not less than one hundred eighty (180) calendar days written notice of any impending expiration of the Statement of Work, and such notice shall identify any fee increase applicable to any Statement of Work Extended Term that is about to commence. With respect to the BPO Services Statement of Work, this means that Provider shall provide XYZ Music with at least one hundred and eighty (180) calendar days prior written notice of the then-current expiration date of the BPO Services Term, identifying any and all applicable fee increases.

2.3 Statement of Work Renewal

No earlier than twenty-four (24) months and no later than eighteen (18) months prior to the then-current expiration of any Statement of Work Term, Provider may submit a written proposal to XYZ Music requesting that such Statement of Work Term be renewed for a Statement of Work Extended Term which is not less than four (4) years (such proposal, a “Statement of Work Extension Proposal”). For a period of one hundred and twenty (120) days after timely submission of a Statement of Work Extension Proposal by Provider (the “SOW Negotiation Period”) XYZ Music and Provider shall engage in good faith negotiations to enter into a Statement of Work for the Statement of Work Extended Term and to amend any provisions of this Agreement or the Statement of Work to be applicable for such Statement of Work Extended Term. XYZ Music agrees that it will not enter into any discussions with a third party for the

Services anticipated to be provided during the applicable Statement of Work Extended Term during the SOW Negotiation Period.

At expiration of the SOW Negotiation Period (or any termination or extension thereof which has been mutually agreed upon by the Parties in writing), if the Parties have not entered into a Statement of Work Extended Term by the last day of the SOW Negotiation Period then XYZ Music shall have no obligation to engage in further exclusive negotiations with Provider. If the Parties have not entered into the Statement of Work Extended Term before expiration of a Statement of Work Term, then the applicable Statement of Work shall expire upon expiration of the then-current Statement of Work Initial Term or then-current Statement of Work Extended Term, as applicable.

2.4 Relationship of Terms

If this Agreement is terminated or expires, all of the Statements of Work then-in-effect shall also terminate unless XYZ Music expressly requests otherwise. If XYZ Music requests that one or more Statements of Work not terminate as set forth in the preceding sentence, then the terms and conditions of this Agreement shall continue in full force and effect, and shall continue to apply, with respect to such Statements of Work for the respective Statement of Work Terms. If all Statements of Work are terminated or expire, this Agreement shall also terminate unless the Parties agree otherwise.

3. Services

3.1 Services - General

XYZ Music hereby engages Provider to perform all of the Services described in this Agreement, and Provider hereby accepts such engagement. Provider, subject to the terms and conditions hereof, shall assume full and total responsibility for obtaining all software, hardware, documentation, services, and other equipment and resources that Provider will need in order for Provider to provide the Services in accordance with this Agreement, except for that software, hardware, documentation, services, and other equipment and resources that are specifically identified herein as resources that are to be provided by XYZ Music. Provider shall provide the Services to XYZ Music and the Authorized Users as such Services may evolve or be otherwise supplemented, enhanced, modified, or replaced in accordance with this Agreement. Provider shall provide the Services in accordance with XYZ Music Policies and Procedures and, to the extent consistent with XYZ Music Policies and Procedures, Provider's best practices and as an integrated service offering without regard to the lines of business, intra-Affiliate relationships, or geographic locations within Provider's organization from which such Services are offered, or the internal profit center within Provider's organization to which the financial accounting for a Service is ultimately attributed. The Services to be provided by Provider include the following: (i) the services, functions, and responsibilities described in this Agreement, including those services, functions, and responsibilities described in a Statement of Work; (b) the services, functions, and responsibilities that are regular business duties related to the Services and have been performed

during the twelve (12) months immediately prior to the Effective Date; and (c) the services, functions, and responsibilities that are regular business duties related to the Services and reflected in those budget categories of XYZ Music's financial base case that Provider is assuming pursuant to the Charges and Resource Baselines Exhibit to each Statement of Work, or as made available to Provider as of the applicable Statement of Work Effective Date.

3.2 Towers (Service Categories/Descriptions)

Provider shall provide the Services with respect to each Tower described in each Statement of Work, and as otherwise provided under this Agreement.

3.3 Service Recipients

As of the Effective Date, Provider shall provide the Services to: (i) XYZ Music; (ii) XYZ Music's Affiliates; and (iii) such other entities (or persons) that XYZ Music designates and Provider agrees from time-to-time (collectively, the "XYZ Music Entities") at the rates and in accordance with the terms and conditions set forth in this Agreement; provided, however, that the addition or expansion of XYZ Music Entities that shall receive the Services shall lower the charges hereunder in the aggregate by taking into account the existing and future volumes of business between XYZ Music and Provider. For purposes of this Agreement, Services provided to the XYZ Music Entities shall be deemed to be Services provided to XYZ Music. In no event shall any XYZ Music Entity be obligated or required to receive Services from Provider, including in the event of a merger, acquisition, or other corporate event.

3.4 Divestiture

If a XYZ Music Entity or business unit of XYZ Music is divested (each such entity or business unit, a "Divested Entity"), XYZ Music may elect and Provider shall agree to either: (i) reduce the Services under this Agreement to reflect those Services that will be provided to the Divested Entity under a separate agreement between Divested Entity and Provider, without cost or penalty or additional charges; or (ii) require Provider to continue to provide Services to the Divested Entity under this Agreement, on the same terms and rates and to the same standards that such Services were previously provided, for a period that is the shorter of: (a) expiration of the then current applicable Statement of Work Term; or (b) up to eighteen (18) months after divestiture as may be required by XYZ Music. All fees shall be paid to Provider by the Divested Entity and upon execution of a separate agreement between the Divested Entity and Provider, XYZ Music shall be relieved of any payment or other liability relating to the provision of Services to the Divested Entity. Upon the completion of the divestiture, the fees under this Agreement shall be reduced in accordance with the pricing methodology set forth in the Charges and Resource Baselines Exhibit to a Statement of Work and the applicable other terms of a Statements of Work to reflect those Services that are now being provided to the Divested Entity under a separate agreement.

3.5 Implied Services

If any services, functions, or responsibilities not specifically described in this Agreement or in any Statement of Work are an inherent or customary part of the Services or required for the proper performance or provision of the Services, and in each case, are regular business duties related to the Services, they shall be deemed to be implied by and included within the scope of the Services to the same extent as if specifically described in this Agreement or in any Statement of Work.

3.6 Payment Services

A. For purposes of this Agreement: (i) “Incorrect Payments” shall mean the amounts of money paid arising from payment in a manner that results in an underpayment, incorrect payment, or receipt of payment past the due date and the imposition of a late payment fee, penalty, or interest; and (ii) “Overpayment” means the amount of money paid related to an actual duplicate payment or overpayment. To the extent that Incorrect Payments or Overpayments were caused by Provider or Provider Agents as a result of Provider’s failure to perform in accordance with this Agreement or the applicable Statement of Work, Provider shall pay or credit to XYZ Music an amount equal to the aggregate amount for the calendar year for such Incorrect Payment or Overpayments within sixty (60) calendar days after the end of the calendar year. XYZ Music may engage an outside entity who is not a Provider Competitor to provide (or XYZ Music may provide itself) audit and recovery activities relating to Overpayments.

B. All Overpayments recovered by XYZ Music shall be remitted to a separate account designated by XYZ Music, except that an Incorrect Payment or Overpayment recovered by XYZ Music, Provider or Provider Agents from a third party shall be the property of Provider to the extent that Provider has already compensated XYZ Music an equal or greater amount for the same Incorrect Payment or Overpayments within that same calendar year.

C. If either Party becomes aware of an actual or suspected Overpayment caused by Provider or Provider Agents as a part of the Services (each such event, an “Overpayment Event”), such Party shall promptly notify the other Party of each Overpayment Event. As soon as reasonably practicable following discovery or notice of such Overpayment Event, unless otherwise directed by XYZ Music, Provider shall: (i) use reasonable efforts to recover such Overpayment or, if directed by XYZ Music, allow XYZ Music to attempt such recovery in its sole discretion (provided that all recovery activities whether by Service Provider or XYZ Music shall be with Provider’s approval and at Provider’s sole cost and expense); and (ii) at Provider’s sole cost and expense, perform an analysis of each such Overpayment to determine whether there was an Overpayment and, if there was an Overpayment, the cause of the Overpayment. Provider shall promptly share the results of each analysis with XYZ Music, together with the underlying information supporting Provider’s determination. Upon written request to XYZ Music, which written notice shall provide sufficient detail with respect to the Overpayment, XYZ Music shall assist Provider as reasonably necessary in Provider’s performance of such analysis and recovery of any Overpayments, at Provider’s sole cost and expense.

D. The Parties shall perform a quarterly and calendar year review and “true-up” all amounts owed by Provider at the end of the applicable calendar year, and XYZ Music shall have the right to audit Provider’s payment activities and report content in accordance with the audit provisions of this Agreement.

3.7 Filing and Reporting Services

Provider shall be responsible for making any tax and other filings and meeting any reporting requirements defined by governmental authorities as set forth in this Agreement and the applicable Statements of Work. If XYZ Music becomes aware of additional requirements that are within the scope of the Services and notifies Provider thereof, then the Parties shall through the Change Control Procedure modify the applicable Statements of Work and Provider shall fulfill such requirement. Each Party shall cooperate with the other in identifying any new filing or reporting requirements that it becomes aware of while this Agreement is in effect and, as necessary, update this Agreement and/or the applicable Statements of Work through the Change Control Procedure. If and to the extent Provider fails to make proper or appropriate filings or undertake proper or appropriate reporting actions within the specified time frames as required by this Agreement or the applicable Statements of Work (or Provider fails to provide the necessary data or information to be contained in filings or reports to be made by XYZ Music in a timely fashion), Provider shall be responsible for any filing or reporting penalties, charges, fines or similar amounts and all associated interest to the extent such penalties, charges, fines, or similar amounts are the result of Provider’s failure to perform.

3.8 Outside Compensation

Provider shall not accept or have any right to any outside compensation (monetary or in kind), including revenue sharing, transfer agency fee, or other similar fees, credits or rebates, from third parties (“Outside Compensation”) relating to or in connection with the Services or this Agreement. All Outside Compensation shall be directed or applied as specified by XYZ Music. Except as otherwise provided in this Agreement, Provider shall only receive compensation directly from XYZ Music. All compensation received by Provider relating to or in connection with this Agreement and the Services shall be completely transparent. Provider shall not receive undisclosed compensation from outside parties. All invoices to XYZ Music shall reflect gross fees with any permitted Outside Compensation shown as a separate line item and then netted out.

3.9 Equipment and Software

A. Equipment

Provider shall provide the Services using, or through access to, the Equipment that is either (i) Provider Equipment, or (ii) XYZ Music Equipment. The Parties financial responsibilities with respect to Equipment (including any updates or refresh of such Equipment) are set forth in the Charges and Resource Baselines Exhibit to each Statement of Work. XYZ Music shall be responsible for the risk of loss of, and damage to, XYZ Music Equipment

(unless such XYZ Music Equipment is in Provider's custody). Provider shall be responsible for the risk of loss of, and damage to, Provider Equipment. Provider shall have operational, administrative, financial, and maintenance responsibility for all Provider Equipment (including upgrades, replacements, additions, and refreshes), used in connection with the provision of the Services. Except for XYZ Music Equipment and Software designated in a Statement of Work, Provider shall provide all standard Provider Equipment and Software required for Provider Personnel to perform the Services (including standard Microsoft Office products or compatible, functionally equivalent products) that are compatible and interoperate with the Systems, email and LAN/WAN servers of the XYZ Music Entities. Provider shall not make any changes to its Equipment or Software that would require XYZ Music to make a change to its Equipment or Software (including requiring XYZ Music to implement any new versions or upgrades). XYZ Music and Provider shall agree on the necessary set of application-specific Tools.

As of the Effective Date, all Provider Equipment which is either a laptop computer must be up-to-date capable of operating Virtual Desktop Infrastructure ("VDI") compatible hardware and software as set forth in each Statement of Work to comply with this Agreement. All such Provider Equipment in use as of the Effective Date shall meet, or shall exceed in all respects, the following minimum specifications: laptop computer with Core i7, 16GB RAM, 256GB SSD. As of the Effective Date Provider has informed XYZ Music that it requires 70 additional laptop computers to meet the foregoing requirement. Provider has agreed that it shall procure such laptop computers to meet the foregoing requirement. XYZ Music shall pay the lesser of (i) the actual difference between the costs associated with acquiring desktop computers instead of laptop computers, and (ii) twenty-nine thousand, one-hundred and twenty dollars (\$29,120). This amount shall be paid by XYZ Music pursuant to a properly issued invoice in accordance with Section 23 (Invoices and Payments), together with sufficient documentation for XYZ Music to validate the amount charged.

As more specifically described in each Statement of Work, Provider shall, upon Approval, and at no additional cost to XYZ Music other than any applicable ARCs and the terms of any New Services, replace, upgrade, and provide additional Provider Equipment as may be necessary for Provider to perform the Services in accordance with the Service Levels and as provided in this Agreement, provided that any such Provider Equipment which is acquired after the Effective Date to replace, upgrade or supplement then-existing Provider Equipment (i) will not include any desktop computers unless otherwise specified in a Statement of Work; and (ii) may only include laptop computers which meet, or exceed in all respects, the minimum specifications of Core i7, 16GB RAM, 256GB SSD or any other minimum specifications as may be set forth in an applicable Statement of Work, whichever is greater. For the avoidance of doubt, Provider may not acquire desktop computers to replace, upgrade or supplement then-existing Provider Equipment after the Effective Date unless otherwise specified in a Statement of Work. Notwithstanding anything to the contrary, any and all Provider Equipment shall at all times conform to, or exceed in all respects, the minimum specifications required to perform Services in accordance with this Agreement and all applicable Service Levels.

B. Software

Except for Software provided by XYZ Music as described in a Statement of Work, Provider shall procure all of the Software required by Provider to provide the Services, meet the Service Levels, or otherwise comply with this Agreement. Provider shall have operational, administrative, financial, and maintenance responsibility for all Provider Software and Tools owned or provided by Provider in connection with the Services, including the Provider Software and Tools identified in the applicable Statement of Work. If new Provider Software and Tools have any adverse cost, performance, integration, conversion, process, or functionality impact on XYZ Music or the Services, XYZ Music shall have Approval rights before the introduction of such new Software. XYZ Music shall have operational, administrative, financial, and maintenance responsibility for all Software and Tools that are identified in the applicable Statement of Work to be XYZ Music's obligation to procure.

C. Additional Provider Responsibilities

Without limiting the generality of this Section 3.9 (Equipment and Software), during each Statement of Work Term and the Termination/Expiration Assistance Periods, Provider shall perform the responsibilities set forth in Schedule 3 Section II.I of the Data Protection and Information Security Agreement.

3.10 Connections to XYZ Music Systems

Provider shall follow the obligations set forth in Schedule 3 Section II.J of the Data Protection and Information Security Agreement.

3.11 Technology Refresh Services

A. Technology Review

Provider shall review, at least once every twelve (12) calendar months during each Statement of Work Term, the performance of the System to determine the need for a Refresh to the Equipment and Software currently being used to provide the Services. Notwithstanding the foregoing, Provider shall perform a Refresh to all Equipment and Software such that it is capable of operating the updated versions of the Virtual Desktop Infrastructure ("VDI") compatible hardware and software as set forth in each Statement of Work to provide all Services required to implement this Section 3.11 (Technology Refresh Services) at no additional charge to XYZ Music except to the extent included in the Charges and Resource Baselines Exhibit to a Statement of Work or as otherwise Approved in a Statement of Work. Provider will upgrade and replace all aging Provider Equipment and Software, including but limited to, those that are not performant or hinders the agent work, in accordance with (i) the technical architecture and privacy and information security standards required pursuant to any Statement of Work, and (ii) as otherwise required to deliver the Services in accordance with this Agreement. Provider shall provide XYZ Music with prioritized availability and knowledge of Provider's new technology developments that have been discussed publicly at no additional cost (for the avoidance of doubt,

the reference to “no additional cost” refers only to the prioritized availability and knowledge, not provision of the actual technology) to the extent Provider has made such developments Generally Available. The Services provided pursuant to this Section 3.11 (Technology Refresh Services) are collectively referred to as “Refresh” and require Approval prior to implementation.

B. Refresh Order

In performing all Refresh Services and unless otherwise required pursuant to a Statement of Work or otherwise agreed to by the Parties in writing, Provider shall first replace the oldest Equipment and Software based on the in-service date or age of each such item. The Refresh schedule for each Tower shall be determined in accordance with the timeframe or events specified in the applicable Statement of Work, or as otherwise Approved by XYZ Music. All Refresh Services shall be performed in accordance with the schedule, technical architecture standards, and product catalogs required pursuant to the Statements of Work. XYZ Music reserves the right to Approve and modify the Refresh schedule based on XYZ Music’s business requirements, subject to the Change Control Procedure set forth in Exhibit M (Change Control Procedure) and as otherwise provided under this Agreement.

C. Financial Responsibility

The financial responsibility of the Parties for Equipment and Software used in conjunction with the Services, including Refresh, shall be as set forth under the Charges and Resource Baselines Exhibit to each Statement of Work, or as otherwise described in a Statement of Work.

D. Reports

No later than sixty (60) calendar days after the Effective Date, Provider shall prepare and deliver to XYZ Music for Approval a written Report setting forth Provider’s analysis of the technical currency and obsolescence of XYZ Music’s current in-service Equipment and Software in each of the Towers (the “Initial Refresh”), identifying all Equipment that is more than four (4) years old and containing a plan for the implementation of the Initial Refresh.

3.12 Projects

Provider shall perform Projects that are requested by XYZ Music. XYZ Music shall define and set the priority for Projects. The process to be followed with respect to Projects required by XYZ Music, if any, will be described in an applicable Statement of Work. The hours expended by Provider in preparing proposals or plans, or reporting on the status of Projects, shall not be charged to XYZ Music. Provider may not decline to perform a Project required by XYZ Music unless it is legally or contractually prohibited from performing such Project. Provider shall report monthly on Projects in accordance with Section 3.16 (Reporting Services). Provider shall perform Projects without impacting the established schedule for other tasks or the performance of the Services in accordance with the requirements of this Agreement.

3.13 Licenses and Permits

Provider is responsible for obtaining all licenses, approvals, permits, and authorizations required by applicable Law that Provider is required to have in order to perform the Services and, except as otherwise agreed to in writing by the Parties or as otherwise provided in this Agreement, Provider is financially responsible for all fees, costs, and taxes associated with such licenses, approvals, permits, and authorizations. Provider shall provide XYZ Music with all such licenses, approvals, permits, and authorizations within three (3) business days after Provider's receipt of XYZ Music's request. XYZ Music is responsible for ensuring that all licenses permit Provider to use any XYZ Music Software, XYZ Music Equipment, XYZ Music Systems, or XYZ Music Resources as required under this Agreement. If Provider fails to obtain any license, approval, permit, or authorization within ninety (90) calendar days after the Statement of Work Effective Date for the applicable Statement of Work under which any such license, approval, permit, or authorization is necessary or required, and such failure has a material adverse impact on the use or enjoyment of the Services by any of the XYZ Music Entities, XYZ Music may terminate the affected Services, or any affected portion hereof, without payment of any fees or charges; provided that XYZ Music shall pay Provider for all Services so terminated that have been rendered through the effective date of such termination.

3.14 Knowledge Transfer and Best Practices

A. Knowledge Transfer Process

Provider shall implement the knowledge transfer process set forth in this Agreement to ensure that Provider Personnel share the knowledge they have gained while performing the Services with XYZ Music and the XYZ Music Authorized Users. The knowledge transfer process shall ensure that important knowledge, information, and practices pass from Provider and Provider Personnel to XYZ Music and XYZ Music Authorized Users. At a minimum, such knowledge transfer processes will include Provider meeting with XYZ Music and designated XYZ Music Authorized Users at least once every twelve (12) calendar months, or more frequently as XYZ Music may request, to (i) explain how the System operates in connection with the provision of the Services, (ii) explain how the Services are provided, and (iii) provide such training, Documentation, and other materials as XYZ Music may require for XYZ Music to understand and operate the System and understand and provide the Services after the expiration or termination of the Agreement.

B. Performance Reviews

As part of the monthly performance reviews (to be conducted by Provider and Reported to XYZ Music pursuant to Exhibit E (Management Reports)), Provider shall report to the XYZ Music Outsourcing Relationship Executive on Provider-observed opportunities for the introduction of best practices into XYZ Music's information technology processes. On an annual basis beginning one (1) year after the Effective Date and annually thereafter, Provider shall work with the XYZ Music Outsourcing Relationship Executive to

develop and present a briefing to XYZ Music (i) to recommend best practice improvements to the Services, (ii) to assist XYZ Music in understanding how the use of such best practices is intended to align XYZ Music's technology investments with XYZ Music's business objectives, and (iii) to assist XYZ Music in analyzing the return on its technology investments related to the Services.

3.15 Technological Improvements; Innovation Fund

A. Technological Improvements. The Parties acknowledge that the Services will be subject to Technological Improvements to reflect and to utilize technological advancements and improvements in the System and in the method of delivering the Services consistent with Technological Improvements that are then commonly utilized using industry standards, including but not limited to cybersecurity standards set forth by the National Institute of Standards and Technology, adopted by leading service providers in fulfilling obligations under this Agreement. Any Technological Improvements desired by XYZ Music shall be implemented in accordance with the procedures set forth in this Section 3.15 (Technological Improvements). In furtherance of the foregoing, Provider shall provide prior written notice to XYZ Music annually (or on a more frequent basis as requested by XYZ Music) of any new developments, including new software and hardware developments, that Provider generally makes available to other customers of Provider or that Provider believes could have a significant impact on the quality or cost effectiveness of the Services. Provider shall use its best efforts to maintain the technology and processes used to provide the Services at a level that is comparable with the level of advancement generally used by leading providers of similar services. Except as otherwise provided in this Agreement, if XYZ Music decides to substitute a new, revised, or improved service for any Services then being provided, then XYZ Music shall receive a credit for the cost of the substituted Service against the cost of the new, revised, or improved service.

B. Innovation Fund. In addition to, and not in lieu of, Provider's requirements with respect to Technological Improvements as described in this Agreement, Provider shall make available to XYZ Music a fund to be used for Service innovations, process diagnostic assessments, ongoing process improvements and operations excellence, automation assessments, platform implementation and optimization support, process re-engineering and improvements in target operating model (the "Innovation Fund") in an amount of Fifty Thousand U.S. Dollars (\$50,000) for each Contract Year. In the event that a portion of the Innovation Fund marked for use in one Contract Year is not fully used in such Contract Year, then such unused portion ("Carry Over Amount") shall carry over to, and be in addition to, the amount of the Innovation Fund marked for use in subsequent Contract Years, provided that Carry Over Amount will expire and no longer be part of/available in the Innovation Fund to the extent it is not used within two (2) Contract Years following the Contract Year for which it was marked. Both Parties will put forth ideas for consideration of the Joint Innovation Council, which shall agree on utilization of the Innovation Fund in accordance with Exhibit D (Governance). Any ideas selected and approved by the Joint Innovation Council as qualifying for utilization of the Innovation Fund shall be evidenced as such in writing and reflected in an executed Change Request Form along with details associated with implementation of such Change. The Joint Innovation Council's approval shall include a commencement date and the duration of the approved project, and

Provider shall not be obligated to perform Services for such project until the Change Request Form is executed by the Parties. Section 15.4 (Gainsharing) of this Agreement, and the procedure described therein with respect to gainsharing, shall apply to any Innovation Fund project for which a gainsharing benefit may apply.

Notwithstanding anything else set forth in this Agreement, the Parties acknowledge and agree that any unused portion of the Innovation Fund will not be available for use upon expiration or termination of this Agreement or an applicable Statement of Work (and for further clarity, will not be carried over to any Statement of Work Extended Term). Any unused amount under the Innovation Fund will not be credited or set-off against any Charges.

For clarity, unused amounts, if any, under the Innovation Fund on or before March 31, 2024 shall not be carried over for use in any Contract Year under this Agreement.

3.16 Reporting Services

In order to monitor the status, performance, and quality of the Services provided to XYZ Music, Provider shall provide XYZ Music with the written Reports described in Exhibit E (Management Reports). Unless stated otherwise in a Statement of Work or as directed by XYZ Music, each Report shall be comprised of one (1) hard copy and one (1) electronic copy to be delivered to the XYZ Music Outsourcing Relationship Executive and each applicable Program Manager, together with a formal transmittal letter executed by the Provider Global Project Delivery Executive and the applicable Program Manager. If no time period is designated by XYZ Music, after the Reports have been defined and Approved, Reports are due five (5) business days after the end of the reporting period or issue occurring.

3.17 New Services

A. New Services Proposal

If XYZ Music requests that Provider perform any New Services, regardless of the line of business within Provider from which the New Services will be provided or any existing agreement between Provider and XYZ Music relating to such New Services, Provider shall, at no charge to XYZ Music, promptly prepare a New Services proposal for XYZ Music's consideration. Provider shall deliver such proposal to XYZ Music within a timeframe that is reasonable based on the scope of the proposed New Services and, if applicable, in compliance with any competitive bidding requirements. Each New Services proposal shall include, among other things, (i) a reasonably detailed project plan and a proposed price for the New Service, (ii) a reasonably detailed breakdown of such price or estimate, (iii) a reasonably detailed description of the service levels to be associated with such New Service, (iv) a schedule for commencing and completing each New Service, (v) a description of the new hardware or software to be provided by Provider in connection with each New Service, (vi) a description of the software, hardware, and other resources, including Billable Resource Unit utilization, necessary to provide the New Service, and (vii) additional facilities, hardware, software, and labor resources to be provided by XYZ Music in connection with the proposed New Services. If XYZ Music accepts Provider's

proposal, the Parties will negotiate a Statement of Work for such New Services to be mutually agreed by the Parties. New Services shall be governed by and provided in accordance with this Agreement. Upon execution of the applicable Statement of Work, the scope of the Services included in the Charges will be expanded and this Agreement will be modified to include such New Services and corresponding Statement of Work as part of the Services. The pricing proposed by Provider shall be reasonable and shall be no less favorable to XYZ Music than the pricing and labor rates set forth herein for the same or substantially similar resources and shall take into account the existing and future volume of business between XYZ Music and Provider. All New Services must be Approved.

B. Competing Bids

XYZ Music may elect to solicit and receive bids from third parties to perform any New Services. If XYZ Music elects to use third parties to perform New Services then the following terms shall apply: (i) such New Services shall not be deemed “Services” under the provisions of this Agreement; and (ii) Provider shall cooperate with such third parties as provided in Section 11.2 (Multi-Vendor Environment), and as otherwise may be required.

3.18 Performance Credit Adjustments

XYZ Music agrees to waive any Performance Credits due to XYZ Music as of March 31, 2024, provided that the value of any such Performance Credits shall be identified on the invoice issued by Provider for the month of March 2024 in accordance with Section 23 (Invoices and Payments) of the 2020 Agreement and accompanied by sufficient documentation for XYZ Music to validate the value so stated.

4. Transition

4.1 Generally

During the period (each, a “Transition Period”) beginning on the Statement of Work Effective Date of the applicable Statement of Work and ending on the date Provider commences providing a portion of the volume of the Services for a process within a Tower independently in a live environment (each, a “Soft Go-Live Date”), and the date on which Provider commences providing the full volume of Services for a process within a Tower independently in a live environment (each, a “Hard Go-Live Date”), all as set forth in the Transition Plan, Provider shall perform the services, functions, and responsibilities necessary to: (i) plan, prepare for, conduct, implement, and accomplish the transition and migration of the performance of the services that comprise a Tower from XYZ Music’s then current operating environment to Provider’s operating environment as described in the Provider solution narrative set forth in the applicable Statement of Work (the “Provider Solution”); (ii) plan, prepare for, conduct, implement, and accomplish the transition and migration of the performance of the services applicable to each Work Transition to/from XYZ Music’s then current operating environment to/from Provider’s operating environment, as applicable, as described in the Transition Plan; and (iii) conduct any required knowledge transfer from XYZ Music’s personnel to Provider Personnel (collectively, the

“Transition”). Provider’s responsibilities with respect to the Transition include the following: (i) performing the tasks set forth in the Transition Plan in accordance with and by each Milestone Date set forth in each Transition Plan attached to each Statement of Work, including in Exhibit B.1(d) (BPO Services Transition Plan) (each, a “Transition Milestone”); (ii) performing the Transition without interruption and without disrupting XYZ Music’s business operations, except as otherwise set forth in the Transition Plan; (iii) except as set forth in any Charges and Resource Baselines Exhibit to any Statement of Work or other similar, applicable Exhibit, Appendix, or provision) of the applicable Statement of Work, paying all costs associated with the Transition; and (iv) performing such other transition and migration tasks directly ancillary and related to the Transition as are necessary to enable Provider to complete the Transition and provide the Services.

4.2 Transition Plan

The Transition shall be conducted in accordance with a written plan which shall include, at a minimum, the following: (i) a description of the XYZ Music operations Provider will Transition; (ii) a description of the methods and procedures, personnel, and organization that Provider shall use to perform the Transition; (iii) a schedule of Transition activities; (iv) a detailed description of the respective roles and responsibilities of XYZ Music and Provider; and (v) such other information and planning as are necessary to ensure that the Transition takes place on schedule and without disruption to XYZ Music’s operations (the “Transition Plan”). A draft of the Transition Plan for the BPO Services as of the BPO Services Statement of Work Effective Date is set forth in Exhibit B.1(d) (BPO Services Transition Plan). Within fifteen (15) calendar days after the Statement of Work Effective Date, Provider shall be responsible for revising and finalizing the Transition Plan; provided that: (i) Provider shall cooperate and work closely with XYZ Music in finalizing the Transition Plan (including incorporating XYZ Music’s comments and modifications); and (ii) the final Transition Plan (and any changes thereto) shall be subject to written Approval by XYZ Music. Within thirty (30) calendar days after the Statement of Work Effective Date, Provider shall deliver to XYZ Music for XYZ Music’s review, comment, and Approval a written detailed project work plan based on and consistent with the final Transition Plan which shall elaborate on the overall transition, migration, and implementation process.

4.3 Conduct of Transition

A. XYZ Music shall perform those tasks that are designated to be XYZ Music’s responsibility in the Transition Plan; provided that XYZ Music shall not be obligated to perform any tasks during the Transition Period that are not specifically set forth as XYZ Music’s responsibilities in the Transition Plan. XYZ Music reserves the right to monitor, observe, and participate in the Transition and, to the extent applicable, test any technical elements of the Transition.

B. Provider shall provide cooperation and assistance required or requested by XYZ Music in connection with XYZ Music’s evaluation or testing of the Deliverables as set forth in the Transition Plan. Provider shall identify and resolve any problems that may impede or delay the timely completion of each task in the Transition Plan that is

Provider's responsibility and shall use reasonable efforts to assist XYZ Music with the resolution of any problems that may impede or delay the timely completion of each task in the Transition Plan that is XYZ Music's responsibility.

C. No functionality of XYZ Music's then-current environment shall be discontinued until Provider demonstrates to XYZ Music's reasonable satisfaction that the affected processes and operations have been successfully migrated to Provider's target environment and are functioning properly in that environment.

D. During the Transition Period, Provider shall perform the operation readiness and other tests described in the applicable Transition Plan. Responsibility for the provision of the testing environments shall be set forth in the Transition Plan.

E. Upon request by XYZ Music, Provider shall use commercially reasonable efforts to make its personnel available on a temporary basis during the Transition Period for the backfilling of positions of XYZ Music personnel performing the services, functions, and responsibilities that are to be assumed by Provider who leave or have resigned from XYZ Music prior to the applicable Hard Go-Live Date for each Tower at the comparable skill levels (but for clarity comparable skill levels shall not be deemed to include such personnel provided by Provider having specific knowledge of specific Services provided to XYZ Music (such as the BPO Services) or the policies and procedures related thereto). Any mutually agreed Out-of-Pocket Expenses incurred by Provider for providing and making such Provider Personnel available shall be paid by XYZ Music.

4.4 Transition Milestones and Critical Milestones

A. If any Transition Milestone that has been designated as critical and has specific obligations and credits associated with it, as set forth in the applicable Transition Plan (each, a "Critical Milestone"), is not completed on or before the given Milestone Date for such Critical Milestone and to the extent such failure was caused by Provider, then: (i) XYZ Music may delay the payment of the Transition charge allocated to such Critical Milestone as set forth in the Charges and Resource Baselines Exhibit of each applicable Statement of Work, until Provider successfully completes such Critical Milestone; and (ii) Provider shall pay to XYZ Music the applicable credit, if any, set forth in such Charges and Resource Baselines Exhibit to the applicable Statements of Work (each, a "Transition Milestone Credit"). In addition, unless otherwise set forth in a Statement of Work, except as a result of any action or inaction of XYZ Music, if Provider fails to successfully complete any Critical Milestone by the Milestone Date or otherwise causes a delay in the completion of the Transition, Provider shall be responsible for reimbursing XYZ Music for all of the documented costs and expenses XYZ Music incurs (including internal costs and third party extension or replacement costs) due to such failure or delay. XYZ Music's rights to Transition Milestone Credits, or delaying payment of Transition charges and reimbursed amounts, shall not be considered to be liquidated damages in respect of any failure associated with Critical Milestones and shall not limit XYZ Music's right to recover other damages incurred by XYZ Music as a result of Provider's failure or to pursue other rights and remedies including termination

rights pursuant to Section 31 (Termination), if applicable. If a Transition delay is attributable to Provider in connection with the BPO Services Statement of Work, Provider will provide Transition services at no additional charge to XYZ Music until Transition is complete. As of the BPO Services Statement of Work Effective Date, the Parties acknowledge and agree that no Transition charges are nor shall be payable by XYZ Music under such Statement of Work.

B. If XYZ Music terminates for cause this Agreement in whole or in part pursuant to Section 31.3 (Termination for Cause by XYZ Music), then at XYZ Music's request, Provider shall deliver to XYZ Music and XYZ Music shall own, any and all Deliverables and work in progress existing as of the effective date of termination or the end of any Termination/Expiration Assistance Period, whichever is later. Such termination right is in addition to XYZ Music's termination rights otherwise set forth in this Agreement.

C. XYZ Music may require Provider to, and Provider shall, extend or reschedule any or part of the Transition for XYZ Music's convenience upon notice to Provider, subject to the Change Control Procedure; provided, however, that any such change shall be at no additional cost to XYZ Music to the extent that work activities related to such extension or rescheduling can be performed properly by Operational Resources then assigned to XYZ Music without breaching the Agreement, any Statement of Work, or Service Levels. Provider shall use commercially reasonable efforts to perform such work activities without impacting the performance of the Transition in accordance with the Transition Milestones, the Critical Milestones, or the overall Transition timelines. If it is not possible to avoid such an impact, Provider shall notify XYZ Music of the anticipated impact and the Parties shall discuss the situation, including the following: (i) Provider obtaining XYZ Music's consent prior to proceeding with such work activities despite such impacts; and (ii) XYZ Music, in its sole discretion, determining to: (1) forgo or delay such work activities; or (2) adjust the Transition work to be performed by Provider or the Transition schedules associated therewith (including the Transition Milestones and the Critical Milestones) to accommodate XYZ Music's request for rescheduling of the Transition. If there are not enough Operational Resources available through reprioritization, then Provider may propose and XYZ Music may agree to the use of additional resources using the Change Control Procedure, or XYZ Music may withdraw its request to extend or reschedule. Notwithstanding the foregoing, XYZ Music shall be responsible for any incremental costs incurred by the Provider as a result of any change in the Transition initiated by XYZ Music.

D. During the final phase of the Transition Plan for each Work Transition, the Parties shall update the Statement(s) of Work, Service Level Agreement(s), and any other impacted documents applicable to such Work Transition that need to be updated in order to complete the full transition and migration of the applicable services as contemplated by the Parties in connection with such Transition. The foregoing requirement shall be deemed a Critical Milestone regardless of whether it has been designated as critical in the applicable Transition Plan.

4.5 Transition Management

Provider shall meet with XYZ Music at least once every week during the Transition Period, in person or via conference call, to discuss Provider's and XYZ Music's progress in performing their respective responsibilities and meeting the timetable set forth in the Transition Plan (including any associated Deliverables and Milestones). Promptly upon receiving any information indicating that either Party has not or may not be able to perform its responsibilities or meet the timetable set forth in the Transition Plan, Provider shall disclose such information to XYZ Music and shall identify for XYZ Music's consideration and Approval specific measures to address such delay and mitigate the risks associated therewith.

4.6 Conditions Precedent

Neither Party shall be obligated to complete the Transition, or a particular part of the Transition, or otherwise perform its obligations under this Agreement, if there is any government act, ruling, or prohibition, or any license, consent, permit, approval, or authorization of any person or entity, or any notice to any person or entity: (i) the granting or removal of which is required for the consummation of the transactions contemplated by this Agreement; or (ii) which is necessary to, restraining or enjoining such Transition or part thereof or the performance of such obligations ((i) and (ii) above, each, an "Official Action"). If any such Official Action is issued, XYZ Music may elect (after consultation with Provider) to: (i) have Provider implement that portion of the Transition or perform that portion of Provider's obligations under this Agreement as to which such Official Action is not applicable and equitably adjust the remaining Services and charges; and/or (ii) have each Party continue to use all commercially reasonable efforts to cause to have such Official Action lifted or stayed. If performance of the Transition or any of Provider's obligations, in whole or in part, are or become prohibited or delayed by an Official Action beyond the control of either Party, Provider shall develop and, upon XYZ Music's Approval, implement a suitable workaround as per Change Control Procedure.

5. Unapproved Work

5.1 XYZ Music Approval

A. Notwithstanding anything to the contrary contained in this Agreement, any Approval requiring the authorization of payment, or imposing an obligation on XYZ Music for any fees, costs, or other expenses pursuant to this Agreement, must be obtained by Provider in writing from XYZ Music's Senior Vice President ("SVP"), Finance or a designee thereof subject to the following exceptions: any consent, authorization, amendment, or other Approval in an amount of Six Hundred Thousand U.S. Dollars (\$600,000.00) or less per occurrence can be Approved by the XYZ Music Outsourcing Relationship Executive, or his designee, in accordance with XYZ Music Policies and Procedures regarding such Approvals.

B. As to New Services, each Approval shall be a signed and numbered Statement of Work. Provider's monthly invoices shall detail separately Charges for New Services, with reference to the specific Statement of Work constituting the Approval. Each calendar month,

the XYZ Music Outsourcing Relationship Executive (or his or her designee) and the Provider Global Delivery Lead shall meet to review the Services invoiced to XYZ Music in the previous calendar month, including the status of issues, if any, relating to Charges for New Services. XYZ Music will make a good faith attempt to raise any disputes relating to any Approval of the Services performed promptly after discovery of such dispute.

5.2 Right to Reject

XYZ Music reserves the right to reject any Services not Approved in accordance with this Agreement. Approval is not required for those Services, other than New Services, included in the Charges, including any ARCs or RRCs as to such Services.

5.3 Failure to Obtain Approval

A. If Provider provides Services (or services other than those specified in this Agreement) to XYZ Music without obtaining Approvals, such Services (or other services) shall be deemed to be a gratuitous effort on the part of Provider and Provider shall have no claim whatsoever against XYZ Music therefor (it being understood by the Parties that Provider shall have no obligation to continue to provide such gratuitous Services (or other services) unless Approved, in which case XYZ Music shall compensate Provider in accordance with this Agreement). Any services other than those specified under this Agreement that are Approved under the preceding sentence shall become a part of the Services and shall be subject to the terms and conditions of this Agreement.

B. XYZ Music shall provide Provider with notice of any such gratuitous effort to the extent such gratuitous effort is known by XYZ Music's Governance Team as described on Exhibit D (Governance).

6. Service Levels

6.1 Service Level Agreements

Provider shall perform the Services in accordance with this Agreement and all of the Service Levels. Provider shall utilize the necessary measurement and monitoring tools and procedures required to measure and report Provider's performance of the Services against the Service Levels on at least a monthly basis, except as may otherwise be agreed between the Parties with respect to Services performed less frequently than monthly as described in the Service Levels. Such measurement and monitoring shall permit reporting at a level of detail sufficient to verify compliance with the Service Levels and shall be subject to audit by XYZ Music. Provider shall provide XYZ Music with information and access to such tools and procedures upon request, for purposes of verification. Any resources utilized by Provider pursuant to the terms hereof shall incorporate methods permitting measurement of all performance-related Service Levels. Generally, in performing the Services, Provider will meet or exceed the following standards of performance (individually and collectively, the "Performance Standards"): (i) the standards that were being performed in the twelve (12) months prior to the applicable Statement of Work

Effective Date; (ii) the quantitative and qualitative standards of performance set forth in the Service Level Agreements incorporated in each Statement of Work, including in Exhibit B.1(b) (BPO Services Service Level Agreements) (the “Service Levels”); and (iii) diligently, in an accurate and timely manner, and in accordance with any applicable time schedules set forth in this Agreement (including any Statement of Work issued under it).

6.2 Root Cause Analysis and Resolution

Upon Provider’s discovery of, or, if earlier, Provider’s receipt of a notice from XYZ Music in respect of, Provider’s failure to provide any of the Services in accordance with the Service Levels or this Agreement, Provider shall, within a reasonable period of time (and in any event within five (5) business days), conduct a Root Cause Analysis to identify the cause of such failure. Provider shall, within the timeframes prescribed in the applicable Statements of Work, and, in any event, within three (3) business days after such discovery or notice: (i) correct such failure without charging XYZ Music additional fees; (ii) provide XYZ Music with a written Report detailing the cause of, and procedure for correcting, such failure; and (iii) provide XYZ Music with reasonable assurances that such failure will not recur and that any correction shall not result in additional fees to XYZ Music. Notwithstanding the foregoing, in the event that one of the foregoing Root Cause Analysis remedies requires the involvement of a XYZ Music third party supplier and such XYZ Music third party supplier cannot meet the timescales set forth in this Section, then XYZ Music shall extend the timeframe for implementation of the foregoing remedies as necessary. If the Root Cause Analysis demonstrates that such failure was not caused by Provider, Provider shall timely cooperate with XYZ Music in correcting such failure, subject to mutually agreed additional fees pursuant to a Change Request. If such failure was wholly or partially caused by Provider, Provider shall also timely cooperate with XYZ Music in correcting such failure; however, Provider shall not be entitled to any fees associated with any such failed Service, unless otherwise agreed by the Parties.

6.3 Cost and Efficiency Reviews

Provider shall perform, on an annual basis, cost and efficiency reviews of the Services, and make recommendations to XYZ Music for reducing the cost of the Services to XYZ Music. Provider’s recommendations shall include methods to efficiently utilize resources chargeable to XYZ Music under the Agreement, including the following:

- A. tuning or optimizing the System used to perform the Services;
- B. use and analysis of the results of predictive modeling, trend analysis, and monitoring tools;
- C. analysis and isolation of infrastructure design, configuration and implementation flaws;
- D. recommendations for aligning technology processes, tools, skills, and organizational changes with XYZ Music’s business requirements; and

E. employing new technologies in use by Provider to replace existing technologies used by Provider to provide the Services, even if the use of such new technologies will result in a reduction in monthly revenues to Provider under the Agreement.

In the event Provider fails to include in its annual recommendations employment of new technologies (made Generally Available by Provider to other customers for at least six (6) months) to replace existing technologies used by Provider to provide the Services, and (i) XYZ Music demonstrates through the internal dispute resolution process that employment of such new technologies would result in a reduction of the Charges for the Services, and (ii) if XYZ Music elects to implement such new technology in accordance with this Agreement, XYZ Music shall receive a Ten Thousand U.S. Dollar (\$10,000) credit off of any Charge associated with the implementation of any such new technology by Provider.

6.4 Step-in Rights

A. Step-in Event

A “Step-in Event” would be triggered in the event (i) three (3) or more consecutive Service Level Failures of the same Service Level, (ii) four (4) or more Service Level Failures of the same Service Level in any rolling twelve (12) month period, (iii) the amount of the Performance Credits in two (2) consecutive calendar months, or any four (4) months in any rolling six (6) month period, equals or exceeds the At-Risk Amount for the Service Levels in each applicable calendar month, (iv) a regulator advises either Provider or XYZ Music in writing of circumstances that requires, in XYZ Music’s reasonable discretion, the exercise of XYZ Music’s Step-in rights pursuant to this Section, or (v) Provider fails to restore XYZ Music Data pursuant to Section 25.7 (XYZ Music Data) of the Agreement.

B. Notice by XYZ Music in case of Step-in

Without prejudice to any other rights XYZ Music may have under this Agreement or any applicable Statement of Work, immediately upon the occurrence of a Step-in Event, XYZ Music may take any actions in its discretion (either by itself or in combination with the engagement of a third party) to ensure the provision of the Services in accordance with the terms and conditions of this Agreement (“Step-in”). In the event and to the extent that any such Step-in requires a XYZ Music third party to have access to Provider’s Confidential Information or Provider Service Location, then such third party shall not be a Provider Competitor. Upon the exercise of a Step-in, XYZ Music shall notify the Provider at least five (5) business days in advance in writing of the following:

- (1) the actions it anticipates taking with respect to the Services impacted;
- (2) the applicable Step-in Event;
- (3) the date it anticipates the Step-in will commence; and

(4) whether XYZ Music intends a third party to exercise XYZ Music's Step-in rights.

Notwithstanding the foregoing, XYZ Music's failure to provide Provider with the foregoing information shall not preclude or otherwise impact XYZ Music's Step-in rights pursuant to this Section 6.4 (Step-in Rights).

C. Reasonable Cooperation by Provider

Upon a Step-in, Provider shall be relieved of its obligations to perform the Services that are the subject of the Step-in ("Impacted Services"), and Provider shall take all reasonable steps to cooperate fully with XYZ Music and any third parties engaged by XYZ Music to undertake the Step-in, including providing all reasonable assistance and reasonable access to the work-in-progress in connection with XYZ Music's exercise of its rights. XYZ Music shall keep the Provider reasonably informed of, and reasonably included in, the actions taken by XYZ Music or any third parties in exercising its rights in order to assist the Provider to resume providing the Services as promptly as possible following commencement of the Step-in. XYZ Music shall not be liable for and shall not pay any Charges for any of the Impacted Services during the period of the Step-in. If the duration of the Step-in exceeds two (2) full calendar months, XYZ Music may either (i) terminate the Impacted Services, without the payment of any Termination Charges, or (ii) continue to provide the Step-in at XYZ Music's cost. Provider shall be liable for XYZ Music's reasonable costs incurred as a result of the exercise of its right to Step-in, including any third party costs incurred by XYZ Music in the exercise of its right to Step-in (the "Step-in Costs"). Without limiting XYZ Music's other rights with respect to the breach giving rise to XYZ Music's right to Step-in, the Provider's maximum obligation to reimburse XYZ Music for Step-in Costs incurred by XYZ Music in connection with the exercise of its Step-in rights pursuant to this Section 6.4 (Step-in Rights) shall not exceed the equivalent of two (2) full calendar months of Charges otherwise due and payable by XYZ Music to Provider for the Impacted Services.

D. Exclusions of Provider Obligations

During the Step-in period, the Provider shall not be liable for the acts or omissions of XYZ Music or any third party in providing the Impacted Services.

If, during the Step-in period, XYZ Music's Step-in actions prevent Provider from providing other (non-impacted) Services ("Other Services") or from performing Other Services in accordance with the Service Levels, Provider shall be relieved of its obligations of such Other Services and XYZ Music may include the Other Services in the Impacted Services and such Other Services shall be subject to the Step-in.

E. Step-out

Before ceasing any Step-in, XYZ Music shall deliver a written notice ("Step-out Notice") to the Provider, specifying in reasonable detail (to the extent that it is reasonably practicable under the circumstances) the date on which XYZ Music anticipates that

Provider shall resume the Impacted Services (“Step-out Date”). Following agreement of the Step-out Date, Provider shall devote sufficient resources to ensure that delivery of the Impacted Services are restored to the Service Levels from the Step-out Date or as otherwise agreed by the Parties in writing.

7. Benchmarking

7.1 Benchmarking Process

A. Timeframe

Beginning one (1) year after a Statement of Work Effective Date, XYZ Music, may, at its own cost (except as set forth below), initiate a Benchmark analysis of the Provider’s performance of the Services (or any portion thereof) under such Statement of Work, including the Charges and Service Levels relating thereto.

B. Benchmarking Procedures

Each Party shall have the right to review the Benchmarking procedures to be utilized by the Benchmarker. If and to the extent XYZ Music and Provider agree on specific directions, processes, or methodologies to be provided to or applied by the Benchmarker, the Benchmarker shall be provided such directions and instructed to apply such processes or methodologies. Otherwise, the Benchmarker shall be instructed to use its professional judgment as to the appropriate processes and methodologies to be applied.

C. Confidentiality

The Benchmarker shall execute an appropriately protective confidentiality agreement no less protective of the Parties’ Confidential Information than the confidentiality terms described in this Agreement and that contains standard non-disclosure agreement protections, provided that Provider shall have no obligation hereunder to (i) provide the Benchmarker any proprietary information or data relating to Provider’s agreements with other customers, or (ii) disclose to the Benchmarker Provider’s cost of delivering the Services under this Agreement.

D. Process

The Benchmarker shall have no financial incentive in the outcome of its analysis. The Benchmarker shall compare (using data from a representative sampling of contracts) the quality, resource utilization, and Charges of the Services against the quality, resource utilization, and charges of not less than three (3) other comparable service providers performing similar services to ensure that XYZ Music is obtaining pricing and levels of service that are competitive with market prices and levels of service, given the nature, volume, performance standards, and geographic location from where the Services are provided, and type of Services provided by Provider hereunder (“Benchmarking”). In making this comparison, the Benchmarker

shall ensure its comparison accounts for the following: (i) whether vendor transition-in charges are paid by the customer as incurred or amortized over the term of the agreement; (ii) the extent to which vendor pricing includes the purchase of customer's existing assets and on what basis; and (iii) the extent to which vendor pricing includes the cost of acquiring future assets. The Benchmarkers shall identify such factors considered and the methodology used to account for such factors in its comparison. Provider shall cooperate to facilitate the Benchmarking and shall meet with XYZ Music and the Benchmarkers prior to and throughout the Benchmarking. The Benchmarkers shall conduct the Benchmarking in a manner that does not unreasonably interfere with Provider's ongoing service operations.

7.2 Benchmark Adjustments

A. Preliminary Report

The Benchmarkers shall issue a preliminary written report reflecting its findings. The Parties will review the preliminary written report and provide any comments in writing to the Benchmarkers and the other Party within fifteen (15) business days after receipt of the analysis. If either Party has reason to believe that the report is inaccurate, they shall notify the Benchmarkers of the information being contested along with such documentation as is necessary to support the claim and copy the other Party on all such correspondence. The Benchmarkers will be instructed to consider any such comments received, and review any such claims of inaccuracy made, within such fifteen (15) business day period (including meeting with both Parties to attempt to resolve any such matters and make any necessary adjustments to its findings prior to the report being considered final) and, after such consideration and making any appropriate adjustments, to issue a final written report. Notwithstanding the foregoing, the Benchmarkers may accept the comments of either Party in its sole discretion or reject them providing a justification for such rejection. The Benchmarkers' acceptance or rejection of each of the Parties' comments shall be considered final and both Parties acknowledge and accept the Benchmarkers' authority to include or reject such comments. XYZ Music shall have full access to all Benchmarking results and disclosed records in connection with the Benchmarking report; provided, however, that such report shall be held as Provider's Confidential Information and shall not be used for any purpose except as set forth in this Agreement.

B. Results of Benchmark

Following receipt of the Benchmarkers' report upon XYZ Music's request the Parties shall promptly meet and in good faith discuss and determine whether an agreement may be reached to effect an adjustment to the Charges and/or Service Levels to make it competitive and consistent with industry standard levels of service.

C. Adjustment of Charges

Upon the Parties' mutual agreement to an adjustment in the Charges and/or the Service Levels that were the subject matter of the Benchmarking report, such changes shall become effective pursuant to a Change Request and beginning in the calendar month

immediately following the month in which such agreement was made. If the Parties are not able to agree to an adjustment to the Charges and/or the Service Levels within ninety (90) calendar days following the beginning of the good faith discussions described in this Section, then XYZ Music may terminate this Agreement in accordance with Section 31.9 (Termination for Failure to Implement Benchmark Adjustments).

8. Service Locations

8.1 Service Locations

The Services shall be provided from (i) the XYZ Music Service Locations, (ii) the Provider Service Locations, and (iii) any other shared service center or other location designated by XYZ Music or Provider; provided, however, that any such other shared service center or location must be Approved in advance ((i), (ii) and (iii) collectively, the “Service Locations”).

8.2 Shared Environment

Prior to migrating or relocating any of the Services to a Provider Shared Service Center (other than those designated as Provider Shared Service Centers as of the Effective Date), Provider shall provide to XYZ Music for Approval, a proposal for the migration or relocation of such Services, including benefits, savings, and risks to XYZ Music during each Statement of Work Term and upon the expiration or termination of this Agreement. XYZ Music shall evaluate such migration or relocation proposals in good faith, acknowledging the potential that such relocation, while achieved at no additional cost or savings to XYZ Music, may enable Provider to optimize its financial delivery commitments under this Agreement.

8.3 Safety Procedures

Provider shall, subject to Approval, maintain and enforce at the Provider Service Locations safety procedures that are at least (i) equal to industry standards, at least satisfying SOC 2 compliance, for similar service locations used to provide substantially similar services, and (ii) as rigorous as those procedures in effect at the Provider Service Locations as of the Effective Date. At all XYZ Music Service Locations, Provider shall comply with XYZ Music Policies and Procedures with respect to safety, health, facility security, and the environment that are provided or otherwise made available to Provider (including those generally posted at XYZ Music Service Locations or through other means used by XYZ Music to disseminate such information to employees and contractors), and shall take all actions necessary to avoid injury, property damage, spills, or emissions of hazardous substances, materials, or waste and other dangers to persons, property, or the environment. To the extent required by XYZ Music, Provider Personnel shall receive prescribed training from XYZ Music prior to entering XYZ Music Service Locations.

8.4 Security Procedures and Personal Information Incident Requirements

A. As more specifically required pursuant to each applicable Statement of Work, Provider shall adopt security measures for itself and its employees (and also for recommendation for adoption to XYZ Music for its employees) which shall be consistent with (and incorporate) the applicable XYZ Music Policies and Procedures, all regulatory obligations and orders applicable to XYZ Music and XYZ Music Affiliates in accordance with Schedule 3, Section II.D of Data Protection and Information Security Agreement.

B. Identification of Possible Instances of Identity Theft

Provider acknowledges that XYZ Music has certain obligations as set forth in Schedule 3, Section E of the Data Processing & Information Technology Agreement.

C. Personal Information Incident Requirements

Provider agrees to follow the obligations set forth in Section 3 of the Data Processing & Information Security Agreement.

D. Regulatory Examinations

Provider agrees that any financial institution regulator with jurisdiction over XYZ Music, including, but not limited to, the FDIC, may examine, oversee, and audit Provider's activities relating to the performance of this Agreement and the Services. Provider shall provide all information reasonably requested by the regulator in connection with any such examination and provide reasonable assistance and access to all equipment, records, and systems reasonably requested by the regulator.

8.5 Access To XYZ Music Service Locations

XYZ Music shall provide Provider with access to and use of the XYZ Music Service Locations (or equivalent space) as necessary for Provider to comply with the terms of this Agreement. All XYZ Music owned or leased assets provided for the use of Provider under this Agreement shall remain in XYZ Music Service Locations unless XYZ Music otherwise agrees in writing. Provider shall have no tenancy, or any other property or other rights, in XYZ Music Service Locations. Additionally, all leasehold improvements made by or for Provider during any Statement of Work Term shall be and remain part of the XYZ Music Service Locations. All such improvements shall be made: (i) only with Approval; and (ii) at Provider's sole cost and expense. Provider agrees that, as of the Effective Date, the XYZ Music Service Locations are sufficient, together with the Provider Service Locations, to enable Provider to provide the Services as required by this Agreement. All XYZ Music Service Locations are provided hereunder on an "as is, where is" basis.

8.6 Furniture, Fixtures, and Equipment

The facilities provided by XYZ Music for the use by Provider will be generally comparable to the standard space then occupied by similarly situated XYZ Music employees. XYZ Music shall provide for the use of Provider Personnel occupying space at XYZ Music Service Locations, office furniture and fixtures generally comparable to the furniture and fixtures provided to similarly situated XYZ Music employees. Provider Personnel using the facilities provided by XYZ Music will be accorded reasonable access to the communications wiring in such facilities (including fiber, copper, and wall jacks) and the use of certain shared office equipment and services such as photocopiers, local, and long distance telephone service for Service-related calls, mail service, office support service (e.g., janitorial), heat, light, and air conditioning. Provider shall be responsible for providing all other office, data processing, and computing equipment and services needed by Provider or Provider Personnel to provide the Services, and for upgrades, improvements, replacements, and additions to such equipment and services.

8.7 XYZ Music's Responsibilities Regarding Utilities

XYZ Music shall provide, or shall cause Provider to be provided with, site maintenance, management, and administration, and similar services, for XYZ Music Service Locations used by Provider or Provider Personnel to provide the Services, and maintain at historical levels the building and property electrical systems, water, sewer, lights, heating, ventilation, and air conditioning ("HVAC") systems, physical security services, general custodial and landscape services, including monitoring and maintaining the uninterruptible power supply ("UPS") system, and air handlers and water chillers, and shall pay for electrical power, water, and natural gas used or consumed by Provider or Provider Personnel at such XYZ Music Service Locations. XYZ Music shall maintain the account relationship with the power utility, the water utility, and the natural gas utility companies.

8.8 Provider's Responsibilities Regarding Facilities

Except as provided in Sections 8.4C (Personal Information Incident Requirements), 8.6 (Furniture, Fixtures and Equipment), and 8.7 (XYZ Music's Responsibilities Regarding Utilities), Provider shall be responsible for providing all furniture, fixtures, equipment, space, tools, vehicles, and other facilities required to perform the Services and all upgrades, improvements, replacements, and additions to such furniture, fixtures, equipment, space, tools, and facilities. Without limiting the foregoing, Provider shall: (i) provide all site maintenance, site management, site administration, and similar services at the Provider Service Locations; (ii) provide all necessary emergency power supply and uninterruptible power supply services at the Provider Service Locations; and (iii) provide such other services as required pursuant to XYZ Music Policies and Procedures. To the extent that Provider identifies methods of optimizing use of XYZ Music Service Locations with regard to Provider's use of such facilities (e.g., more efficient use of floor space, power, and air conditioning) it will advise XYZ Music of such

recommendations and, if XYZ Music decides to implement such recommendations, Provider will assist in such implementation efforts.

8.9 Physical Security

XYZ Music is responsible for the physical security of the XYZ Music Service Locations; provided, however, that Provider will be responsible for access and control of the areas that Provider is using in performance of this Agreement and as more specifically required pursuant to the XYZ Music Policies and Procedures. Provider shall not authorize any person to have access to, or control of, any such area unless such access or control is permitted in accordance with Approved control procedures.

8.10 Employee Services

Subject to applicable security requirements that are provided in writing to Provider, posted at a XYZ Music Service Location, or otherwise made available by XYZ Music, XYZ Music will permit Provider Personnel to use all employee facilities (e.g., parking, cafeteria, and common facilities) at the XYZ Music Service Locations that are generally made available to the employees of XYZ Music or XYZ Music Authorized Users. Provider Personnel will not be permitted to use such employee facilities designated by XYZ Music for the exclusive use of XYZ Music or XYZ Music Authorized User employees.

8.11 Use of XYZ Music Service Locations

Unless Provider obtains XYZ Music's prior written agreement, which may be withheld by XYZ Music in its sole discretion, Provider shall use the XYZ Music Service Locations, and the XYZ Music Equipment and Software located therein, only to provide the Services. XYZ Music reserves the right in its sole discretion to relocate a XYZ Music Service Location (or the space within a XYZ Music Service Location) from which the Services are then being provided by Provider to another location without any cost or expense (including any employee relocation expenses); provided, however, that, in such event, XYZ Music will provide Provider with sixty (60) calendar days advance written notice. When the XYZ Music Service Locations are no longer required for the performance of the Services, Provider shall return such XYZ Music Service Locations to XYZ Music in substantially the same conditions as when the Provider began use of the XYZ Music Service Locations, subject to reasonable wear and tear. XYZ Music also reserves the right to direct Provider to cease using all or any part of the space in a XYZ Music Service Location from which the Services are then being provided by Provider. In such event, XYZ Music shall reimburse Provider for any reasonable incremental costs incurred by Provider as a result of such direction; provided, however, that such direction is not expressly contemplated in this Agreement and that Provider notifies XYZ Music of such additional incremental costs and uses commercially reasonable efforts to minimize such costs.

8.12 Use of Provider Service Locations

During each Statement of Work Term, Provider will provide to XYZ Music at no charge (i) temporary access to and reasonable use of Provider Service Locations, and (ii) temporary access to reasonable work and conference space at Provider Service Locations for XYZ Music to exercise its rights under this Agreement, subject to XYZ Music's compliance with Provider's posted (or otherwise made available to XYZ Music) security policies and procedures while at such facilities. The facilities provided by Provider for the use of XYZ Music will be generally comparable to the standard space then occupied by similarly situated Provider employees.

9. Data Backup and Disaster Plan

9.1 [Intentionally Omitted]

9.2 Disaster Plan

Provider shall provide disaster recovery and business continuity services in accordance with Schedule 3, Section II.P of the Data Protection and Information Security Agreement.

9.3 Disaster Avoidance

Provider shall maintain disaster avoidance procedures as set forth in Schedule 3, Section II.Q of the Data Protection and Information Security Agreement.

10. Communications Systems and Access to Information

Provider understands that Provider may receive access to certain System components that are under the control of, and operated by, XYZ Music ("XYZ Music Systems"). The XYZ Music Systems are intended for legitimate business use related to XYZ Music's business. Provider acknowledges that Provider does not have any expectation of privacy as between Provider and XYZ Music in the use of or access to the XYZ Music Systems and that all communications made with such XYZ Music Systems by or on behalf of Provider are subject to XYZ Music's scrutiny, use, and disclosure (subject to the protections of Confidential Information herein), in XYZ Music sole discretion. XYZ Music reserves the right to monitor, review, audit, interpret, access, archive, and disclose (subject to the protections of Confidential Information herein) materials sent over, received by, or from, or stored in any of the XYZ Music Systems. This includes email communications sent by users across the internet and intranet from and to any and all domain names maintained by XYZ Music. XYZ Music reserves the right to override any security passwords to obtain access to XYZ Music Systems. Provider also acknowledges that XYZ Music reserves the right, for legitimate business purposes related to investigations of wrongful use of XYZ Music Systems, to search all work areas at XYZ Music Service Locations (for example, offices, cubicles, desks, drawers, cabinets, computers, computer disks, and files) and all personal items brought onto XYZ Music's property.

11. Non-Exclusive Relationship

11.1 Non-Exclusivity

Except with respect to the limited right of Provider to negotiate exclusively with XYZ Music during the SOW Negotiation Period described in Section 2.3 (Statement of Work Renewal), this Agreement shall be non-exclusive in nature and XYZ Music shall at all times have the right to perform any of the Services itself or to contract with a third party to perform any service included in the Services or other obligations of Provider in this Agreement (“Migrated Services”). If XYZ Music contracts with a third party to perform any Migrated Services or performs such Migrated Services itself, Provider shall fully, continuously, and reasonably cooperate with XYZ Music and any such third party, including providing the following: (i) the necessary information related to the Migrated Services that XYZ Music reasonably requests to enable XYZ Music to draft a request for proposals relating to the Migrated Services and to provide existing information to support due diligence for recipients of such requests for proposals; (ii) access to the Provider Service Locations being used by Provider to provide the Services as necessary for XYZ Music or a third party to survey the current environment being used to deliver the Migrated Services; (iii) existing written requirements, standards, and policies for systems operations so that any developments of such third party may be operated by Provider; (iv) reasonable assistance and support services to XYZ Music or such third party to the extent related to the Services; (v) to the extent permitted by the applicable third party agreements, access to the System in connection with such Migrated Services; and (vi) such information regarding the operating environment, system constraints, and other operating parameters as a person with reasonable commercial skills and expertise would find reasonably necessary for XYZ Music or a third party to perform the Migrated Services. XYZ Music shall require any such third party to comply with Provider’s reasonable requirements regarding operations, confidentiality, and security. Provider shall not be required to disclose any of Provider’s Confidential Information other than as necessary to comply with the obligations of this Section 11.1 (Non-Exclusivity). In the event any of Provider’s Confidential Information is required to be disclosed to a third party pursuant to this Section, Provider reserves the right to require such third party to comply with confidentiality obligations as required by the Provider in its sole discretion. Notwithstanding the foregoing, in no event shall Provider be required to disclose information regarding any other Provider customer or any Provider cost data.

11.2 Multi-Vendor Environment

A. Provider acknowledges that it will be delivering the Services in a multi-vendor environment with XYZ Music and the XYZ Music Third Party Vendors providing services related to the Services and System. Effective operation of such an environment requires not only the cooperation among all service providers, including Provider, but also collaboration in addressing Cross-Over Issues. As part of the Services, Provider will actively provide and support tasks associated with operating and maintaining a collaborative approach to Cross-Over Issues in the same manner as if the Provider Service relevant to the Cross-Over Issue were being provided in-house by XYZ Music rather than Provider. Provider shall use commercially reasonable efforts to identify all work efforts and deliverables of which Provider has knowledge, whether performed

by Provider, Subcontractors, Provider Third Party Vendors, XYZ Music, or XYZ Music Third Party Vendors, that may impact delivery of the Services.

B. Upon XYZ Music's request for any reason, including if XYZ Music performs any of the Services itself, or retains any of its Affiliates or third parties to do so, Provider shall cooperate with XYZ Music, such Affiliates, and such third parties and any of their respective agents, contractors, outsourcers, or other third party providers, which cooperation shall include providing: (i) access to the Provider Locations as necessary for XYZ Music, any of its Affiliates or the third party to perform its work; (ii) access to Equipment, Software, and Systems used in the provision of Services to the extent permitted under any applicable agreements with third parties; (iii) access to all XYZ Music Data, (iv) Services-related Documentation and data and access to processes and interfaces used to provide the Services; and (v) such information regarding Services-related business and IT processes and methodologies, System constraints, and other operating parameters as a person with reasonable commercial skills and expertise would find reasonably necessary for XYZ Music, any of its Affiliates, or the third party to perform its work. If XYZ Music reduces the scope of the Services pursuant to this Section, the charges shall be reduced in accordance with the pricing methodology set forth in the Charges and Resource Baselines Exhibit to the applicable Statements of Work.

C. If at any time prior to or during any Statement of Work Term, XYZ Music has engaged or engages a third party provider ("Outsource Provider") to provide outsourcing, support, or maintenance services to XYZ Music which relate directly or indirectly to any part of the subject matter of this Agreement ("Outsource Services") then, notwithstanding anything in this Agreement to the contrary, XYZ Music may do (and Provider consents to XYZ Music doing) all or any of the following: (i) permit the Outsource Provider to access, operate, and use any Deliverables (including interfaces) and Provider Intellectual Property (including Provider's websites and Systems) for the purpose of enabling the Outsource Provider to supply the Outsource Services; and (ii) otherwise permit the Outsource Provider, in its performance of the Outsource Services, to do anything that XYZ Music and/or its Affiliates are entitled to do under this Agreement. Provider agrees that it shall, at the request of XYZ Music, sign all further documents and do all things that XYZ Music reasonably requests to give effect to this Section 11.2(C). If Provider is required to implement additional data feeds or engage in conversion activities in order to interface with Outsource Provider, such additional activities shall be subject to the Change Control Procedure. To the extent any Outsource Provider is required to access the Provider Confidential Information, XYZ Music shall ensure that such Outsource Provider has entered into appropriate confidentiality agreements with XYZ Music to protect Provider's Confidential Information to at least the same degree of care as XYZ Music is required to protect such Provider Confidential Information pursuant to this Agreement. If such Outsource Provider is required to access any Provider Service Location pursuant to this Section, then such Outsource Provider shall be bound by applicable Provider information security policies and procedures that are provided or made available to such Outsource Provider prior to any such access.

12. XYZ Music Authorized User Satisfaction

12.1 XYZ Music Authorized User Satisfaction Survey

A. Beginning on the one-year anniversary of the Effective Date and on each one-year anniversary annually thereafter (unless otherwise agreed in writing by the Parties), Provider, an independent third party (who is not a Provider Competitor) selected by XYZ Music, or XYZ Music itself, shall conduct an Annual Authorized User Satisfaction Survey for each XYZ Music Service Location. The survey shall, at a minimum, cover at least the following classes of Authorized Users, to be determined by XYZ Music: (i) a sample of Authorized Users of the Services (as designated by XYZ Music); and (ii) certain senior management of XYZ Music (as designated by XYZ Music). In the event that Provider or an independent third party is conducting the Annual Authorized User Satisfaction Survey pursuant to the foregoing, XYZ Music shall deliver to Provider or such independent third party a list of the participants to be included in the survey prior to the commencement of the survey. In each event, XYZ Music shall determine the list of survey participants in its sole discretion. The content, scope, and method of the survey shall be determined by XYZ Music and the timing of the surveys are subject to Approval. Provider's goal is to increase XYZ Music Authorized User satisfaction for each class of XYZ Music Authorized Users. The baseline for determining Authorized User satisfaction with the Services will be the results of the XYZ Music Authorized User Satisfaction Survey compared to the immediately prior XYZ Music Authorized User Satisfaction Survey. Provider agrees that increasing measured XYZ Music Authorized User satisfaction shall be a key performance incentive for compensation for key Provider executives assigned to XYZ Music. The costs for all XYZ Music Authorized User Satisfaction Surveys shall be borne equally by the Parties unless any XYZ Music Authorized User Satisfaction Survey fails to meet the applicable Service Level, in which case the cost of all surveys following such failure shall be borne solely by Provider until the Service Level Failure has been remedied by Provider; provided, however, that the first XYZ Music Authorized User Satisfaction Survey immediately following any Service Level Failure shall be conducted no earlier than six (6) calendar months, and no later than seven (7) calendar months, after such failure.

B. In addition to the Annual Authorized User Satisfaction Survey described above, Provider shall develop for XYZ Music's review and Approval one or more customer satisfaction surveys for XYZ Music Authorized Users to be utilized more frequently than annually. Upon Approval, Provider shall conduct the surveys of those Authorized Users determined by XYZ Music, on a periodic basis as determined by XYZ Music and communicated to Provider, and collect and compile the survey results. If the results reveal poor Authorized User or XYZ Music satisfaction (as determined by XYZ Music), Provider shall promptly take such actions as necessary to remediate any such poor performance. The survey results shall be used for the purpose of measuring the applicable Service Levels.

13. XYZ Music Responsibilities

13.1 Interfering Acts

Provider shall be excused from its responsibility to perform a specific obligation under this Agreement if and only to the extent such non-performance of the specific obligation is caused by XYZ Music's breach of its obligations under this Agreement; provided, however, that upon the occurrence of acts or omissions by XYZ Music in breach of XYZ Music's performance obligations under the Agreement which have been determined by Provider to be likely to adversely impact its ability to deliver or meet such specific obligation, Provider shall advise the XYZ Music Outsourcing Relationship Executive of such occurrence in writing promptly and identify the reason for Provider's inability to perform its obligation as a result of XYZ Music's failure to perform its obligations under this Agreement. Nothing in the foregoing shall (i) preclude XYZ Music from asserting such failure by Provider to perform an obligation under this Agreement as a basis for XYZ Music to terminate this Agreement for cause if subsequently discovered facts demonstrate the failure was not caused by XYZ Music's failure to perform its obligations under this Agreement, or (ii) preclude XYZ Music from asserting such failure by Provider to perform an obligation under this Agreement as a basis for XYZ Music to terminate this Agreement for cause if Provider's conduct, not caused by XYZ Music's failure to perform its obligations under this Agreement, contributing to the failure is determined to be one of numerous breaches of its duties or obligations under the Agreement which in the aggregate are material as provided in Section 31.3 (Termination for Cause by XYZ Music).

13.2 Strategic Control

XYZ Music shall retain strategic control of all aspects of the services, products, and processes used in XYZ Music's business, including decisions concerning the Services, System, architecture, and technical standards. In connection with implementing such strategic control, XYZ Music shall: (i) establish processes and designate decision-makers to exercise strategic control over the Services; and (ii) establish procedures to consult with Provider and other Providers when and to the extent XYZ Music determines it to be appropriate. As part of the Services, Provider shall provide business intelligence, analysis and support to XYZ Music in connection with strategy development, assessment and implementation strategy. All final decisions on matters relating to strategic control over the Services shall be made by XYZ Music.

14. Services Team

14.1 Provider Global Delivery Lead

Provider shall (i) select, or upon request by XYZ Music present three (3) candidates from which XYZ Music will select, an individual who shall be in charge of implementing the Services (the "Provider Global Delivery Lead"), and (ii) replace such Provider Global Delivery Lead when required or permitted pursuant to this Section 14.1 (Provider Global Delivery Lead) or Section 14.3 (Conduct of Provider Personnel). Each Provider Global Delivery Lead shall be subject to Approval. The initial Provider Global Delivery Lead shall be Sean Pereira, Senior General Manager, Operations. Unless otherwise agreed by the Parties, the Provider Global Delivery Lead shall be located at Mumbai, India. Provider shall not reassign or replace any Provider Global Delivery Lead or Provider BPO Services Transition Plan, during the first one (1)

year of his or her assignment unless: (i) Provider obtains Approval (with respect to Provider Key Employees such Approval shall not be unreasonably withheld) to such reassignment or replacement; or (ii) the individual (a) voluntarily resigns from Provider, or (b) is dismissed by Provider for misconduct (e.g., fraud, drug abuse, theft), unsatisfactory performance in respect of his or her duties and responsibilities to XYZ Music or Provider, is removed from the Provider Personnel pursuant to Section 14.3 (Conduct of Provider Personnel), is unable to work due to his or her death or disability, or as to Provider Key Employees (excluding the Provider Global Delivery Lead), the individual requests reassignment under compassionate circumstances (e.g., relocation of a spouse) (collectively, “Approved Reassignments”).

14.2 Provider Key Employees

As of the Statement of Work Effective Date for each Statement of Work and from time-to-time as XYZ Music and Provider may agree during each Statement of Work Term, but no less frequently than annually, XYZ Music and Provider shall designate certain employees of Provider as key employees (collectively, the “Provider Key Employees,” and individually, each a “Provider Key Employee”). The Provider Key Employees shall be dedicated to the XYZ Music account Full-Time, unless otherwise expressly specified in the applicable Provider Key Employees Exhibit to an applicable Statement of Work, if any. The initial Provider Key Employees are those individuals listed in Exhibit B.1(e) (BPO Services Key Employees). Except for a replacement or reassignment of the Provider Key Employees due to the occurrence of an Approved Reassignment, Provider shall not reassign or replace any Provider Key Employee until the completion of any Projects to which the Provider Key Employee is assigned if such reassignment or replacement would materially disrupt XYZ Music operations. No Approved Reassignment of a Provider Key Employee shall occur without at least thirty (30) calendar days (or as reasonably practical under the circumstances) prior written notice to XYZ Music. Provider Key Employees shall not provide services to any XYZ Music Competitor for a period of nine (9) months after the Provider Key Employees’ last date of work under this Agreement.

14.3 Conduct of Provider Personnel

A. General

While at the XYZ Music Service Locations, the Provider Personnel shall conduct themselves in a businesslike manner and shall comply with all reasonable requests, standard rules, and regulations of XYZ Music communicated or made available to Provider regarding personal and professional conduct (including the wearing of a particular uniform or identification badge and adhering to XYZ Music’s regulations and general safety practices or procedures) generally applicable to such XYZ Music Service Locations. Each Provider Personnel shall (i) while working at a XYZ Music Service Location attend any workplace training offered by XYZ Music at XYZ Music’s request, (ii) identify themselves as Provider Personnel in all communications related to the Services or this Agreement, and (iii) wear and use badges that indicate their affiliation with Provider.

Without limiting the generality of this Section 14.3(A), Provider hereby acknowledges and agrees to conduct its activities under this Agreement in accordance with the policies described on Exhibit C (XYZ Music Policies and Procedures), including XYZ Music Entertainment's Supplier Code of Conduct set out at <https://supplier.XYZmusic.com/> and incorporated herein by reference as amended, modified or supplemented from time to time. Upon XYZ Music's request, Provider further acknowledges and agrees to cause its officers and employees providing services to XYZ Music hereunder, to participate in any training sessions on said policy that XYZ Music may reasonably require, at no cost to Provider during the Term.

B. Removal of Provider Personnel

XYZ Music's Chief Financial Officer, XYZ Music's SVP, Finance, or the XYZ Music Outsourcing Relationship Executive shall have the right to Approve or request the removal of any member of Provider's Personnel at a XYZ Music Service Location. Notwithstanding anything to the contrary contained herein, should XYZ Music be dissatisfied with the performance, competence, responsiveness, capabilities, cooperativeness, or fitness for a particular task of any person assigned by Provider to perform Services under this Agreement, XYZ Music may request the replacement of that person; provided, however, that before Provider shall be required to remove such individual, Provider shall have a reasonable opportunity to remedy such situation with XYZ Music's Chief Financial Officer, SVP, Finance, or the XYZ Music Outsourcing Relationship Executive (in XYZ Music's discretion) unless such individual has breached any of the obligations under this Agreement with respect to protection of XYZ Music's Confidential Information or XYZ Music Data, or materially violated any XYZ Music Policies and Procedures, or any other information security requirement, in which case such individual shall be removed immediately and no cure period shall apply. Provider shall make reasonable efforts to furnish a qualified replacement within fifteen (15) business days after any such removal. If Provider should ever need to remove any member of Provider's Personnel from performing Services under this Agreement at a XYZ Music Service Location, Provider shall provide XYZ Music with adequate notice, except in circumstances in which such notice is not possible, and shall work with XYZ Music on a mutually agreeable transition plan so as to promptly provide an acceptable replacement and ensure continuity of the Services.

C. Immigration

Provider hereby agrees that it shall be responsible for handling and processing all immigration and employment-related issues and requirements (including processing visas and ensuring compliance with all applicable Laws) arising in connection with Provider Personnel. XYZ Music shall not be required to participate in any immigration or visa activities; provided, however, that upon Provider's reasonable request, XYZ Music shall reasonably cooperate with Provider in the preparation of "invitation/sponsorship letters" to facilitate the on-boarding process for Provider Personnel who shall temporarily provide Services from XYZ Music's Service Locations located in the United States. Provider shall, upon XYZ Music's request, verify in writing (and provide reasonable supporting documentation) that all Provider Personnel

have valid work authorizations and visas that permit them to perform the Services in the manner and location set forth in this Agreement.

D. Requirements of Provider Personnel

Provider agrees that all Provider Personnel assigned to performing this Agreement must have experience and suitable training and skills in the areas in which they are responsible for performing. If actions or inactions of Provider Personnel create additional work in connection with the performance of the Services that would have otherwise been unnecessary in the absence of such action or inaction, Provider shall perform all such additional work at no additional charge to XYZ Music, unless such action or inaction is demonstrated by Provider to be at the direction of XYZ Music. Additionally, Provider agrees that it will take all commercially reasonable steps to ensure continuity over time of the membership of the group constituting Provider Personnel. Provider shall promptly fill vacancies on Projects for which XYZ Music is paying on a time and materials basis with personnel having qualifications comparable in the area of the Project to those of the Provider Personnel being replaced.

E. Training

Provider shall provide training necessary to ensure that XYZ Music Authorized Users and Provider Personnel are trained with respect to the delivery and receipt of the Services, and to meet all compliance requirements mandated on a state, federal, or local level for the duties performed in connection with the Services. Training requirements with respect to the BPO Services are as described in the applicable Statement of Work and associated Exhibits, including the Transition Plan Exhibit to the applicable Statement of Work and each training requirements Exhibit, if any, attached to such Statement of Work. In addition, Provider shall and shall cause Provider Personnel to, comply with XYZ Music's training requirements, confidentiality, industrial security, and safety programs.

14.4 Security and Background Checks

Provider shall initiate Security and Background Checks in accordance with Schedule 3 Section VI of the Data Protection and Information Security Agreement.

14.5 Substance Abuse

Provider agrees to immediately remove any Provider Personnel who engages in substance abuse while at XYZ Music Service Locations, in a XYZ Music vehicle, or while performing Services. Substance abuse includes the sale, attempted sale, possession, or use of illegal drugs, drug paraphernalia, or alcohol, or the misuse of prescription or non-prescription drugs. Provider shall adhere strictly to its own substance abuse policy in the event of any suspected substance abuse by any Provider Personnel. Provider represents and warrants that Provider and Provider Affiliates have and will maintain a substance abuse policy and that such policy will be applicable to all Provider's and Provider Affiliate's Personnel performing Services under this Agreement. Provider represents and warrants that each of its Subcontractors has and will maintain

a substance abuse policy and that such policy will be applicable to all employees of such Subcontractor performing Services.

14.6 Union Agreements and WARN Act

A. Expiration of Collective Bargaining Agreements

Provider shall provide XYZ Music not less than ninety (90) calendar days prior written notice of the expiration of any collective bargaining agreement with unionized Provider Personnel if the expiration of such agreement or any resulting labor dispute could potentially interfere with or disrupt the business or operations of XYZ Music or an Authorized User or impact Provider's ability to timely perform its duties and obligations under this Agreement, and shall meet with XYZ Music on a weekly basis (or such other timeframe as designated by XYZ Music) thereafter to jointly develop an appropriate contingency and risk mitigation plan.

B. Employment Loss

Provider shall not, for a period of sixty (60) calendar days after the Statement of Work Effective Date, cause any of the Transitioned Employees to suffer "employment loss" as that term is construed pursuant to the WARN Act, if such employment loss could create any liability for XYZ Music or the XYZ Music Authorized Users, unless Provider delivers notices under the WARN Act in a manner and at a time such that XYZ Music or the XYZ Music Authorized Users bear no liability with respect thereto.

C. Compliance with the WARN Act

Provider shall be solely and fully responsible for (and XYZ Music shall have no responsibility with respect to) Provider's compliance with the WARN Act including all WARN Notices, if any, that may be required by the WARN Act, or any other applicable Laws. Provider shall be solely and fully responsible for (and XYZ Music shall have no responsibility with respect to) any and all liability, including all financial liability, related to compliance with the WARN Act.

D. Provider's Liability

Provider shall be responsible for any liability, cost, claim, expense, obligation, and sanction attributable to any breach by Provider of this Section that results in XYZ Music being in violation of the WARN Act or the regulations promulgated thereunder.

14.7 Non-Solicitation

Neither Party may, without the other Party's prior written consent, directly solicit the employment of any employee of the other Party who has performed any material work for the hiring Party pursuant to this Agreement, and with whom the hiring Party has had direct contact under this Agreement, for a period of six (6) months following such performance, for

employment in a position involving substantially the same responsibilities. Notwithstanding the foregoing, neither Party shall be precluded from (i) hiring an employee of the other Party who approaches a Party for employment, or (ii) conducting general recruiting activities, such as participation in job fairs or publishing advertisement in publications or on Web sites for general circulation, and hiring the other Party's employees as a result of such efforts.

15. Management and Control

15.1 Governance

Provider shall comply with the governance model and requirements as described in Exhibit D (Governance).

15.2 Policies and Procedures Manual

For each Statement of Work and no later than the commencement of Services performed pursuant to such Statement of Work, Provider shall develop (with XYZ Music's input) and deliver to XYZ Music for XYZ Music's review and Approval a draft of a policies and procedures manual detailing processes required to perform the Services for such Tower under a Statement of Work, including processes that detail Provider's interaction, coordination, and interface with: (i) in-scope functions and out-of-scope but related XYZ Music functions; (ii) XYZ Music personnel throughout XYZ Music's environment; and (iii) XYZ Music's escalation procedures (the "Policies and Procedures Manual"). Such draft shall be organized generally in accordance with the draft table of contents for the Policies and Procedures Manual that shall be set forth in the Policies and Procedures Manual Appendix (or similar applicable Appendix, Exhibit, or provision) of the applicable Statement of Work, if any. Provider shall complete a final draft Approved by XYZ Music within thirty (30) calendar days after receiving XYZ Music's comments to the draft Policies and Procedures Manual. The delivery of the draft Policies and Procedures Manual shall be a Critical Milestone pursuant to any Transition Plan. Until such time that the Policies and Procedures Manual is finalized, Provider shall follow and comply with XYZ Music's Policies and Procedures regarding the performance of the Services in place prior to the Statement of Work Effective Date. Provider shall deliver the Services in accordance with the Policies and Procedures Manual. The Policies and Procedures Manual for the BPO Services and as associated with the BPO Services Statement of Work shall include each of the DPMs and SOPs provided to XYZ Music. Each DPM and SOP requires Approval.

15.3 Change Control Procedure

A. XYZ Music will have the right to Approve in advance any change, action, or decision of Provider with respect to the provision of Services to XYZ Music that may have a material or adverse effect on the Services, require XYZ Music to change the way it conducts its operations, or increase charges or costs to XYZ Music. XYZ Music will have the right to set priorities in scheduling work under any Statement of Work. Without limiting the generality of the foregoing, Provider shall comply with the following additional change control requirements:

(1) Prior to using any new Software or new Equipment to provide the Services, Provider shall have verified that the item is consistent with the IT architecture, standards, and strategic direction specified by XYZ Music, has been properly installed, is operating in accordance with its specifications, and is performing its intended functions in a reliable manner.

(2) Provider shall not make a change inconsistent with the IT architecture, standards, or strategic direction specified by XYZ Music;

(3) Provider shall move programs from development and test environments to production environments in a controlled and documented manner, so that no changes are introduced into the programs during such activity.

B. The procedure with which the Parties will comply with respect to Changes is attached hereto as Exhibit M (Change Control Procedure). The Change Control Procedure shall be included as part of each Policies and Procedures Manual, and Provider shall perform the Services in accordance with the Change Control Procedure.

C. Provider shall (i) schedule all Changes so as not to unreasonably interrupt XYZ Music's business operations, (ii) prepare and deliver to XYZ Music each month a rolling schedule for ongoing and planned Changes for the next three (3) calendar month period, (iii) monitor the status of Changes against the applicable schedule, and (iv) document and provide to XYZ Music notification (which may be given orally provided that such oral notice is confirmed in writing to XYZ Music within two (2) business days) of all Changes performed on a temporary basis to maintain the continuity of the Services no later than the next business day after the Change is made.

D. If information contained in any Documentation developed by Provider under this Agreement is no longer accurate or current due to the implementation of a Change, Provider shall, within one (1) month after the Change, revise the impacted Documentation and provide revised Documentation to XYZ Music.

15.4 Gainsharing

XYZ Music is continually seeking ways to reduce the cost of the Services. Accordingly, XYZ Music encourages Provider to explore and identify opportunities to improve the Services and reduce the charges and expenses therefor. XYZ Music shall entertain proposals of gain sharing or similar incentive plans where Provider is able to bring innovative value to reduce XYZ Music's costs. Accordingly and in addition to Provider's requirements with respect to the Innovation Fund, Provider may from time-to-time use commercially reasonable efforts to propose for XYZ Music's review and Approval, opportunities, and recommendations relating to this Agreement or the Services that would result in improvement of business processes, improved efficiencies, cost saving in business processes, or other savings or reduction in costs to XYZ Music without adversely affecting the Services (collectively, "Gainsharing Proposals"). To the extent Provider proposes any such Gainsharing Proposals, Provider shall identify and communicate in writing to XYZ Music such Gainsharing Proposals for its consideration. The Gainsharing

Proposals may enable XYZ Music to take advantage of: (i) developments in the marketplace; and (ii) other developments that would enable XYZ Music to achieve the foregoing objectives. In preparing the Gainsharing Proposals, Provider may review XYZ Music's environment and marketplace trends and developments to identify opportunities for improvement. Similarly, XYZ Music may also from time-to-time wish to present Gainsharing Proposals to Provider for its consideration. As part of such Gainsharing Proposals that are identified and communicated by either Party to the other, the Party making the Gainsharing Proposal may recommend that the Parties (whether individually or jointly) finance, up to an amount to be agreed, the research and development of any opportunities or proposals that may result in specific Gainsharing Proposals. The Parties shall consider any Gainsharing Proposals made by the other Party in good faith and shall provide all reasonable assistance to the other Party should the Parties mutually agree to implement such Gainsharing Proposals. As part of the Gainsharing Proposals proposed by Provider, Provider shall include, to the extent it has visibility, the cost structure for developing and implementing such Gainsharing Proposal, with the Provider giving transparency to all cost of the Provider in developing and implementing such Gainsharing Proposal. In the event that any Gainsharing Proposals are mutually approved and agreed to by the Parties, the Parties shall agree on an equitable allocation of the costs of their respective development and implementation, applicable baselines and mechanisms for measuring benefits realized through such implementation, and an equitable allocation of such benefits realized through such implementation during the remainder of each applicable Statement of Work Term after implementation of the Gainsharing Proposals. The Parties agree that before any Gainsharing Proposal benefits are shared between the Parties, the Party incurring any cost in the development and implementation of such Gainsharing Proposal shall be first entitled to recoup the actual cost and expense incurred by such Party.

15.5 Charges Limitations

The charges (whether pursuant to full time equivalent pricing or unit transaction pricing) charged by Provider pursuant to this Agreement shall have a reasonable relationship to XYZ Music's financial base case regarding the Services to be provided by Provider as set forth in the Charges and Resource Baselines Exhibit to each Statement of Work, so that XYZ Music can reasonably expect to achieve the Savings Opportunity over each Statement of Work Term. In the event during any Statement of Work Term, XYZ Music is not achieving a Savings Opportunity reasonably similar to the Savings Opportunity as of the date of the applicable Statement of Work Effective Date, then the Parties agree to discuss ways which may allow XYZ Music to achieve Savings Opportunity that is reasonably similar to the Savings Opportunity as of the date of the applicable Statement of Work Effective Date. For purposes of this Section, the "Savings Opportunity" means the difference between: (i) the aggregate costs XYZ Music would have incurred for the performance of services similar to the Services covered by this Agreement and each Statement of Work over the applicable Statement of Work Term, as reflected in such XYZ Music financial base case for the number of XYZ Music personnel assumed by Provider; and (ii) the aggregate charges paid or payable to Provider for those Services, all at the applicable baseline volumes and/or cost set forth in such financial base case and/or Charges set forth in the Charges and Resource Baselines Exhibit to a Statement of Work.

15.6 XYZ Music Outsourcing Relationship Executive

A. Identification of XYZ Music Outsourcing Relationship Executive

The XYZ Music Outsourcing Relationship Executive for this Agreement shall be as set forth below (or his or her designee): Matt Norman

B. Changes

XYZ Music shall notify Provider in writing of any Change in the name, address, or contact information of the XYZ Music Outsourcing Relationship Executive.

C. Responsibilities

The XYZ Music Outsourcing Relationship Executive shall: (i) be responsible for overseeing XYZ Music's performance of its tasks under the Statements of Work; (ii) meet or confer with the Provider Global Delivery Lead on a regular basis; and (iii) have the right to inspect any and all Services provided by or on behalf of Provider.

15.7 XYZ Music Personnel

Unless otherwise stated in this Agreement, all XYZ Music personnel assigned to this Agreement shall be under the exclusive supervision of XYZ Music. Except as otherwise provided in this Agreement, Provider understands and agrees that all such XYZ Music personnel are assigned only for the convenience of XYZ Music. Provider hereby represents that the Charges and Provider's performance hereunder are based solely on the work of Provider's Personnel, except as otherwise expressly provided by this Agreement. Nothing in this Section 15.7 (XYZ Music Personnel) shall relieve Provider of its obligations under this Agreement.

16. Data and Reports

16.1 Provision of Data

XYZ Music shall supply to Provider required XYZ Music Data in the form and on such time schedules as may be agreed upon by XYZ Music and Provider from time-to-time in order to permit Provider to perform the Services in accordance with this Agreement.

16.2 XYZ Music Data

XYZ Music Data shall have the definition of "XYZ Music Data" set forth in Section 1 of the Data Protection and Information Security Agreement.

16.3 Correction of Errors

Provider shall adhere to the obligations set forth in Schedule 3, Section I.D of the Data Protection and Information Security Agreement.

16.4 Return of Data

Provider shall deliver or cause to be delivered to XYZ Music all XYZ Music Data in accordance with the obligations set forth in Schedule 3, Section I.D of the Data Protection and Information Security Agreement.

16.5 Safeguarding XYZ Music Data

A. Generally

Provider shall establish and maintain security measures and safeguards in accordance with its obligations set forth in Schedule 3, Section II of Data Protection and Information Security Agreement.

B. Data Security Plan

Provider shall implement a data security plan in accordance with Schedule 3, Section II.F of the Data Protection and Information Security Agreement. .

C. Media

Provider shall follow the device and media controls obligation set forth in Schedule 3, Section II.G of the Data Protection and Information Security Agreement.

D. Intrusion Detection

Provider shall implement antintrusion detection System as set forth in Schedule 3, Section II.H and Schedule 4 of the Data Protection & Information Security Agreement..

E. [Intentionally Omitted].

F. [Intentionally Omitted].

G. XYZ Music Access

XYZ Music shall have unrestricted access to and the right to review and retain the entirety of, all computer or other files containing XYZ Music Data. At no time shall any of such files or other materials or information be stored or held in a form or manner not reasonably accessible to XYZ Music. Except as specifically set forth in this Agreement, Provider shall have no implied right to access any data files, directories of files, or other XYZ Music Confidential Information and shall access and/or use such files and XYZ Music Confidential Information only as and to the extent necessary to perform the Services that are the subject of this Agreement. Upon request, Provider shall provide to XYZ Music all passwords, codes, comments, keys, Documentation and the locations of any such files and other materials promptly upon the

request of XYZ Music, including Equipment and Software keys and such information as to format, encryption (if any) and any other specification or information necessary for XYZ Music to retrieve, read, revise, and/or maintain such files and information. Upon the request of XYZ Music, Provider shall confirm that, to the best of its knowledge, all files and other information provided to XYZ Music or its designee are complete and that no material element, amount, or other fraction of such files containing XYZ Music Data or other information that constitutes XYZ Music Data to which XYZ Music may request access or review has been deleted, withheld, disguised, or encoded in a manner inconsistent with the purpose and intent of providing full and complete access to XYZ Music Data to XYZ Music or its designee as contemplated by this Agreement.

H. Breach

If Provider or a Provider Agent discovers or is notified of a breach or potential breach of security relating to the XYZ Music Data, Provider shall notify XYZ Music in accordance with the obligations set forth in Section 3 of the Data Protection and Information Security Agreement.

I. Network Access

If XYZ Music provides Provider or any Provider Personnel with access to XYZ Music's computer and telecommunications network (the "Network"), whether such access is provided through an on-site or remote connection, the following provisions shall apply:

(1) Network IDs and Passwords. At XYZ Music's discretion and upon execution of a XYZ Music Confidentiality and Network Access Agreement by one or more Provider Personnel, XYZ Music will issue such Provider Personnel a Network identification name ("Network ID") and password for accessing the Network. XYZ Music may modify, limit or revoke any such Network IDs and passwords without notice at any time in its sole discretion. Provider acknowledges and agrees that: (i) such access shall be provided by XYZ Music to Provider solely to allow Provider to provide the Deliverables and Services to and for XYZ Music; (ii) Provider shall use the XYZ Music network only as authorized by XYZ Music and only for the purpose of providing the Services to and for XYZ Music; (iii) a Network ID and password is for the exclusive use of the Provider Personnel to whom it is assigned and neither Provider or any Provider Personnel will share or divulge a Network ID or password with or to any other person or entity. Provider will ensure that no Provider Personnel or any other agent or representative of Provider will access or attempt to access the Network without first being issued an individual user-specific Network ID and password. On the effective date of the expiration or termination of this Agreement or any Statement of Work, Provider and Provider Personnel shall cease all use of and access to the Network.

(2) Direct Link. If the Parties agree to install and/or utilize a direct electronic telecommunications link connection between XYZ Music and its Affiliates and Provider ("Direct Link"), all Equipment, Documentation, and Software used by or installed in connection with the Direct Link that was provided by XYZ Music shall remain the exclusive property of XYZ

Music. Provider shall have no ownership in such property and such property shall be returned to XYZ Music immediately upon XYZ Music's request. Provider shall ensure that any computer, local area network, server, and other computer configuration owned or controlled by Provider or any Provider Personnel (or by any of their employees, agents or representatives) which is/are connected to the Direct Link shall not be connected to any Internet service provider ("ISP"), cell or land-based telephone, or any modem of any kind, other than to the Direct Link to XYZ Music.

(3) Monitoring and Audit. Provider's use of and access to the Network, including transmissions to and from the Internet through the Network, e-mail usage, and use of Network and Internet tools and facilities, may and will be monitored by XYZ Music from time to time at any time by XYZ Music or XYZ Music's agent. Provider may not receive any advance notice of any monitoring which XYZ Music will perform. Provider hereby grants XYZ Music's access to Provider's and any Provider Personnel business premises, including full access to all Equipment and Software utilized by Provider and by all Provider Personnel in connection with the Direct Link, to examine and audit Provider's compliance with this Agreement.

(4) Compliance. Provider shall be responsible for compliance (including compliance by Provider Personnel) with this Section 16.5(I) (Network Access) and with all XYZ Music's rules, policies, and procedures relating to access and use of the Network as published from time to time by XYZ Music and made available to Provider, including access of the Internet through the Network, access through the Direct Link (if applicable), encryption, identification and passwords, e-mail, treatment of XYZ Music's Confidential Information and accessing certain categories of information, and security measures. Provider shall not: (i) perform any acts that may break, bypass or circumvent, compromise or degrade or otherwise defeat or jeopardize any XYZ Music's policies or security System or measures, or (ii) obtain, or attempt to obtain, access to any hardware, program or data other than that which Provider oABC, is developing or testing pursuant to Provider's provision of the Services or to which Provider has been given access by XYZ Music in writing. If Provider learns that any Provider Personnel has obtained access to any such hardware, program or data, Provider shall promptly notify XYZ Music of such access and must cooperate as requested by XYZ Music in any investigation thereof

J. Reporting and Cooperation. If Provider becomes aware that any third party has obtained unauthorized access to the Network, or that Provider Personnel has failed to comply with the terms and conditions of this Agreement, or if any Provider Personnel who has been provided access to the Network ceases employment with Provider, Provider shall promptly notify XYZ Music upon Provider becoming aware of such occurrence. Provider agrees to cooperate and assist XYZ Music in the investigation of any such matters.

16.6 Records Management

Provider understands and acknowledges that all of XYZ Music's records and information are owned by XYZ Music and must be maintained separate from other of Provider's customers' records and information. In addition, Provider shall:

A. comply with XYZ Music Records Management Policy, attached as a part of Exhibit C (Policies and Procedures), a copy of which Provider acknowledges it has received;

B. upon request of XYZ Music, complete destruction (and certify such destruction to XYZ Music) of all XYZ Music's records and information in accordance with the XYZ Music Records Management Policy;

C. immediately suspend the destruction of certain XYZ Music records and information to comply with potential e-discovery requests related to litigation or government investigations upon written request from XYZ Music;

D. assist XYZ Music to provide temporary access to certain XYZ Music records and information to plaintiffs in accordance with a court order or as may be required pursuant to a civil, criminal, or governmental investigation, litigation, or similar proceeding;

E. use network or system backups, to the extent backups are created, solely for disaster recovery purposes, and the such backups are overwritten or destroyed on a regular basis; provided, however, that if the backups must be destroyed, Provider will provide for confidential, physical destruction of the backup media that meets applicable industry specifications;

F. assist XYZ Music in the information lifecycle management process for structured and unstructured systems, and allow XYZ Music to monitor and Approve the process in accordance with the XYZ Music Records Management Policy; and

G. notify XYZ Music prior to (i) relocation of any servers that retain records and information of XYZ Music outside of the United States, and (ii) the migration of any records and information of XYZ Music to a new server.

XYZ Music, at its option, shall have the right to audit the Provider's records management and data security controls at any time to determine if they are adequate to protect XYZ Music's record and information and may, in its discretion, direct improvements of such security controls to prevent malicious or inappropriate access to XYZ Music's records and information used to perform the Services. XYZ Music shall have the right to review any audit logs kept for all transactions allowed through a firewall. XYZ Music has and shall have the right to periodically audit Provider's use of hardware, software and systems, as well as the security, business continuity and disaster recovery plan, including pursuant to the Section 11 of the Data Protection and Information Security Agreement. After termination or expiration of the Agreement, all XYZ Music records and information shall be returned by the Provider to XYZ Music.

17. Consents

17.1 Obtaining Consents

Provider shall obtain all consents, assignments, amendments, modifications and approvals necessary (i) to effectuate the proper use and transfer of the Intellectual Property, Equipment, Services, or any other documents, technology assets, or instruments contemplated under this Agreement by Provider or XYZ Music (as appropriate), and (ii) to ensure the transactions contemplated by this Agreement shall not result in any default with respect to any Law, rule, regulation, order, decree, license, agreement, contract, commitment, or instrument to which XYZ Music or Provider is a party or by which XYZ Music or Provider is bound ((i) and (ii) collectively, the “Consents”). XYZ Music will use commercially reasonable efforts to cooperate with Provider in obtaining the Consents. Provider shall perform all administrative activities associated with obtaining such Consents as part of the Services.

17.2 Consent Remedy

If, despite documented commercially reasonable efforts, Provider is unable to obtain a Consent, then, unless and until such Consent is obtained, Provider shall use commercially reasonable efforts to identify and implement, subject to Approval, such alternative approaches as are necessary and sufficient to provide the Services without such Consent. If such alternative approaches are required for a period longer than ninety (90) calendar days after the applicable Statement of Work Effective Date under which such Consents are necessary or required, the Parties will reduce the Charges (i) by any additional expenses incurred by XYZ Music arising from such failure, and (ii) to reflect any Services not being received by XYZ Music or the impact of such Service being provided by Provider in an alternative fashion. Additionally, if Provider fails to obtain a Consent within ninety (90) calendar days after the applicable Statement of Work Effective Date under which such Consents are necessary or required, and such failure has a material adverse impact on the Services, whether as a whole or as to any part thereof, by XYZ Music or the Authorized Users, XYZ Music may terminate the Agreement or any affected portion thereof without any cost or other penalty. Except as otherwise expressly provided herein, failure to obtain any Consent shall not relieve Provider of its obligations under this Agreement, and Provider shall pay any additional costs incurred by XYZ Music arising from such failure.

18. Intellectual Property Rights

18.1 XYZ Music Intellectual Property

A. Generally

All worldwide right, title, and interest in and to the following:

(1) all Intellectual Property used in connection with the Services that is owned by XYZ Music or its Affiliates prior to the Effective Date, acquired or developed by or

on behalf of XYZ Music or its Affiliates independent of this Agreement, or licensed or leased or otherwise obtained by XYZ Music or its Affiliates from a third party;

(2) Deliverables, Software, Tools, Documentation, reports, knowledge base content, Transition planning documentation, process flow diagrams, standard operating procedures, the Policies and Procedures Manual, and other guides or manuals, as each are developed or customized for XYZ Music in connection with the Services; and

(3) to the extent not already covered by Sections 18.1(A)(1) or (2), any other new processes, deliverables, software, tools, documentation, and other Intellectual Property developed by Provider or on behalf of Provider and that is created for XYZ Music in connection with the provision of the Services;

in each case, including all modifications, additions, enhancements, and derivative works thereof (collectively, “XYZ Music Intellectual Property”), together with any and all intellectual property rights inherent in any of the XYZ Music Intellectual Property and appurtenant thereto, including all patent rights, copyrights, trademarks, know-how, and trade secrets, shall, subject to the license grant set forth in Section 18.1B (License Grants) belong solely and exclusively to XYZ Music, its Affiliates or its third party licensors perpetually. Provider hereby assigns, transfers and conveys irrevocably and perpetually, and shall cause its employees, agents or subcontractors to assign, transfer, and convey irrevocably and perpetually, to XYZ Music without further consideration all of its and their respective worldwide right, title, and interest in and to any and all XYZ Music Intellectual Property. Provider hereby waives any and all of its rights relating to certain “moral rights” that Provider may have in any XYZ Music Intellectual Property. Provider acknowledges, and shall cause its employees, agents or subcontractors to acknowledge, that XYZ Music and the successors and permitted assigns of XYZ Music shall have the right to obtain and hold in their own names any intellectual property rights in and to such XYZ Music Intellectual Property. Provider agrees to execute, and shall cause its employees, agents, or subcontractors to execute, any documents or take any other actions as may reasonably be necessary, or as XYZ Music may reasonably request, to perfect XYZ Music’s ownership of any XYZ Music Intellectual Property.

B. License Grants

(1) XYZ Music hereby grants to Provider during any applicable Statement of Work Term and the Termination/Expiration Assistance Period, solely to provide the Services, a personal, non-exclusive, non-transferable right and license to access and use the XYZ Music Intellectual Property delivered to Provider for use in connection with Services and subject to the following: the rights granted to Provider hereunder shall automatically expire effective as of the date upon which Provider ceases, for any reason, to provide any of the Services in which such XYZ Music Intellectual Property are used. As between XYZ Music and Provider, and except as expressly set forth in this Section 18.1(B)(1), all right, title and interest in and to any proprietary rights associated with the XYZ Music Intellectual Property shall remain the exclusive property of XYZ Music.

(2) Provider will not have any interest in XYZ Music Intellectual Property, except for the license granted to it under this Agreement. Without limitation of the foregoing, except as necessary for the performance of the Services, Provider will not copy, decompile, disassemble, reverse engineer, or make, modify, enhance, create, or distribute any other form of or any derivative work from XYZ Music Intellectual Property. Except as expressly permitted elsewhere in this Agreement, Provider and the Provider Agents will not assign, loan, sublicense, or otherwise transfer XYZ Music Intellectual Property.

(3) Provider's use of any XYZ Music Intellectual Property that is pre-packaged third-party Software will be governed by the terms and conditions of the applicable third-party license agreements delivered to Provider hereunder in advance of the use of such Software, if any.

(4) Provider may not obscure, alter, or remove any copyright, trademark, service mark, or proprietary rights notices on any XYZ Music Intellectual Property. Provider will not rent, lease, grant a security interest in, or otherwise transfer rights to the XYZ Music Intellectual Property.

C. XYZ Music Marks

The XYZ Music Marks shall be the sole and exclusive property of XYZ Music, which shall own all right, title, and interest therein. Provider may not use, copy, or distribute XYZ Music Marks without XYZ Music's prior written Approval in each instance. Provider shall promptly cease any use of XYZ Music Marks which is not Approved in writing by XYZ Music. Any Approval granted by XYZ Music for use of XYZ Music Marks is temporary, and subject to the Change Control Procedure, may be withdrawn by XYZ Music on prior written notice, and shall, unless otherwise specifically agreed by XYZ Music in writing, be construed to apply only to use of XYZ Music Marks in conjunction with providing the Services. Provider agrees not to claim any right, title or interest in XYZ Music Marks or to challenge XYZ Music's rights therein. All use by Provider of XYZ Music Marks and the goodwill generated thereby shall inure to the benefit of XYZ Music.

18.2 Provider Intellectual Property

A. Generally

All worldwide right, title, and interest in and to the following: all Intellectual Property used in connection with the Services that is owned by Provider or its Affiliates prior to the Effective Date, acquired or developed by Provider or its Affiliates independent of this Agreement and/or any previous agreements between the Parties, or licensed or leased or otherwise obtained by Provider or its Affiliates from a third party, in each case, including all modifications, enhancements, or derivative works thereof (collectively, "Provider Intellectual Property"), together with any and all intellectual property rights inherent in any of the Provider Intellectual Property and appurtenant thereto, including all patent rights, copyrights, trademarks, know-how, trade secrets, and related logos and product names, shall, subject to the license grants set forth in

Section 18.2B (License Grants) belong solely and exclusively to Provider or its third party licensors perpetually. XYZ Music hereby assigns, transfers, and conveys irrevocably and perpetually, and shall cause its employees, agents or subcontractors to assign, transfer, and convey irrevocably and perpetually, to Provider without further consideration all of its and their respective worldwide right, title, and interest in and to any and all Provider Intellectual Property. XYZ Music hereby waives any and all of its rights relating to certain “moral rights” that XYZ Music may have in any Provider Intellectual Property. XYZ Music acknowledges, and shall cause its employees, agents or subcontractors to acknowledge, that Provider and the successors and permitted assigns of Provider shall have the right to obtain and hold in their own names any intellectual property rights in and to such Provider Intellectual Property. XYZ Music agrees to execute, and shall cause its employees, agents, or subcontractors to execute, any documents or take any other actions as may reasonably be necessary, or as Provider may reasonably request, to perfect Provider' ownership of any Provider Intellectual Property.

B. License Grants

(1) Provider hereby grants to XYZ Music and the XYZ Music Entities during each Statement of Work Term and the Termination/Expiration Assistance Period(s), a non-exclusive, non-transferable right and license to access and use the Provider Intellectual Property delivered to XYZ Music for use in connection with Services. As between Provider and XYZ Music, and except as expressly set forth in this Section 18.2(B)(1) and Section 18.2(B)(2), all right, title and interest in and to any proprietary rights associated with the Provider Intellectual Property shall remain the exclusive property of Provider.

(2) To the extent Provider Intellectual Property is contained in XYZ Music Intellectual Property, Provider hereby grants to XYZ Music and the XYZ Music Entities a perpetual non-exclusive right and license to access and use such Provider Intellectual Property as it is contained in such XYZ Music Intellectual Property for XYZ Music's internal use (i.e., XYZ Music may not market it externally) and not to use such Provider Intellectual Property on a stand-alone basis.

(3) XYZ Music will not have any interest in Provider Intellectual Property, except for the license granted to it under this Agreement. Without limitation of the foregoing, except as necessary for the receipt of the Services, XYZ Music will not copy, decompile, disassemble, reverse engineer, or make, modify, enhance, create, or distribute any other form of or any derivative work from Provider Intellectual Property. Except as expressly permitted elsewhere in this Agreement, XYZ Music and the XYZ Music Entities will not assign, loan, sublicense, or otherwise transfer Provider Intellectual Property.

(4) XYZ Music's use of any Provider Intellectual Property that is pre-packaged third-party Software will be governed by the terms and conditions of the applicable third-party license agreements delivered to XYZ Music hereunder in advance of the use of such Software, if any.

(5) XYZ Music may not obscure, alter, or remove any copyright, trademark, service mark, or proprietary rights notices on any Provider Intellectual Property. XYZ Music will not rent, lease, grant a security interest in, or otherwise transfer rights to the Provider Intellectual Property.

C. Updates

Subject to the provisions of this Section 18.2C (Updates), Provider shall make available all improvements, enhancements, modifications, or updates (collectively, “Updates”) to the Software listed in any applicable Statement of Work, at no additional cost during each Statement of Work Term and the Termination/Expiration Assistance Period.

18.3 Non-Disclosure and Assignment Agreements

Provider shall ensure that all current and future employees of and consultants to Provider and Provider Agents (or any third parties) with access to or involved in the conception or development of any XYZ Music Intellectual Property have executed or shall execute a proprietary rights agreement pursuant to which such employee or consultant agrees to confidentiality and intellectual property assignment terms sufficient to enable Provider to meet its obligations to XYZ Music under this Section 18 (Intellectual Property Rights).

18.4 No Implied Licenses

Except as expressly specified in this Agreement, nothing in this Agreement shall be deemed to grant to one Party, by implication, estoppel or otherwise, license rights, ownership rights, or any other intellectual property rights in any Intellectual Property owned by the other Party or any Affiliate of the other Party.

18.5 Local Law Enforceability

During each Statement of Work Term and any time thereafter, Provider shall assist XYZ Music or its designee, at XYZ Music’s expense, in every proper way to secure all of XYZ Music’s worldwide perpetual ownership rights, title, and interest in XYZ Music Intellectual Property (and all licenses to Provider Intellectual Property granted pursuant to this Section 18 (Intellectual Property Rights)) in any and all countries, including the disclosure to XYZ Music of all pertinent information and data with respect thereto, the execution of all applications, registrations, filings, specifications, oaths, assignments, and all other instruments which XYZ Music shall deem necessary or appropriate in order to: (i) apply for and obtain such rights, title, and interest and in order to assign and convey to XYZ Music, its successors, assigns, and nominees the sole and exclusive rights, title, and interests worldwide perpetually in and to XYZ Music Intellectual Property; and (ii) obtain such license rights as set forth in this Section 18 (Intellectual Property Rights) in and to Provider Intellectual Property. Provider further agrees that its obligation to execute or cause to be executed any such instrument or papers shall continue after the expiration or termination of any applicable Statement of Work Term. If testimony or information relative to any of said matters or related to any interference or litigation is requested

by XYZ Music either during any Statement of Work Term or following expiration or termination of each such Statement of Work Term, Provider agrees to give all information and testimony and do all things requested that Provider may lawfully do. Without limiting the foregoing, Provider, at XYZ Music's request, agrees to execute such assignments and confirmations of: (i) assignment of all rights, title, and interests in and to XYZ Music Intellectual Property and (ii) license rights as set forth in this Section 18 (Intellectual Property Rights) in and to Provider Intellectual Property, each of (i) and (ii) in form acceptable to XYZ Music. To enforce its rights as per this Section 18 (Intellectual Property Rights), if XYZ Music is unable because of Provider's unavailability, refusal, dissolution or for any other reason to secure a signature by or on behalf of Provider to apply for or to pursue any application, registration, filing, or other instrument for any United States or foreign intellectual property rights covering the XYZ Music Intellectual Property, then Provider hereby irrevocably designates and appoints XYZ Music and its duly authorized officers and agents as Provider's agent and attorney-in-fact, to act for and on Provider's behalf and in its stead to execute and file any such application, registration, filing, or other instrument, and to do all other lawfully permitted acts to further the prosecution and issuance of such intellectual property rights, with the same legal force and effect as if executed by Provider.

18.6 Third Party Works

Provider shall not imbed any Third Party Works in a Deliverable or create a derivative work of Third Party Works as a Deliverable without Approval and without obtaining a non-exclusive license right for XYZ Music to use any such Third Party Works. At XYZ Music discretion, in the event of a request for such consent by Provider, Provider shall attempt to negotiate such rights and other concessions regarding such works or modifications for the benefit of XYZ Music, as XYZ Music may request. If Provider is required by this Agreement, or requested by XYZ Music, to implement, set-up, configure, or otherwise prepare any Third Party Works for use by XYZ Music or for use by Provider in performing the Services:

A. XYZ Music shall be, subject to the applicable ownership rights of the third party and the terms of any applicable third party agreement and the provisions of Section 18.7 (Patent Rights), the sole and exclusive owner of all copyright, trademark, trade secret, and any other proprietary rights in the Deliverables that are the output of such implementation, set-up, configuration, and other preparation efforts;

B. Provider shall deliver to XYZ Music a comprehensive documentation of such output, promptly after completion of such output; and

C. Provider shall have, and XYZ Music hereby grants to Provider, effective as of commencement of such efforts, a non-exclusive, fully-paid license to use, modify, and copy the applicable Deliverables, but solely for the purpose of performing such efforts and performing the Services and not for commercial exploitation, resale, or use in providing services to other customers.

18.7 Patent Rights

Except as expressly provided in this Section 18.7 (Patent Rights), all patent rights developed or created: (i) solely by either Party shall be owned by XYZ Music; and (ii) jointly by the Parties shall be owned by XYZ Music. Any patent rights developed or created by Provider in connection with the development or creation of a Deliverable shall be owned by XYZ Music. Provider shall be restricted from marketing or commercializing such patent rights. XYZ Music shall have sole right, title and interest in and to such patent rights. Each Party agrees to execute any documents and take other actions as may be necessary or reasonably requested by the other Party (as such other Party's expense) to perfect or register XYZ Music's ownership of any patent right. The foregoing shall not apply to patent rights applicable to Provider Intellectual Property.

19. Quiet Enjoyment

XYZ Music shall be entitled to use the System, Services, Provider Equipment, and Provider Software as provided in this Agreement without disturbance, subject only to XYZ Music's compliance with the terms of this Agreement in all material respects. Provider represents and warrants that this Agreement is neither subject nor subordinate to any right or claim of any third party, including Provider's creditors. Further, Provider represents and warrants that during each Statement of Work Term (including in connection with any assignment permitted under Section 38.1 (Assignment)), it will not subordinate this Agreement or any rights hereunder to any third party without the prior written consent of XYZ Music, and without providing in such subordination instrument for non-disturbance of XYZ Music's use of the Services, Provider Equipment, and Provider Software in accordance with this Agreement.

20. Documentation and Best Practices

Provider will have access to all existing Documentation related to the System developed and owned by XYZ Music, developed by a third party for XYZ Music and owned by XYZ Music, and licensed, leased, or otherwise obtained from a Third Party Vendor by XYZ Music, all of which shall be deemed to be Confidential Information of XYZ Music. On an ongoing basis, Provider must document the Services in sufficient detail that a qualified third party could understand the nature and scope of the Services. Provider shall provide XYZ Music with, at no additional Charge to XYZ Music, at least three (3) copies of all Documentation developed for XYZ Music under this Agreement or required to enable XYZ Music to fully utilize as permitted under this Agreement, the Services, Deliverables, Equipment, and Provider's Intellectual Property, at least one (1) copy of which shall be in a XYZ Music standard electronic form. Provider shall update and maintain all Documentation on no less than a monthly basis. When such Documentation is revised or supplemented, Provider shall deliver a copy of such revised or supplemental Documentation to XYZ Music within ten (10) business days after its general availability, at no cost to XYZ Music. XYZ Music may, at any time, reproduce copies of all Documentation provided by Provider under this Section, distribute such copies to the Authorized Users (subject to the confidentiality and non-use provisions contained herein) and incorporate such copies into its own technical manuals, provided that such reproduction, use and incorporation

relates solely to XYZ Music's use of the Services or the System, and copyright notices of Provider and its licensors, if any, are reproduced thereon. XYZ Music will be responsible for the failure of any Authorized User to comply with the confidentiality and non-use provisions contained herein with respect to any such Documentation.

21. Installation and Acceptance Tests

Unless otherwise agreed pursuant to a Statement of Work, Provider shall comply with the following installation and acceptance test criteria for all Deliverables provided by Provider under any Statement of Work, Project or New Service in order to confirm that the components of each such Deliverable satisfy the Specifications in all material respects. Each component of the installation and Acceptance Tests may not apply in all circumstances.

21.1 Installation Tests

Provider will confirm that the installation tests have been completed.

21.2 Additional Testing

After Provider delivers a notice of completion of the installation test to XYZ Music, (i) XYZ Music shall, with Provider's assistance, perform those acceptance tests as set forth in each applicable Statement of Work related to such Deliverables, Projects, and New Services, or (ii) if no such tests are set forth in an applicable Statement of Work, then XYZ Music shall, with Provider's assistance, perform such tests as are reasonable, timely and appropriate, including the following tests (individually, an "Acceptance Test" and collectively, the "Acceptance Tests"):

A. "Initial Component Testing" to determine whether the components of each Deliverable, Project and New Service have been properly installed and are operating in accordance with applicable Specifications.

B. "Multiple Component Testing" to determine whether several components of each Deliverable, Project, and New Service, acting in concert, have been properly installed and are operating in accordance with applicable Specifications.

C. "User Acceptance Test" to determine whether the components of each Deliverable, Project, and New Service interface and integrate properly with the System, and whether the components of each such Deliverable, Project, and New Service operate in the approved operating configuration and in accordance with Specifications.

D. "Final Test" to test the same functionality as the User Acceptance Test simulating XYZ Music's business practices impacted by the tested Deliverables and using actual data from XYZ Music's day-to-day operations.

Provider shall, at XYZ Music request, assist XYZ Music in the performance of each Acceptance Test.

21.3 Failed Acceptance Testing

As to the components of each Deliverable, Project, and New Service, if XYZ Music makes a good faith determination that a tested component or module has not successfully completed an Acceptance Test, XYZ Music shall promptly notify Provider in writing of such failure (hereinafter “Notice of Failure”), specifying with as much detail as possible the manner in which the component and module (as applicable) failed to pass an applicable Acceptance Test. Provider shall promptly commence all reasonable efforts to complete, as quickly as possible, such necessary corrections, repairs and modifications to the applicable component and module as will permit the component and module to be ready for retesting. Provider shall promptly notify XYZ Music when such corrections have been completed, and the Acceptance Tests shall begin again. If, after applicable Acceptance Tests are completed for a third (3rd) time, XYZ Music makes a good faith determination that the tested component and module (as applicable) again fails to pass the applicable Acceptance Test, XYZ Music shall promptly notify Provider in writing specifying in the notice its election either to: (i) afford Provider the opportunity to repeat the correction and modification process as set forth above; or (ii) depending on the nature and extent of the failure, and the components of the Deliverable, Project, or New Service impacted by such failure, in XYZ Music’s sole judgment, (a) terminate that portion of the tested component and module (as applicable) associated with the applicable Deliverable, Project, or New Service, in accordance with Section 31.3 (Termination for Cause by XYZ Music) as a non-curable default, or (b) if the failure to pass the applicable Acceptance Test materially impacts the function to XYZ Music of an entire Statement of Work, terminate the entire Statement of Work. The foregoing correct and modify procedure shall be repeated until the Deliverable, based on XYZ Music’s good faith determination, passes the applicable Acceptance Test, or XYZ Music elects to terminate the tested components, modules, or Statement of Work as set forth above. In the event of a termination under this Section 21.3 (Failed Acceptance Testing), Provider shall credit to XYZ Music, within ten (10) business days after written notice of termination, all sums paid to Provider by XYZ Music under the Statement of Work. If XYZ Music retains any portion of a tested component or module associated with a Deliverable, Project, or New Service, XYZ Music shall pay Provider for such retained tested component or module. If XYZ Music exercises its remedies under this Section 21.3 (Failed Acceptance Testing), such remedy shall be XYZ Music’s sole and exclusive remedy for termination and damages for the failure to meet the Acceptance Tests as to such terminated tested components, modules, Deliverables and Statements of Work (as applicable).

22. Pricing

22.1 General

All pricing methodologies and charges for Services to be performed shall be in accordance with the pricing methodology set forth in the Charges and Resource Baselines Exhibit to each Statement of Work. XYZ Music shall pay to Provider the amounts set forth in the applicable Statement of Work as payment in full for the Services under such Statement of Work. Except as otherwise expressly set forth in this Agreement or Statement of Work, XYZ Music shall not be obligated to pay any amounts to Provider for its performance of the Services and its other

obligations under this Agreement other than the amounts set forth in the Charges and Resource Baselines Exhibit to the Statement of Work. Provider acknowledges and agrees that this Agreement and any Statement of Work will not contain any assumptions that may serve as a means of re-opening the pricing or other terms hereunder.

22.2 Most-Favored Pricing

Provider's charges to XYZ Music for the Services shall be competitive with, or more customer-favorable than, Provider's charges for similar services to Universal Music Group (including its subsidiaries) and Warner Music Group (including its subsidiaries) (the "MFP Customers"), to the extent such companies are customers of Provider. If Provider offers to any MFP Customer similar services at similar volumes, with Provider's charges for the compared MFP Customer deals and Provider's Charges pursuant to this Agreement normalized to account for a difference in utilized Provider service locations, at a price materially lower or at a discount materially greater than the applicable Charges charged to XYZ Music hereunder, then such Charges shall automatically and retroactively be lowered by Provider to the extent necessary to match such lower price or greater discount (or, to the extent such Charges have already been paid, Provider shall promptly refund to XYZ Music the difference between the Charges already paid and the lower price for the time period during which such lower price has been in effect).

XYZ Music shall appoint an independent third party auditor, who is not a Provider Competitor, to perform an audit pursuant to this Section 22.2 (Most-Favored Pricing). Provider agrees that such auditor shall have access to any Provider Service Locations, Subcontractors' locations, and any other location where documents, records, agreements, and other materials related to this Agreement and the Services are stored, and any of Provider's or Subcontractors' agents, employees, and representatives, in order to examine and audit any and all pertinent documents, records, agreements, transaction, activity, and records relating to this Agreement and the pricing, charges, and fees, and any other pertinent information, associated with the agreements between Provider and any MFP Customer, for the purpose of confirming Provider's compliance with this Section 22.2 (Most-Favored Pricing). If Provider's agreements with any MFP Customer prevents Provider from providing access to the information contained in Provider's MFP Customer agreements to an auditor hired by XYZ Music, and provided that Provider has the right to disclose to an auditor any information that is included within its agreement with MFP Customer, then Provider shall retain such auditor to perform the audit pursuant to this Section 22.2 (Most-Favored Pricing) and shall invoice XYZ Music for the cost of the audit. Provider shall provide to such auditors and agents any assistance they may reasonably require in connection with such audits and inspections. Such audits shall take place annually or more frequently as XYZ Music may request. XYZ Music acknowledges that any audits performed pursuant to this Section shall not entitle any auditor to inspect any data, information, or records to the extent that such materials relate to Provider's other customers, except any MFP Customer. The results of any audit performed pursuant to the foregoing shall be the Confidential Information of Provider; provided, however, that XYZ Music shall be informed about the result of the audit as it relates to whether or not Provider is in compliance with this Section 22.2 (Most-Favored Pricing).

and, to the extent Provider is not in compliance with this Section 22.2 (Most-Favored Pricing), the degree of any variance or non-compliance.

22.3 All Fees Stated

Except as provided in this Section 22 (Pricing) and the Charges and Resource Baselines Exhibit to each Statement of Work, or as otherwise Approved, there are no other rates or charges applicable to the Services provided under this Agreement.

22.4 Taxes

XYZ Music shall pay all sales, use, excise, value added, services, consumption, or other taxes imposed on the delivery of the Services. If Provider is required by Law to charge value added taxes ("VAT"), Provider shall ensure that its invoices are in the proper form to allow XYZ Music to claim input VAT deductions. Provider, Provider Affiliates, and Provider Subcontractors shall be responsible for the compensation of their respective employees and agents, including any expatriate benefits, reimbursement of expenses, and the payment of all payroll taxes. Provider Personnel shall be responsible for all individual income taxes, including any taxes resulting from such Provider Personnel performing Services in a nation other than the nation in which such Provider Personnel is domiciled.

Provider Personnel who may be required to work on the XYZ Music Services for one (1) year or longer on site at a XYZ Music Service Location will be required to work remotely for thirty (30) consecutive calendar days in order to comply with any applicable tax regulations. Provider shall be responsible for monitoring and tracking all time spent by Provider Personnel on site at a XYZ Music Service Location and shall be responsible for implementing the foregoing. In that there is a tax consequence to XYZ Music as a result of the length of time any Provider Personnel perform Services at a XYZ Music Service Location, then Provider shall be responsible for any taxes imposed on XYZ Music, including any U.S. federal, state, and local taxes imposed by reason of failing to qualify for any deduction from gross income otherwise available under section 162(a)(2) of the United States Internal Revenue Code (relating to expenses for travel exceeding one (1) year).

22.5 Payment or Failure to Approve Does Not Imply Approval

The making of any payment by XYZ Music, or the receipt thereof by Provider, or the failure of XYZ Music to Approve any item under this Agreement, shall not imply approval of any Services or Deliverables, or the waiver of any warranties or requirements of this Agreement.

22.6 Withhold Remedy

A. General

In addition to, and cumulative of, all other remedies at law, in equity and provided under this Agreement or this Section 22.6 (Withhold Remedy), in the event Provider is in default of a material duty or obligation under this Agreement and it fails to cure the default within fifteen (15) calendar days after receipt of written notice of default from XYZ Music setting forth with reasonable specificity the nature of the default of a material duty or obligation and the requested remedy or cure, XYZ Music may, without waiving any other rights under this Agreement, elect to withhold Charges payable with respect to the affected Services from the payments due to Provider under this Agreement, during the period beginning with the sixteenth (16th) calendar day after Provider's receipt of notice of default and ending on the date that the default has been cured to the reasonable satisfaction of XYZ Music. In no event shall the amount of any such withholding be greater than the Charges associated with the specific Services which XYZ Music alleged are in default or the Services that Provider is not providing. Upon curing of the default by Provider, XYZ Music will cause the withheld payments to be paid to Provider, without interest.

B. Resolution of Disputes

If a dispute regarding billing is not resolved in accordance with Section 23.4 (Billing Disputes and Reports) within thirty (30) calendar days and XYZ Music has elected not to pay the disputed amount in accordance with this Section 22.6 (Withhold Remedy), no late payment charges will apply to the disputed amount pending resolution of the claim through the procedures set forth in Section 29 (Internal Dispute Resolution). Upon resolution of the claim, Provider shall issue to XYZ Music any applicable credit or reinstitute the disputed amount as an amount due within thirty (30) calendar days after the final resolution of the dispute.

23. Invoices and Payments

23.1 General

A. Within five (5) calendar days after the last day of each calendar month, Provider shall invoice XYZ Music for the Services provided in the preceding calendar month. Provider shall not invoice XYZ Music, and XYZ Music shall not be obligated to pay, any charges or other invoiced amounts (including pass through expenses) that are not properly invoiced within three (3) months after the end of the month in which such charges were incurred, unless a request for an extension is Approved within the three (3) months window. All bills are due and payable by XYZ Music on or prior to the thirtieth (30th) calendar day from the date of issue of an accurate and properly issued invoice. XYZ Music will have the right to set off against amounts owed by XYZ Music under the Agreement any amount the Provider is obligated to pay or credit XYZ Music under the Agreement (including Performance Credits) upon prior written notice to the Provider.

B. All invoices under this Agreement shall be submitted to the following address (submission by email unless otherwise requested by XYZ Music):

Entertainment Services SSC

Mexico, S.C.
191 Boulevard Manuel Avila Camacho
Int 202 y 202 Colonia Polanco
Delegacion Miguel Hidalgo
Ciudad de Mexico CP11510 Mexico

Attn: Matt Norman
Email: matt.norman@XYZmusic.com

23.2 Invoice Summary

Provider shall render, by means of an electronic file, a single consolidated invoice for all Charges incurred each month. If XYZ Music Affiliates are the recipients of the Services, Provider shall first send an informational invoice, conspicuously marked “Information Invoice – DO NOT PAY,” to XYZ Music for Approval. After such Approval, a separate invoice shall be sent to each Affiliate directly for payment. Except as otherwise directed by XYZ Music in writing, each invoice submitted by Provider shall be substantially similar to the sample invoice attached to the Charges and Resource Baselines Exhibit to each Statement of Work, and shall include a summary section that includes, at minimum, the following information:

- A. period of time covered by the invoice;
- B. total invoice amount according to Service type;
- C. current month payments
- D. balance due;
- E. calculations utilized to establish the charges;
- F. identification of all pass-through expenses for the month to which the invoice corresponds;
- G. identification of the amounts of any taxes the Provider is collecting from XYZ Music; and
- H. such other details and billing information as is necessary to satisfy XYZ Music’s internal accounting requirements or as specified by XYZ Music to meet its Sarbanes-Oxley Act reporting requirements, including as necessary to allow XYZ Music to accurately allocate charges by legal entity, business unit, department, XYZ Music Service Location and Statement of Work.

23.3 Billing Adjustments

Provider shall provide the XYZ Music Outsourcing Relationship Executive with a monthly summary of credit and debit billing adjustments. The summary shall include the number and types of billing adjustments identified, the number of billing adjustments resolved and the number and types of billing adjustments that are outstanding. Provider shall ensure that all billing debits and credits, including associated taxes, are distributed on the billing Reports and the invoice and are shown at the proper hierarchy level. If a billing adjustment is found to exceed Five Thousand U.S. Dollars (\$5,000), Provider shall notify the XYZ Music Outsourcing Relationship Executive before processing the billing adjustment to the billing Report and the invoice. Provider shall process all billing adjustments on the Reports and invoice. In no event shall a billing adjustment result in a net increase to any Charge invoiced more than one hundred and twenty (120) calendar days after the original invoice date for that Charge.

23.4 Billing Disputes and Reports

Provider and XYZ Music shall exercise good faith efforts to resolve all billing disputes to their mutual satisfaction within thirty (30) calendar days; provided, however, that in the event the billing dispute relates to Services provided to XYZ Music by a Subcontractor and the obligation to pay for such Service is passed through by Provider directly to XYZ Music, the aforementioned thirty (30) calendar day period shall commence on the date XYZ Music receives the invoice at issue from Provider. XYZ Music shall be entitled to withhold amounts in dispute under this Section 23.4 (Billing Disputes and Reports) in accordance with Section 22.6 (Withhold Remedy) without Provider claiming a default of a material duty or obligation by XYZ Music. A “billing dispute number” will be assigned by Provider to all billing disputes. The billing dispute number will be used by Provider and XYZ Music on all correspondence and Reports to identify the dispute. Provider shall provide the XYZ Music Outsourcing Relationship Executive with a monthly Report of the status of pending billing disputes.

24. Limitations of Liability and Damages

24.1 Damage Recovery Exclusion

EXCEPT AS OTHERWISE SET FORTH IN THIS AGREEMENT, IN NO EVENT SHALL EITHER PARTY (OR A PARTY’S AFFILIATES, SUBCONTRACTORS, EMPLOYEES, OFFICERS, OR DIRECTORS) BE LIABLE TO THE OTHER PARTY FOR INDIRECT, INCIDENTAL, COLLATERAL, PUNITIVE, CONSEQUENTIAL, OR SPECIAL DAMAGES, INCLUDING LOST PROFITS, REGARDLESS OF THE FORM OF THE ACTION OR THE THEORY OF RECOVERY, WHETHER IN CONTRACT OR IN TORT (INCLUDING BREACH OF WARRANTY, NEGLIGENCE AND STRICT LIABILITY IN TORT) EVEN IF SUCH PARTY HAS BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

24.2 Limitation of Liability Amount

Except as otherwise set forth in this Agreement, Provider's and XYZ Music's (and their respective Affiliates, Subcontractors, employees, officers, and directors) aggregate liability for all direct damages whatsoever, arising out of this Agreement, including all costs of cover, regardless of the form of the action or the theory of recovery whether in contract or tort (including breach of warranty, negligence, and strict liability in tort) shall be limited to (i) an amount equal to the total Charges paid and payable (excluding pass through expenses and taxes, if any) to Provider pursuant to this Agreement for the eighteen (18) months prior to the month in which the first primary event giving rise to liability occurred; provided, however, that if the first primary event giving rise to liability occurs during the first eighteen (18) months after the Effective Date of this Agreement, liability shall be limited to an amount equal to the Charges to be paid (excluding pass through expenses and taxes, if any) to Provider pursuant to this Agreement during the first eighteen (18) months after the Effective Date of this Agreement, and (ii) the Enhanced Cap of Liability for claims and liability subject to such cap. The "Enhanced Cap of Liability" shall mean the greater of (i) Eighteen Million U.S. Dollars (\$18,000,000), or (ii) the total amount of Charges paid (except for pass through expenses and taxes, if any) over the thirty-six (36) months preceding the date on which an event giving rise to a claim arose.

24.3 Exclusions

The limitations of liability and exclusions of certain damages set forth in this Section 24 (Limitations of Liability and Damages) shall not apply to claims or liability arising from:

A. any bodily injury or death to a person or physical damage to tangible property caused by Provider or XYZ Music (as appropriate);

B. either Party's obligations to indemnify the other Party under Sections 34.1(A), (B), (C), (E), or (F) (Indemnification of Provider by XYZ Music), and Sections 34.2(A), (B), (D), (E), (G), (H), (I), or (J) (Indemnification of XYZ Music by Provider), and Section 34.4 (Intellectual Property Indemnification) this Agreement;

C. any infringement or misappropriation by a Party of the other Party's Intellectual Property Rights;

D. fraud, willful misconduct, intentional breach, or gross negligence of a Party;

E. the wrongful termination of the Agreement, abandonment of any work performed or to be performed, or willful refusal to provide termination or expiration assistance services by Provider;

F. a breach by XYZ Music or Provider of the non-disclosure and confidentiality obligations set forth in this Agreement, including as a result of Provider's breach

of Schedule 3, Section II.D(a)(iii) of the Data Protection and Information Security Agreement and Section 8.4(A) of this Agreement;

G. Performance Credits paid or to be paid by Provider to XYZ Music under this Agreement or XYZ Music's payment obligations towards undisputed Charges under the Agreement; or

H. violation of Law by the other Party.

24.4 Application of Enhanced Cap of Liability

Pursuant to Section 24.2 (Limitation of Liability Amount), claims or liability arising from the following shall be subject to the Enhanced Cap of Liability:

A. either Party's obligations to indemnify the other Party under Section 34.1(D) (Indemnification of Provider by XYZ Music) and Sections 34.2(C) and (F) (Indemnification of XYZ Music by Provider); and

B. Provider's breach of any provision of this Agreement with respect to Provider's obligations to protect and secure XYZ Music Data, including any breach of the provisions of Exhibit C (Policies and Procedures) pertaining to XYZ Music information security and related requirements.

24.5 Direct Damages

The Parties agree that the following costs and damages, if incurred by either Party, shall be deemed direct damages, capped pursuant to Section 24.2 (Limitation of Liability Amount), 24.3 (Exclusions), or 24.4 (Application of Enhanced Cap of Liability), as applicable, and neither Party shall assert, and each is estopped from asserting, that they are special, indirect, incidental, consequential, or exemplary damages, including lost profits, or other damages for which recovery is excluded:

A. attorneys' fees;

B. costs of reconstructing or reloading data;

C. costs of implementing and performing work-arounds regarding a Service failure, and cost to procure replacement services from an alternate source as a result of Provider's failure to perform its obligations pursuant to this Agreement, pursuant to Section 6.4 (Step-in Rights);

D. costs of replacing lost, stolen, or damaged goods or materials;

E. overtime, straight time and related expenses and allocated overhead (including travel, lodging, and wages) as a result of a failure to perform; and

F. payments or penalties imposed by a governmental or regulatory body as a result of a failure to comply.

The Parties acknowledge that by defining the foregoing as direct damages, they are not precluding the recovery of other damages that may be otherwise agreed in writing by the Parties, to be direct damages.

25. Provider's Representations, Warranties, and Covenants

25.1 Authority

Provider represents, warrants and covenants that: (i) it is a corporation validly organized and existing under the Laws of the United Kingdom and has requisite corporate power and authority to own, lease, and operate its properties and to carry on its business as now being conducted; (ii) it has full power and authority under its organizational documents and the Laws of the United Kingdom to execute and deliver this Agreement and to perform its obligations hereunder; (iii) it has by proper action duly authorized the execution and delivery of this Agreement and, when validly executed and delivered, this Agreement shall constitute a legal, valid, and binding Agreement of Provider enforceable in accordance with its terms; and (iv) the execution and delivery of this Agreement and the consummation of the transaction herein contemplated does not conflict with or constitute a breach or default under Provider's organizational documents or under the terms and conditions of any documents, agreements, or other writings to which it is a party or contravene or violate any Law applicable to Provider.

25.2 Deliverables

All Deliverables provided hereunder, and all portions and components thereof, shall be free from material defects and errors and frequent defects and errors which become material due to the nature or frequency of the defect and errors, and shall operate in all material respects in conformance with the applicable Specifications. Provider shall promptly repair or replace any Deliverable, or any portion thereof, containing any such material defect or error that fails to so conform, and all such cures shall be at no additional Charge to XYZ Music.

25.3 Performance Warranty

Provider represents, warrants, and covenants that during each Statement of Work Term, Provider will provide the Services in accordance with the Service Levels, the Documentation, the Specifications, and all of the other requirements of this Agreement. Provider represents, warrants, and covenants that it is capable in all respects of providing the Services in accordance with the timelines and all other requirements of this Agreement.

25.4 Services

Provider represents, warrants, and covenants that all Services to be provided under this Agreement shall be performed in a professional and competent manner by appropriately

qualified Provider Personnel in accordance with this Agreement and consistent with Provider's best practices.

25.5 Information Furnished to XYZ Music

Provider represents, warrants, and covenants that, as of the date furnished, no statement contained in any written correspondence furnished by Provider to XYZ Music to clarify any terms of entering this Agreement, contains any untrue statements about the prior experience, capabilities, or corporate description of Provider, or omits any fact necessary to make such statement not misleading.

25.6 Litigation Warranty

Provider represents, warrants, and covenants that as of the Effective Date there are no existing or threatened legal proceedings against Provider that would have a material adverse effect upon Provider's or its Subcontractors' ability to perform its or their obligations under this Agreement or its or their financial condition or operations.

25.7 XYZ Music Data

Provider represents, warrants, and covenants that the Services and Provider's performance hereunder shall not, unless directed to by XYZ Music or pursuant to a Statement of Work, result in the loss, destruction, deletion, or alteration of any of XYZ Music Data. Provider shall promptly restore any of such XYZ Music Data up to the last available backup, the loss of which shall have been caused by or resulted from the Services or Provider's performance hereunder.

25.8 Licensed Users and Rights to Use Software

Provider represents, warrants, and covenants that it shall acquire, maintain, and continuously update (as applicable) the type and number of licenses required to grant XYZ Music and the XYZ Music Authorized Users the right to use the Software and other resources provided by Provider in order to utilize the Services, and otherwise comply with the terms of this Agreement. All third party license fees for such Software and other resources provided by Provider shall be at no additional cost to XYZ Music. To the extent that a third party license imposes a limit or restriction on XYZ Music's right to use the Software or other resources provided by Provider, as permitted in this Agreement, and such limit or restriction has not been identified in this Agreement, Provider shall take commercially reasonable actions and pay the license fees required to provide XYZ Music with all the rights to use and modify the Software and other resources provided by Provider afforded by this Agreement to the extent permitted.

25.9 Assignment of Warranties

Provider represents, warrants, and covenants that it shall assign and deliver, and agrees to assign and deliver, to XYZ Music all representations and warranties received by

Provider from Third Party Vendors, to the extent such warranties are assignable and relate to the Services and are required by XYZ Music to receive and use the Deliverables, including rights to recovery, where applicable. Provider shall, upon XYZ Music's request and at XYZ Music's cost, enforce such warranties that are not assignable, and track and notify XYZ Music of each warranty, and deliver to XYZ Music any documentation issued by a warrantor evidencing such warranty.

25.10 Disabling Devices

Provider represents, warrants, and covenants that it shall use its best efforts to ensure that no Disabling Devices are introduced into the System. If a Disabling Device is found to have been introduced into the System, whether or not by Provider or any of its Subcontractors, Provider shall, upon learning of any such Disabling Device, immediately notify XYZ Music and shall provide commercially reasonable assistance to XYZ Music in order to reduce the effects of, and to mitigate the losses from, the Disabling Device. Provider shall use its best efforts to continuously identify, screen and prevent any Disabling Device in resources utilized by Provider or resources under Provider's control in connection with the provision or receipt of the Services, and shall not itself install any Disabling Device in resources utilized by Provider, XYZ Music, or any Subcontractor, in connection with the provision or receipt of the Services. Any such assistance shall be pursuant to a Service Request but at no cost to XYZ Music unless XYZ Music was the sole cause of the Disabling Device infiltrating the affected resources and such cause could not have been reasonably prevented by use of best efforts as required herein.

25.11 Insurance Premiums

Provider represents, warrants and covenants that it will pay all premiums, deductible amounts and other costs required to continually maintain all insurance policies in accordance with Section 33 (Insurance and Indemnity) herein.

25.12 Compliance with Laws

Provider represents, warrants, and covenants that it shall comply, and shall require its Subcontractors to comply, as applicable, with all Laws relating to Provider's capacity as a business process management service provider or data processor, including OSHA regulations, human rights, and other employment labor Laws with respect to Provider Personnel who shall be performing Services, Environmental Laws, and HIPAA (collectively "Provider Regulatory Requirements"), as such Provider Regulatory Requirements are updated or amended from time-to-time. Provider shall identify, obtain and pay for permits, certificates, approvals and inspections required under such Provider Regulatory Requirements. Provider agrees to provide the information regarding the Services, and the Charges relating to the Services, as necessary to comply with the Sarbanes-Oxley Act. For avoidance of doubt, Provider is not responsible for determining the requirements of Laws applicable to XYZ Music's business, including those relating to Services XYZ acquires under this Agreement, or that Provider's provision of or XYZ Music's receipt of Services under this Agreement meets the requirements of such Laws.

25.13 Changes in Law and Regulations

Provider represents, warrants and covenants that it shall, at Provider's cost and expense, identify the impact of changes in Provider Regulatory Requirements on its ability to deliver the Services and perform its obligations under the Agreement. Provider shall notify XYZ Music of such Provider Regulatory Requirements within ten (10) business days after enactment of any such Provider Regulatory Requirements and shall work with XYZ Music to identify the impact of such changes on how XYZ Music uses the Services or on how Provider delivers the Services. XYZ Music and Provider shall promptly make any resulting modifications to the Services as reasonably necessary as a result of such Provider Regulatory Requirements through XYZ Music Policies and Procedures. Provider shall comply with changes to all Provider Regulatory Requirements and shall implement any necessary modifications to the Services prior to the deadline imposed, or extensions authorized by, the regulatory or other governmental body having jurisdiction for such Provider Regulatory Requirements. Upon Approval of a Change, Provider shall implement XYZ Music Regulatory Requirements, and shall implement any necessary modifications to the Services, in accordance with XYZ Music Policies and Procedures and any applicable Statement of Work.

25.14 Inducements

Provider represents, warrants, and covenants that it has not and will not violate Laws, or any of the XYZ Music Policies and Procedures of which Provider has been given notice or which have been made available to Provider, regarding the offering or receiving of unlawful inducements in connection with the Agreement.

25.15 Technical Architecture and Product Standards

Provider represents, warrants, and covenants that it shall (i) comply with XYZ Music Policies and Procedures, and (ii) obtain Approval for any material deviation from XYZ Music Policies and Procedures.

25.16 Proprietary Rights Infringement

Provider represents, warrants, and covenants that at no time shall any Services, techniques, method, Deliverables, materials, business processes, technology, products, Software, or data provided or used by Provider for the Services or Deliverables, or shall the use thereof by XYZ Music or XYZ Music Affiliates, infringe upon any third party's patent, trademark, copyright, or other Intellectual Property or proprietary right, and that Provider shall at no time misappropriate any trade secrets, or make use of any misappropriated trade secrets, in connection with the Services, System, or other Deliverables. Notwithstanding the foregoing, in the event of any claim that any such Provider Services, Deliverables, materials, business processes, technology, products, Software, or data, or any use thereof by XYZ Music or any XYZ Music Affiliates, infringes upon the Intellectual Property or proprietary right of any third party, or absent any such claim, Provider or XYZ Music becomes aware of an alleged infringement or the potential for infringement or misappropriation of any third party's Intellectual Property or proprietary rights,

Provider shall, at its sole cost and expense, promptly perform one of the following obligations: (i) use alternative methodologies, work processes, and methods to perform its obligations under this Agreement in order to avoid any infringement; or (ii) obtain the right to continue using the infringing, allegedly infringing, or potentially infringing materials. In the event that one of the foregoing remedies is not available and implemented within a reasonable period of time after Provider becomes aware of an infringement claim, or an alleged or potential infringement of the materials, then XYZ Music shall have the right to terminate this Agreement upon notice to Provider without the application of any termination charges.

Provider shall have no liability for any infringement claim based upon: (i) any modification of the Services, techniques, methods, Deliverables, materials, business processes, technology, products, Software, or data provided or used by Provider under this Agreement not provided or authorized by Provider in writing; (ii) use of Services, techniques, methods, Deliverables, materials, business processes, technology, products, Software, or data provided or used by Provider in combination with other programs or data, where such combination results in an infringement claim and such combination was not approved by Provider or reasonably anticipated by Provider, or (iii) use of the Services, techniques, methods, Deliverables, materials, business processes, technology, products, Software, or data provided or used by Provider in breach of this Agreement.

25.17 Open Source Warranty

Unless agreed otherwise, Provider represents, warrants, and covenants that it will not introduce any Open Source Software into the System. In the event of a breach of this Section, Provider shall provide a replacement to such Open Source Software product at no cost to XYZ Music, and fully install and implement such replacement Software product into the System without interference with the System or other operations.

26. XYZ Music Representations, Warranties, and Covenants

26.1 Authorization

XYZ Music represents, warrants, and covenants that: (i) it is a general partnership validly organized and existing under the Laws of the State of Delaware and has requisite corporate power and authority to execute and deliver this Agreement and to perform its obligations hereunder; (ii) it has full corporate power and authority under its organizational documents and the Laws of the State of Delaware to execute and deliver this Agreement and to perform its obligations hereunder; (iii) it has by proper action duly authorized the execution and delivery of this Agreement, and when executed and delivered by an authorized representative of XYZ Music, this Agreement shall constitute a legal, valid, and binding Agreement of XYZ Music, enforceable against XYZ Music in accordance with its terms; and (iv) the execution and delivery of this Agreement and the consummation of the transaction herein contemplated does not and will not conflict with or constitute a breach or default under XYZ Music's organizational documents

or under the terms and conditions of any documents, agreements, or other writings to which it is a party or contravene or violate any Law applicable to XYZ Music.

26.2 System Warranty

During the course of providing the Services, Provider may rely on instructions and application systems that are owned or licensed by XYZ Music (the “XYZ Music Instructions”). Provider will not be responsible for any XYZ Music damages arising out of Provider’s reliance upon such XYZ Music Instructions unless Provider knew or should have known that reliance upon the XYZ Music Instructions would cause or be likely to cause such damages.

26.3 Compliance with Laws

XYZ Music shall comply, and shall require its subcontractors to comply, as applicable, with all Laws relating to XYZ Music’s business, including, OSHA regulations, Environmental Laws and HIPAA (collectively “XYZ Music Regulatory Requirements”), as such XYZ Music Regulatory Requirements are updated or amended from time-to-time.

26.4 License to XYZ Music-Provided Materials

XYZ Music represents, warrants, and covenants that it oABC, or has the rights to license, to the Provider, all the XYZ Music Equipment and the XYZ Music Systems provided to the Provider for the purpose of Provider’s performance of the Services in accordance with this Agreement.

27. Warranty Disclaimer

27.1 Representations, Warranties, and Covenants Throughout Agreement

It is understood and agreed by the Parties that XYZ Music and Provider’s representations, warranties, and covenants are set forth in Section 25 (Provider’s Representations, Warranties, and Covenants), Section 26 (XYZ Music Representations, Warranties, and Covenants), and elsewhere in this Agreement and are not confined to Section 25 (Provider’s Representations, Warranties, and Covenants) and Section 26 (XYZ Music Representations, Warranties, and Covenants).

27.2 Warranty Disclaimer

THE WARRANTIES SET FORTH IN THIS AGREEMENT ARE MADE TO, AND FOR THE BENEFIT OF, XYZ MUSIC ENTITIES AND PROVIDER EXCLUSIVELY AND ARE IN LIEU OF ALL OTHER WARRANTIES. EXCEPT AS SPECIFICALLY PROVIDED IN THIS AGREEMENT, NEITHER PARTY MAKES NOR RECEIVES ANY OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY

IMPLIED WARRANTY OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE.

28. Remedy Waiver

This Agreement utilizes a number of “interim remedies” (including Service Level remedies, dispute resolution processes, payment withholds, and credit assessment mechanisms) to assist the Parties in effectively addressing performance issues that may arise during a Statement of Work Term. XYZ Music deems the various remedies as essential tools to its management of this Agreement. Nevertheless, such remedies are designed to achieve Provider’s effective ongoing performance of Provider’s obligations and responsibilities in this Agreement. Consequently, recognizing that circumstances may arise in which the imposition of the interim remedies as structured may not fairly reflect corrective and other efforts made by Provider, subject to Section 42 (Waiver), XYZ Music’s Chief Financial Officer may, in such individual’s sole discretion, waive XYZ Music’s right to use or collect a credit resulting from such interim remedies. Factors that will be considered by XYZ Music’s Chief Financial Officer in assessing whether to waive an interim remedy may include the following: (i) Provider’s proactive involvement in identifying a problem before operational impacts are manifested; (ii) the timing, quality, and accuracy of communications from Provider relating to a problem; (iii) the speed with which corrective actions are taken and the problem is fixed; (iv) the quality of Provider’s Root Cause Analysis and the likelihood that appropriate steps have been taken to prevent a reoccurrence of the problem; (v) the quality of Provider’s overall performance at the time the remedy right accrues and during the applicable Statement of Work Term; and (vi) the impact of other causal factors, including XYZ Music’s actions or inactions relating to the problem. Any waiver under this Section must be in writing, expressly state that it is a waiver under this Section and be signed by XYZ Music’s Chief Financial Officer and the XYZ Music Outsourcing Relationship Executive.

29. Internal Dispute Resolution

29.1 Intent

The Parties shall resolve their disputes informally to the maximum extent possible. The Parties shall negotiate all matters of joint concern in good faith, with the intention of resolving issues between them in a mutually satisfactory manner that reflects the concerns and commercial interests of each Party. It is also the intention to attempt to resolve issues at the appropriate levels of authority within each Party by escalating issues in accordance with the escalation process set out in Section 29.2 (Informal Resolution; Escalation Process). Only disputes within the scope of this Agreement are subject to this Section. Nothing in this Section shall preclude the Parties from exercising their termination rights pursuant to Section 31 (Termination) following the period specified in Section 29.2 (Informal Resolution; Escalation Process). The cost of internal dispute resolution shall be shared equally by the Parties. Each Party shall bear its own attorneys’ fees and costs in connection with the internal dispute resolution process. Except to the extent the Parties otherwise agree in writing to incur certain costs to support the internal dispute resolution process, such costs shall be shared equally by the Parties. The Parties agree that all

statements made in connection with internal dispute resolution efforts shall not be considered admissions or statements against interest by either Party, and further agree that they will not attempt to introduce such statements at any later trial, arbitration, or mediation between the Parties.

29.2 Informal Resolution; Escalation Process

Within seven (7) calendar days after a written request to begin informal dispute resolution by either Party, the XYZ Music Outsourcing Relationship Executive and the Provider Global Delivery Lead shall promptly confer to resolve the dispute that is the subject matter of the written request. If these representatives cannot resolve the dispute or either of them determines they are not making sufficient progress towards the resolution of the dispute within seven (7) calendar days after their initial conference, then the dispute shall be submitted to XYZ Music's Chief Financial Officer or SVP, Finance and Provider's EVP - DMRT, Industry Specific BPO, who shall promptly confer to resolve the dispute.

29.3 Fact Finding Report

The XYZ Music Outsourcing Relationship Executive and the Provider Global Delivery Lead shall provide XYZ Music's Chief Financial Officer or SVP, Finance and Provider's EVP - DMRT, Industry Specific BPO with a written description of the dispute, including the particular issues on which the Parties seek recommendations.

A. Fact Finding

XYZ Music's Chief Financial Officer or SVP, Finance and Provider's EVP - DMRT, Industry Specific BPO shall engage in fact finding as required and recommend how best to resolve the dispute. XYZ Music's Chief Financial Officer or SVP, Finance and Provider's EVP - DMRT, Industry Specific BPO may submit written questions to the Parties, request oral statements and review relevant documents.

B. Report

Within thirty (30) calendar days after XYZ Music's Chief Financial Officer or SVP, Finance and Provider's EVP - DMRT, Industry Specific BPO have convened to resolve the dispute, XYZ Music's Chief Financial Officer or SVP, Finance and Provider's EVP - DMRT, Industry Specific BPO shall submit a written report, including their findings of fact and recommendations for resolution, to the XYZ Music Outsourcing Relationship Executive and the Provider Global Delivery Lead. Upon conclusion of the dispute resolution process by XYZ Music's Chief Financial Officer or SVP, Finance and Provider's EVP - DMRT, Industry Specific BPO any documentation created by a Party for such dispute resolution process shall be returned to the Party submitting such documentation and copies shall either be returned or destroyed.

29.4 Dispute Resolution Mandatory

The dispute resolution process provided in this Section 29 (Internal Dispute Resolution) is a prerequisite to the exercise of any judicial remedies available to the Parties (including any claim for breach of contract pursuant to Section 31.3 (Termination for Cause by XYZ Music) or Section 31.4 (Termination for Cause by Provider)), except in cases where (i) a Party is seeking injunctive or other equitable relief; (ii) the purpose of seeking such judicial remedy is to prevent a claim from becoming time-barred under any statute of limitations; or (iii) the underlying dispute relates to any claims arising from or relating to any actual or potential intellectual property rights infringement, or Confidential Information. Otherwise, the Parties' representatives will reasonably endeavour to discuss each problem and attempt to resolve the dispute as soon as practicable and without the necessity of any formal proceedings. Subject to completion of the dispute resolution process provided in this Section 29 (Internal Dispute Resolution), either Party may commence judicial remedies for the resolution of a dispute if the Parties' executives named above conclude in good faith that amicable resolution through continued negotiation of the matter does not appear likely.

29.5 Support Not to be Withheld

Subject to Section 22.6 (Withhold Remedy), each Party agrees to continue performing its obligations under this Agreement while any dispute between the Parties is being resolved, except only to the extent the issue in dispute directly precludes such performance (dispute over payment shall not be deemed to preclude performance) unless and until such obligations are terminated by the termination or expiration of this Agreement.

29.6 Applicability to Disputes with Providers Other Than Provider

At no extra cost to XYZ Music, Provider agrees that, on XYZ Music's written request, Provider will participate in dispute resolution in accordance with this Section 29 (Internal Dispute Resolution) with XYZ Music and the XYZ Music Third Party Vendors to resolve any disputes between or among such Third Party Vendors, including Provider and XYZ Music, as to responsibility by any particular Third Party Vendor for issues arising from performance obligations to the extent related to the Services. Neither Party shall be required to submit Confidential Information to such Third Party Vendors unless the Third Party Vendors have executed an appropriate confidentiality agreement (containing terms no less protective of each Party than the terms contained herein) as to the information that will be disclosed to it in connection with the dispute resolution process.

30. Injunctive Relief

Either Party may seek and obtain immediate injunctive relief if it makes a good faith determination that a breach is such that the damages to the Party resulting from the breach will be so immediate, large, or severe and incapable of adequate redress after the fact, that a temporary restraining order or other immediate injunctive relief is the only adequate remedy. A Party filing a pleading seeking immediate injunctive relief, which is not awarded in substantial part, shall pay all reasonable costs and attorneys' fees of the other Party.

31. Termination

31.1 Change of Control of Provider

XYZ Music may terminate this Agreement on ninety (90) calendar days prior written notice in the event of the acquisition of all or substantially all of Provider's assets, or any merger by or with Provider in which Provider is not the surviving entity or in which Provider's principals do not remain in control of the surviving entity; provided, however, that XYZ Music must deliver any notice of termination pursuant to this Section 31.1 (Change of Control of Provider) within twelve (12) calendar months after the effective date of any such transaction. Notwithstanding the foregoing, XYZ Music shall acquire the Provider Equipment located at XYZ Music Service Locations pursuant to Section 32.4(C) (Right to Purchase Equipment).

31.2 Change of Control of XYZ Music

XYZ Music may, in its sole discretion, by giving ninety (90) calendar days prior written notice thereof to Provider, upon the occurrence of a Change of Control of XYZ Music, terminate this Agreement or any Statement of Work, in whole or in part, as of the termination date specified in the notice subject to the payment of fifty percent (50%) of the then-applicable Termination Charge.

31.3 Termination for Cause by XYZ Music

XYZ Music may terminate this Agreement, in whole or in part, in the following circumstances: (i) if Provider materially breaches any of its duties or obligations under the Agreement and fails to cure such breach within thirty (30) calendar days after written notice is provided by XYZ Music; (ii) upon thirty (30) calendar days prior written notice if Provider materially breaches any duty or obligation under this Agreement three (3) or more times in any twelve (12) month period, regardless of whether Provider cures such breach; (iii) immediately after Provider's breach of any obligation under this Agreement with respect to protection of XYZ Music's Confidential Information or XYZ Music Data, or any obligation with respect to data protection and privacy or XYZ Music's security procedures; (iv) if Provider materially breaches any duty or obligation under the Agreement that is not capable of being cured within thirty (30) calendar days after written notice is provided by XYZ Music; (v) if Provider commits numerous breaches of its duties or obligations under the Agreement which in the aggregate are material and fails to cure such numerous breaches within thirty (30) calendar days after written notice is provided by XYZ Music; (vi) upon occurrence of a Service Level Termination Event (as defined in an applicable Statement of Work); (vii) upon ten (10) calendar days prior written notice if Provider suspends the transaction of its usual business for more than four (4) business days for any reason; (viii) upon ninety (90) calendar days prior written notice if Provider's Auditors issue a SOC 2 Report that identifies deficiencies or problems in Provider's operating effectiveness, or contains a qualified opinion identifying an inadequate control, and Provider fails to comply with the terms of Section 36.4 (Audits) of this Agreement with respect to such deficiencies, problems, or inadequate controls; (ix) upon ninety (90) calendar days prior written notice if Provider shall

have experienced a material adverse change to its business, financial condition, or assets, and such adverse change has or may potentially have a material adverse effect on Provider's performance hereunder; or (x) upon thirty (30) calendar days prior written notice if Provider's Standard & Poor's credit rating drops to BBB- or lower (or an equivalent drop in rating by another reputable financial agency), and within thirty (30) calendar days thereof Provider does not provide adequate financial assurances to XYZ Music that Provider will be able to continue to perform its obligations under this Agreement in accordance with the terms of this Agreement and to XYZ Music's reasonable satisfaction. In each case, XYZ Music's written notice shall specify the acts, omissions, or events alleged to constitute such material breach, breaches, or events. If Provider fails to cure any such breach or breaches where a cure period is allowed as provided in this Section 31.3, or, as applicable, submit an acceptable plan of correction, within the applicable cure period, XYZ Music may terminate this Agreement as of the date set forth in such written notice.

31.4 Termination for Cause by Provider

If XYZ Music materially breaches any of its obligations under this Agreement, Provider shall promptly provide XYZ Music with written notice specifying in detail the acts, omissions, or events alleged to constitute such material breach and XYZ Music shall have thirty (30) calendar days within which to cure such breach or propose a reasonable plan to cure such breach. If XYZ Music fails within such thirty (30) calendar day period to cure such breach or to propose a reasonable plan for the cure thereof, Provider may terminate this Agreement upon written notice to XYZ Music. Provider's written notice shall specify the acts, omissions, or events alleged to constitute such material breach or breaches. If XYZ Music fails to cure any such breach within the applicable cure period, Provider may terminate this Agreement as of the date set forth in such written notice.

31.5 Termination for Regulatory Compliance

In the event Provider's relationship with XYZ Music under this Agreement is identified in writing by any regulator having jurisdiction over XYZ Music, including, but not limited to the FDIC, to present a risk to XYZ Music or its customers that requires correction, XYZ Music shall notify Provider of such identification. In the event the Parties are unable for any reason through reasonable efforts to resolve the identified issue to the satisfaction of the relevant regulator within the timeframe mandated by the regulator, XYZ Music may, upon ninety (90) calendar days prior written notice to Provider, terminate this Agreement for convenience and without obligation to pay any termination fee or penalty to Provider.

31.6 Termination for Insolvency

In addition to XYZ Music rights under Section 37 (Bankruptcy and Liquidation), if Provider becomes or is declared insolvent, becomes subject to a voluntary or involuntary bankruptcy, or similar proceeding, or makes any assignment for the benefit of any of its creditors, then XYZ Music may terminate this Agreement on ten (10) business days prior written notice to Provider.

31.7 Termination for Change in Law

XYZ Music shall have the right to terminate this Agreement, in whole in part, by giving ninety (90) calendar days (or such shorter period if required by Law) prior written notice thereof to Provider without cost or penalty and without payment of any Termination Charge, in the event a Law or change in Law that significantly adversely impacts or affects the Services or otherwise makes it illegal for XYZ Music to obtain Services from Provider.

31.8 Termination for Official Action

If an Official Action causes a material prohibition or delay in the Transition or a Party's performance of its obligations under this Agreement, XYZ Music shall have the right to terminate the affected portion of the Services (or if the affected portion would materially impact the performance of other Services, terminate this entire Agreement), without cost or penalty and without payment of any Termination Charge by giving ninety (90) calendar days (or such shorter period if required by an Official Action) prior written notice thereof to Provider.

31.9 Termination for Failure to Implement Benchmark Adjustments

If the Parties are not able to agree to an adjustment to the Provider Charges pursuant to Section 7.2 (Benchmark Adjustments) within thirty (30) calendar days after the start of good faith negotiations following each Party's receipt of the Benchmarking report, then XYZ Music may, upon sixty (60) calendar days prior written notice to Provider terminate this Agreement, in whole or in part, for and, for the avoidance of doubt, the Parties agree that any such termination shall not give rise to any obligation on the part of XYZ Music to pay Termination Charges or any right of Provider to seek Termination Charges or damages or any kind whatsoever.

31.10 Termination for Exceeding a Portion of the Liability Cap

If, at any time during any Statement of Work Term, the total aggregate liability of Provider arising out of or relating to this Agreement exceeds sixty percent (60%) of the Liability Cap or the Enhanced Cap of Liability, then at Provider's option the available Liability Cap or Enhanced Cap of Liability, as applicable, shall refresh to an amount at least equal to the original amount of the Liability Cap or Enhanced Cap of Liability, as applicable, or such other amount as agreed by the Parties. In addition to the foregoing, prior to the start of each Statement of Work Initial Term, and prior to the start of any renewal or extension thereto, if any, Provider shall automatically refresh the available Liability Cap and Enhanced Cap of Liability to an amount at least equal to the original amount of the Liability Cap or Enhanced Cap of Liability. If Provider opts not to refresh pursuant to the foregoing, or otherwise fails to so refresh in accordance with the foregoing, then XYZ Music may, by giving Provider at least thirty (30) calendar days written notice designating the termination date, terminate this Agreement, in whole or in part, without payment of any Termination Charges.

31.11 Termination for Convenience

XYZ Music may, in its sole discretion, elect to terminate this Agreement or any Statement of Work at its convenience (i.e., for any reason whatsoever or no reason at all) provided it shall, at the time of such election and unless otherwise provided in this Agreement, (i) provide Provider with ninety (90) calendar days prior written notice; and (ii) pay a termination fee based on the termination for convenience fee schedule in the Charges and Resource Baselines Exhibit to each Statement of Work being terminated, if any.

31.12 Termination Assistance

After the effective date of any termination pursuant to this Section 31 (Termination) or elsewhere in the Agreement, Provider shall continue to provide Services in accordance with Section 32 (Termination and Expiration Assistance Services) for which it shall be compensated by XYZ Music as provided in Section 32.2 (Performance of Services).

31.13 Payment of Fees

If this Agreement is terminated under this Section 31 (Termination) or under any other Section of this Agreement, XYZ Music agrees to pay to Provider the undisputed Charges for Services satisfactorily performed by Provider under this Agreement up to and including the effective date of termination, but shall not pay other charges or fees related to such termination, unless specifically described in this Section 31 (Termination).

31.14 Extension of Termination/Expiration

XYZ Music may extend the effective date of termination or expiration of any Statement of Work one or more times by giving at least thirty (30) calendar days prior written notice as it elects, at its discretion.

32. Termination and Expiration Assistance Services

32.1 Termination and Expiration Transition Plan

Provider understands and agrees that XYZ Music's business operations are dependent on the Services, and that XYZ Music's inability to receive the Services shall result in irreparable damages to XYZ Music. Therefore, upon the expiration of this Agreement or its termination by either Party for any reason, including the breach of this Agreement by the other Party, Termination and Expiration Assistance Services shall be provided as set forth in this Section 32 (Termination and Expiration Assistance Services), provided that in the event Provider terminates the Agreement pursuant to Section 31.4 (Termination for Cause by Provider) as a result of XYZ Music's failure to pay amounts invoiced and due in accordance with this Agreement, then Provider shall be under no obligation to provide Termination and Expiration Assistance Services until outstanding amounts then due and payable by XYZ Music have been received by Provider. If no Termination Transition Plan has yet been agreed to at the time of expiration or termination,

the rights of XYZ Music upon any expiration or termination of this Agreement shall be as set forth in this Section 32 (Termination and Expiration Assistance Services). If a Termination Transition Plan has been agreed to, then the rights of XYZ Music upon any expiration or termination of this Agreement shall be as set forth in the most recently Approved Termination Transition Plan, and also as set forth in this Section 32 (Termination and Expiration Assistance Services). If there are any inconsistencies between this Section 32 (Termination and Expiration Assistance Services) and the applicable Termination Transition Plan, this Section shall govern. If no Termination Transition Plan has been agreed to by the Parties at the time of any expiration or termination of this Agreement, then Provider shall provide the professional services staff necessary to provide (i) the Services (as requested by XYZ Music) at the Service Levels in effect at the time of termination or expiration, and (ii) the Termination and Expiration Assistance Services.

32.2 Performance of Services

Provider and XYZ Music agree that their mutual cooperation is important to an effective transition of Services to XYZ Music or XYZ Music's designated providers. Provider shall have no right to withhold or limit any of the Services on the basis of any alleged breach of this Agreement by XYZ Music, other than a failure by XYZ Music to timely pay the undisputed amounts due for Services rendered during the termination transition period. Subject to Section 32.1 (Termination and Expiration Transition Plan), XYZ Music shall have the right to seek specific performance of this Section 32 (Termination and Expiration Assistance Services) in any court of competent jurisdiction, and Provider hereby waives any defense that damages are an adequate remedy.

32.3 Termination Transition Period

Unless otherwise directed by XYZ Music, commencing: (i) six (6) months prior to the expiration of the Agreement; (ii) upon any notice of termination or non-renewal of the Agreement; or (iii) six (6) months prior to any other ceasing of Service under the Agreement, and continuing for a period defined in the Termination Transition Plan, but in no event less than twelve (12) months following the expiration or termination of this Agreement (unless a shorter time period is requested by XYZ Music), Provider will continue to provide the Services (including the Termination and Expiration Assistance Services) as requested by XYZ Music. After such twelve (12) month period (or such shorter time period as requested by XYZ Music), unless otherwise directed by XYZ Music, Provider shall provide extensions of the Services (including the Termination and Expiration Assistance Services) as requested by XYZ Music in thirty (30) calendar day extension terms for up to an additional six (6) months. The total termination transition period shall not exceed eighteen (18) months, unless otherwise agreed by the Parties.

32.4 Transition Services

A. Description of Transition Services

Provider will provide the following Termination and Expiration Assistance Services at XYZ Music's request: (i) assist XYZ Music in developing the Termination

Transition Plan, which plan shall include capacity planning, facilities planning, human resources planning and data transport and telecommunications planning necessary to effect the transition; (ii) perform programming and consulting services as requested to assist in implementing the Termination Transition Plan; (iii) train personnel designated by XYZ Music in the use of the System; (iv) catalog all Software, XYZ Music Data and Equipment used to provide the Services, provide machine readable and printed listings of Source Materials for Software to the extent such Source Materials are generally made available for such Software and assist in its reconfiguration; (v) analyze and report on the space required for XYZ Music Data and the Software needed to provide the Services, and convert data as required; (vi) assist in the execution of a parallel operation, data migration, and testing process until the transition to XYZ Music or XYZ Music's designee has been successfully completed; (vii) create and provide copies of XYZ Music Data in the format and on the media reasonably requested by XYZ Music and, when directed by XYZ Music to do so, delete (and certify such deletion in writing) all of XYZ Music Data in Provider's possession or control from any tapes or other data storage media, including written records, in Provider's possession or control; (viii) provide a complete and up-to-date electronic copy of the Policies and Procedures Manual, in the format and on the media reasonably requested by XYZ Music; (ix) identify and assist XYZ Music in provisioning a suitable functionally equivalent replacement for any shared hardware and software then used by Provider to provide the Services; (x) provide parallel services until transition to a new system; (xi) provide on-site technical support; (xii) cooperate with XYZ Music or its designated vendor in developing required Interfaces; (xiii) meet with XYZ Music as soon as practicable after a notice of termination or notice of a decision to not extend this Agreement has been given to discuss any potential modifications to the then most current Termination Transition Plan; (xiv) use commercially reasonable efforts to assist XYZ Music in effecting a smooth and seamless transition of the Services, in accordance with industry standard practices, to XYZ Music or another vendor chosen by XYZ Music; (xv) provide the number and types of resources necessary to complete the transition in accordance with the Termination Transition Plan; and (xvi) provide such other services as shall be necessary or appropriate to facilitate, without interruption to the Services, the smooth, orderly and seamless transition of Services to XYZ Music or its new provider of services in accordance with industry standard practices. If Provider is providing any Services hereunder at the time of such transition utilizing any software license from a Third Party Vendor, Provider shall, at the request of XYZ Music and if permissible under the applicable agreement, promptly transfer such license to XYZ Music or sublicense such Software to XYZ Music.

B. License to Software and Intellectual Property

To the extent XYZ Music or its designee is entitled to a license, sublicense, or other right to use any Software or other Intellectual Property utilized in performing the Services, Provider shall provide XYZ Music or its designee with such license, sublicense, or other right, including, where XYZ Music has such right, a copy of all Source Materials, Object Code and Documentation related to Software, in Provider's possession or control, in a form reasonably requested by XYZ Music.

C. Right to Purchase Equipment

XYZ Music or its designee shall have the right (but not the obligation, except as set forth in Sections 31.1 (Change of Control of Provider), 31.6 (Termination for Insolvency), 31.9 (Termination for Failure to Implement Benchmark Adjustments), or 31.11 (Termination for Convenience)), upon reasonable notice, to purchase any Equipment owned by Provider and which, on the date of expiration or termination of this Agreement, Provider is using on a dedicated basis to perform the Services. Additionally, at XYZ Music's request, Provider shall use commercially reasonable efforts to provide XYZ Music with the right to either (i) lease directly from the applicable third party lessor (other than a Provider Affiliate) any leased Equipment that on the date of expiration or termination of this Agreement Provider is using on a dedicated basis to perform the Services, or (ii) assume Provider's lease for any such Equipment (other than as to Equipment provided by a Provider Affiliate); provided, however, that Provider shall use commercially reasonable efforts to minimize any costs associated with the exercise of any such right by XYZ Music and any transfer, assumption, or termination fees or expenses associated with the exercise of any such right shall be the responsibility of, and paid for by, XYZ Music. XYZ Music shall assume such lease obligations (or pay for the applicable lease buy-out) if obligated to do so in accordance with the Charges and Resource Baselines Exhibit to a Statement of Work. In all cases, such owned or leased Equipment shall be transferred in good working condition, reasonable wear and tear excepted, as of the expiration or termination date or the completion of any Services associated with such Equipment requested by XYZ Music under this Agreement, whichever is later. In the case of Provider-owned Equipment, Provider shall grant to XYZ Music a warranty of title and a warranty that such Equipment is free and clear of all liens and encumbrances. Such conveyance by Provider to XYZ Music shall be at net book value calculated in accordance with generally accepted accounting principles using the depreciation schedule customarily used by Provider for the applicable type of equipment (including equipment dedicated to Provider's internal use, used at shared Provider service facilities and dedicated to specific Provider customers). In the case of leased Equipment, Provider shall represent and warrant that the lease is not in default and that all payments thereunder have been made through the date of transfer.

D. Return of XYZ Music Equipment

Provider shall return to XYZ Music, if not previously returned, all XYZ Music Equipment, in condition at least as good as the condition thereof on the applicable Statement of Work Effective Date, ordinary wear and tear excepted. Such Equipment shall be returned at the expiration or termination date or the completion of any Services or Termination and Expiration Assistance Services associated with such Equipment requested by XYZ Music under this Agreement, whichever is later.

E. Subcontracts

Provider shall inform XYZ Music of Subcontracts or Third Party Vendor contracts primarily dedicated by Provider, Provider Subcontractors, or Provider Affiliates

to perform the Services. XYZ Music shall retain the right to contract directly with any such Subcontractor or Third Party Vendor. Additionally, Provider shall use commercially reasonable efforts to provide XYZ Music with the right to contract directly with any Subcontractor or Third Party Vendor previously utilized by Provider to perform any Services or to assume Provider's contract with such Subcontractor or Third Party Vendor.

F. Date of Assignment

If Provider is able to obtain the right for XYZ Music to assume such Subcontracts and Third Party Vendor contracts in accordance with Section 32.4(E) (Subcontracts), Provider shall assign the designated Subcontracts and Third Party Vendor contracts to XYZ Music or its designee as of the expiration or termination date or the completion of any Services associated with such Subcontracts or Third Party Vendor contracts, whichever is later. There shall be no charge or fee imposed by Provider on XYZ Music related to such assignment and Provider shall use commercially reasonable efforts to minimize or eliminate any such charges or fees imposed by any Subcontractors or Third Party Vendors. To the extent charges or fees are imposed by any Subcontractors or Third Party Vendors, such costs shall be paid by XYZ Music. Provider shall (i) represent and warrant that it is not in default of such Subcontracts and Third Party Vendor contracts, (ii) represent and warrant that all payments have been made thereunder through the date of assignment, and (iii) notify XYZ Music of any defaults by Subcontractors or Third Party Vendor contractors with respect to such Subcontracts and Third Party Vendor contracts of which Provider is then aware. Subject to Provider's compliance with the requirements of this Section, XYZ Music shall represent and warrant to Provider that, from the date of assumption, it will assume all contractual responsibilities and liability associated with such Subcontracts and Third Party Vendor contracts assigned to XYZ Music hereunder.

33. Insurance and Indemnity

33.1 Required Insurance Coverage

Provider shall obtain, pay for, and maintain in full force and effect during each Statement of Work Term under this Agreement insurance, including worldwide coverage, as follows:

A. Workers' Compensation Insurance for the U.S. Affiliates of the Provider at statutory limits and Employers' Liability Insurance with limits of Five Million U.S. Dollars (\$5,000,000) per occurrence, One Million U.S. Dollars (\$1,000,000) disease each employee, and One Million U.S. Dollars (\$1,000,000) disease aggregate.

B. Commercial General Liability Insurance, including blanket contractual and products liability, with limits of not less than One Million U.S. Dollars (\$1,000,000) per occurrence, Two Million U.S. Dollars (\$2,000,000) general aggregate, Two Million U.S. Dollars (\$2,000,000) products-completed operations aggregate and One Million U.S. Dollars (\$1,000,000) personal and advertising injury aggregate. Contractual liability coverage must be included under the Commercial General Liability Insurance.

C. Commercial Automobile Liability Insurance where statutorily required with limits of liability not less than One Million U.S. Dollars (\$1,000,000) for bodily injury and property damage (the Commercial Automobile Liability coverage must include coverage for all owned, leased, non-owned and hired automobiles).

D. Umbrella or Excess Liability Insurance Policy with limits of not less than Fifteen Million U.S. Dollars (\$15,000,000) per occurrence and Fifteen Million U.S. Dollars (\$15,000,000) general aggregate, with a combined single limit for bodily injury and property damage (the Umbrella Liability Policy must be in excess of the General Liability, Commercial Automobile Liability, and Employer's Liability coverages, and follow form from them).

E. Professional Liability Insurance (Errors & Omissions Insurance) with limits of not less than Ten Million U.S. Dollars (\$10,000,000) per wrongful act and in the annual aggregate for all claims arising out of, or for services and products to be provided pursuant to, this Agreement, and shall cover any and all errors, omissions, and negligent acts in the delivery of products, services (including the Services) and licensed programs under this Agreement.

F. Property Insurance underwritten on an all risk insuring agreement, including the peril of flood and earth movement, or equivalent, with limits not less than one hundred percent (100%) of the replacement cost value of Provider's Business Personal Property and Equipment situated at a XYZ Music Service Location. XYZ Music Entertainment shall be named as a loss payee with respect to the inventory or finished goods.

G. Fidelity Bond or equivalent Commercial Crime Insurance with limits of not less than Eight Million U.S. Dollars (\$8,000,000) per Insuring Agreement and in the annual aggregate. Provider's fidelity bond shall be on a loss sustained or discovery basis and provide coverage for loss of money, securities, and other property, which XYZ Music may sustain through any fraudulent or dishonest acts committed by Provider's employees acting alone or in collusion with others. Property shall include, but not be limited to, any property for which Provider is legally liable.

H. Cyber/Privacy Insurance with limits of not less than Eighteen Million U.S. Dollars (\$18,000,000) aggregate. Coverage must be provided for Security Liability, Privacy Liability, network security risks (such as data breaches, unauthorized access / use, identity theft, ransomware, invasion of privacy, damage, loss, and/or theft of data, degradation, downtime, and similar losses or activities), loss of Confidential Information or data, Privacy Regulatory Defense and Penalties, Multimedia Liability, and costs associated with an Incident as defined under this Agreement.

33.2 Claims Made Coverages

To the extent any insurance coverage required under this Section 33 (Insurance and Indemnity) is purchased on a "claims-made" basis, such insurance shall cover all acts of Provider during each Statement of Work Term under this Agreement, and such insurance shall be continuously maintained until at least three (3) years beyond the expiration or termination

of this Agreement, or Provider shall purchase “tail” coverage, effective upon termination of any such policy or upon termination or expiration of this Agreement, to provide coverage for at least three (3) years from the occurrence of either such event.

33.3 Certificates of Insurance

Certificates of insurance evidencing all coverages described in this Section 33 (Insurance and Indemnity) shall be furnished to XYZ Music on the Effective Date. Certificates must also be provided thereafter on an annual basis or when requested by XYZ Music. XYZ Music will be identified as an additional insured only under Commercial General Liability Insurance. XYZ Music will be specifically evidenced on each certificate of insurance as follows:

- XYZ Music Entertainment, and its parents, subsidiaries, divisions, and associated and affiliated companies and their respective directors, officers, shareholders, partners, agents, employees, successors, assigns, and joint ventures as named as additional insured.
- The certificate holder shall be listed as follows:

XYZ Music Entertainment
25 Madison Avenue
New York, New York 10010
Attn: Matt Norman

Insurance policies required to be maintained pursuant to this Agreement shall contain a waiver of subrogation only under Commercial General Liability Insurance, will be primary insurance over any other valid and collectible insurance that the additional insureds may have with respect to loss arising out of Provider’s operations or Provider’s provision of the Services pursuant to this Agreement, will provide that other insurance of any additional insured applicable to a loss is excess over the obligations under each applicable insurance policy, and will provide that the carrier’s liability under each such policy will not be reduced by the existence of such other insurance. Insurance coverages required to be maintained pursuant to this Agreement do not limit Provider’s liability pursuant to this Agreement.

33.4 Subcontractors To Be Insured

Provider shall require all of its Subcontractors to carry insurance coverages and limits as agreed to and Approved in writing by XYZ Music, and shall require that XYZ Music be listed as additional insured as their interest may appear on the Commercial General Liability and Umbrella or Excess Liability policies required by this Agreement and Loss Payee on Property pertaining to XYZ Music.

33.5 Cancellation or Lapse of Insurance

Provider shall give thirty (30) calendar days prior written notice to XYZ Music of cancellation, non-renewal, or material change in coverage, scope, or amount of any policy. Should Provider fail to keep in effect at all times the insurance coverages required under this Section 33 (Insurance and Indemnity), XYZ Music may, in addition to and cumulative with any other remedies available at law, equity, or hereunder withhold payments to Provider required under this Agreement in an amount sufficient to procure the insurance required herein.

33.6 Other Insurance Requirements

Whenever commercially reasonable or possible, insurance policies required hereunder shall be issued by insurance companies: (i) authorized to do business in all locations where Services are to be performed; and (ii) with policy holder ratings no lower than “A-” and financial ratings not lower than “XI” in the Best’s Insurance Guide, latest edition in effect as of the Effective Date. Upon written request by XYZ Music, Provider will provide to XYZ Music policy extracts and policy form numbers to clarify an insurance certificate or as otherwise needed in the course of XYZ Music’s business activities. Provider agrees that all insurance coverages required under this Section 33 (Insurance and Indemnity) shall be provided through policies obtained from unaffiliated third parties, and not through any form of self-insurance.

34. Indemnification

34.1 Indemnification of Provider by XYZ Music

XYZ Music shall indemnify, defend, and hold Provider Indemnitees harmless from and against any and all Losses arising out of or with respect to this Agreement, to the extent such Losses are caused by, relate to, or arise out of any of the following:

A. the gross negligence (whether by act or failure to act) or willful misconduct of XYZ Music, or any of its directors, officers, employees, or subcontractors;

B. any third party claim alleging bodily injury, including death, or damage to tangible personal or real property to the extent that such injury or damage arises from physical acts or omissions that constitute negligence, willful misconduct, or violations of Law by XYZ Music or its personnel, agents, or subcontractors;

C. the violations by XYZ Music of any Law of any jurisdiction under which the Parties are required to perform this Agreement, including any codes, administrative orders, security rules, or decrees, unless such violation was known or should have been known to Provider and Provider failed to timely notify XYZ Music of such violation;

D. the breach of any representation or warranty of XYZ Music made pursuant to this Agreement; or

E. XYZ Music's use of any Provider Equipment, Software, or other materials provided by Provider in contravention of this Agreement or as otherwise authorized by Provider.

34.2 Indemnification of XYZ Music by Provider

Provider shall indemnify, defend, and hold the XYZ Music Indemnitees harmless from and against any all Losses arising out of or with respect to this Agreement or the Services, to the extent that the Losses are caused by, relate to, or arise out of any of the following:

A. any claim alleging the gross negligence (whether by act or failure to act) or the willful misconduct of Provider or any of its directors, officers, employees, agents, or Subcontractors;

B. any claim alleging the violation by Provider of any Law of any jurisdiction under which the Parties are required to perform this Agreement, including any codes, administrative orders, security rules, or decrees, except to the extent such violation resulted from Provider following XYZ Music Policies and Procedures or other written instructions;

C. the breach of any representation or warranty of Provider made pursuant to this Agreement;

D. any claim by any Provider Personnel, including the Provider Key Employees, based on his or her employment with Provider, including claims for wrongful termination or severance payments;

E. any claim alleging any violation by Provider of any Law for the protection of persons or members of a protected class or category of persons;

F. any claim by any third party alleging the negligent dissemination by Provider or Subcontractors (or any personnel assigned by Provider or Subcontractors to perform any of Provider's obligations under this Agreement) of false or incorrect information or information that XYZ Music directed Provider not to disseminate, or Provider's negligent failure to disseminate information that Provider is obligated to provide in accordance with the agreed upon method and procedure;

G. any breach of Section 35 (Confidentiality) or any provision of this Agreement requiring the protection or security of XYZ Music Data;

H. Provider's alleged failure to pay, when due, all taxes and other obligations required of Provider with respect to Provider's employees (collectively, "Employment Claims") and Provider shall pay to XYZ Music any and all Provider expenses or charges relating to or arising from any such Employment Claims as they are incurred by XYZ Music;

I. any third party claim alleging bodily injury, including death, or damage to tangible personal or real property to the extent that such injury or damage arises from alleged physical acts or omissions that constitute negligence, willful misconduct, or violations of Law by Provider or its personnel, agents, or Subcontractors;

J. Provider's use of any XYZ Music Equipment, XYZ Music Service Locations, Software, or any other materials furnished by XYZ Music under this Agreement in contravention of this Agreement;

K. Provider's breach of Section II.D(a)(iii) of the Data Protection and Information Security Agreement; and

L. Provider's breach of Section 8.4(A) of this Agreement.

34.3 WARN Act

Provider shall be solely and fully responsible for (and XYZ Music shall have no responsibility with respect to) compliance with the WARN Act including all WARN Notices required by the WARN Act, or other applicable Law. Provider shall indemnify, defend, and hold the XYZ Music Indemnitees harmless from and against any and all Losses related to claims or allegations made by any Provider employee or former employee claiming or alleging that Provider has violated the WARN Act in any way, including in connection with: (i) the termination of employment by Provider of any employee; or (ii) any failure, at any time, to give any Provider employee or former employee any required WARN Notice regarding any termination, hiring, or other employment-related actions that occur pursuant to this Agreement. Provider shall be solely and fully responsible for (and XYZ Music shall have no responsibility with respect to) any and all liability, including all financial liability, related to compliance with the WARN Act.

34.4 Intellectual Property Indemnification

A. Obligations of Provider to Indemnify

Provider shall indemnify, defend, and hold XYZ Music Indemnitees harmless from and against any and all Losses arising from any third party claims, actions and demands that any Work Product, Deliverables, Provider Work, or the Services (including the access or other rights to be provided under this Agreement, but excluding any XYZ Music Resources) provided by Provider or Subcontractors to XYZ Music pursuant to this Agreement infringes any Intellectual Property Right.

B. Obligations of XYZ Music to Indemnify

XYZ Music shall indemnify, defend, and hold the Provider Indemnitees harmless from and against any and all Losses to Provider arising from third party

claims, actions and demands that the XYZ Music Resources or any XYZ Music Work infringe any Intellectual Property Right.

C. Exclusions

Notwithstanding anything to the contrary herein, neither Party shall have any liability or obligation to the other Party, such other Party's Affiliates, or any other person under Section 34.4(A) (Obligations of Provider to Indemnify) or 34.4(B) (Obligations of XYZ Music to Indemnify) to the extent that the infringement claim is based upon: (i) unapproved modifications to any item made by or on behalf of the Indemnitee in a manner that causes the infringement; (ii) unapproved use of any item in combination with any hardware, software, or other product or services in a manner that causes the infringement and where such combination was not within the reasonable contemplation of the Parties given the intended use of the item; (iii) the failure of a Party to use corrections or enhancements to such items that are made available by the other Party and known by the other Party to correct an infringement or alleged infringement; or (iv) detailed, non-discretionary designs or specifications provided by the Indemnitee that necessarily caused such infringement claim.

D. Procedures for Infringement Indemnification

If any Deliverable or item provided by a Party hereunder is, or in such Party's reasonable judgment is likely to become, the subject of an infringement claim, the providing Party, at its expense and in addition to defending the claim and paying damages as required by Sections 34.4(A) (Obligations of Provider to Indemnify) and 34.4(B) (Obligations of XYZ Music to Indemnify) above, shall use commercially reasonable efforts to procure for the other Party the right to use and continue using such Deliverable or item or replace it with a non-infringing equivalent or modify it to make its use hereunder non-infringing, provided that such replacement or modification does not result in a degradation of the performance or quality of the Deliverable or item. If such option is not available on commercially reasonable terms in the providing Party's good faith judgment, the providing Party will so notify the other Party, whereupon: (i) the other Party shall cease use of such Deliverable or item and return it to the providing Party; and (ii) the Parties shall equitably adjust the Charges to reflect the added expenses or discontinuation of the Deliverable or item and the cost to provide alternative deliverables or items. In such event, the Parties shall seek to establish mutually acceptable alternative arrangements and to make any appropriate adjustments to their respective obligations under this Agreement through the execution of a Service Request. If the Parties are unable to do so, the other Party shall have the right to terminate all or part of this Agreement.

34.5 Procedures for Indemnification Other Than for Infringement

If any legal action governed by Sections 34.1 (Indemnification of Provider by XYZ Music), 34.2 (Indemnification of XYZ Music by Provider), or 34.2(K) (WARN Act) is commenced against an Indemnified Party, prompt written notice thereof shall be given to the Indemnifying Party; provided, however, that failure to give prompt written notice shall not reduce

the Indemnifying Party's obligations under Sections 34.1 (Indemnification of Provider by XYZ Music), 34.2 (Indemnification of XYZ Music by Provider) and 34.2(K) (WARN Act) except to the extent it is prejudiced thereby. After such notice, if the Indemnifying Party shall acknowledge in writing to such Indemnified Party that the right of indemnification under this Agreement applies with respect to such claim, then the Indemnifying Party shall be entitled, if it so elects, in a written notice delivered to the Indemnified Party no later than ten (10) calendar days prior to the date on which a response to such claim is due, to take control of the defense and investigation of such claim and to employ and engage attorneys of its sole choice to handle and defend same, at the Indemnifying Party's expense. The Indemnified Party shall cooperate in all reasonable respects with the Indemnifying Party and its attorneys in the investigation, trial and defense of such claim and any appeal arising therefrom; provided, however, that the Indemnified Party may, at its own expense, participate, through its attorneys or otherwise, in such investigation, trial and defense of such claim and any appeal arising therefrom. No settlement of a claim that involves a remedy other than the payment of money (or the issuance of credits) by the Indemnifying Party shall be entered into by the Indemnifying Party without the prior written consent of the Indemnified Party, which consent may be given or withheld in the Indemnified Party's sole discretion, to the extent that it concerns equitable remedies or the Indemnified Party's Confidential Information or proprietary technology. After notice by the Indemnifying Party of its election to assume full control of the defense of any such claim, the Indemnifying Party shall not be liable to the Indemnified Party for any legal expenses incurred thereafter by such Indemnified Party in connection with the defense of that claim. If the Indemnifying Party does not assume full control over the defense of a claim subject to such defense as provided in this Section 34.5 (Procedures for Indemnification Other Than for Infringement), the Indemnifying Party may participate in such defense, at its expense, and the Indemnified Party shall have the right to defend and settle the claim in such manner as it may deem appropriate, at the expense of the Indemnifying Party.

34.6 Damage to XYZ Music Facilities, Buildings and Grounds

Provider shall repair, or cause to be repaired, at its own cost, any and all damage to XYZ Music's facilities, buildings, and grounds caused by Provider or employees, agents, or Subcontractors of Provider. Such repairs shall be made promptly after Provider has become aware of such damage, but in no event later than thirty (30) calendar days after the occurrence. If Provider fails to make timely repairs, XYZ Music may make any necessary repairs. All reasonable costs incurred by XYZ Music, as determined by XYZ Music, for such repairs shall be repaid by Provider by way of adjustment in the subsequent invoice or, if there are no remaining invoices to be submitted, then by cash payment upon demand, or without limiting any of XYZ Music's other rights and remedies provided by law or under this Agreement, XYZ Music may deduct such costs from any amounts due to Provider from XYZ Music under this Agreement.

34.7 Indemnities Throughout Agreement

The Parties understand and agree that each Party's indemnification obligations are set forth throughout this Agreement and are not confined to this Section 34 (Indemnification).

35. Confidentiality

35.1 Definition of Confidential Information

“Confidential Information” shall mean, with respect to a Party hereto, all information or material that: (i) gives that Party some competitive business advantage, gives that Party the opportunity of obtaining some competitive business advantage, or the disclosure of which would be detrimental to the interests of that Party; and (ii) is either (a) marked “Confidential,” “Restricted,” “Proprietary,” or with some other, similar, marking, (b) known by the Parties to be considered confidential or proprietary, or (c) from all the relevant circumstances should reasonably be assumed to be confidential or proprietary. Confidential Information includes all Source Materials and Object Code, prices, trade secrets, mask works, databases, hardware, software, designs and techniques, programs, engine protocols, models, displays, and manuals and the selection, coordination, and arrangement of the contents of such materials, and any unpublished information concerning research activities and plans, employees, customers, Personal Data (as defined in Section 35.4 (Personal Data) below), marketing or sales plans, product development or time to market, sales forecasts or results of marketing efforts, pricing or pricing strategies, costs, operational techniques, strategic plans, XYZ Music Data, and unpublished financial information.

35.2 Exclusions

Confidential Information will not include any information or material, or any element thereof, whether or not such information or material is Confidential Information for the purposes of this Agreement, to the extent any such information or material, or any element thereof:

A. has previously become or is generally known to the public, unless it has become generally known to the public through a breach of this Agreement or a confidentiality or non-disclosure agreement;

B. was already rightfully known to the Party receiving such information (the “Receiving Party”) prior to being disclosed by or obtained from the Party (or its agents or Affiliates) disclosing such information (the “Disclosing Party”) as evidenced by written records kept in the ordinary course of business of or by proof of actual use by the Receiving Party;

C. has been or is hereafter rightfully received by the Receiving Party from a third person (other than the Disclosing Party) without restriction or disclosure and without breach of a duty of confidentiality to the Disclosing Party; or

D. has been independently developed by the Receiving Party without access to Confidential Information of the Disclosing Party.

It will be presumed that any Confidential Information in a Receiving Party’s possession is not within exceptions (A), (B), (C), or (D) above, and the burden will be upon the Receiving Party to prove otherwise by records and documentation.

35.3 Use

The Parties agree to hold each other's Confidential Information in strict confidence during each Statement of Work Term under this Agreement and after any termination or expiration of each such Statement of Work and/or this Agreement. Each Party recognizes the importance of the other's Confidential Information and recognizes and agrees that the Confidential Information of the other Party is critical to such other Party's business and that neither Party would enter into this Agreement without assurance that its Confidential Information and the value thereof will be protected as provided in this Section 35 (Confidentiality) and elsewhere in this Agreement. Accordingly, each Party agrees as follows:

A. the Receiving Party will hold any and all Confidential Information it obtains in strictest confidence and will use and permit use of Confidential Information solely for the purposes of this Agreement;

B. the Receiving Party may disclose or provide access to its responsible employees who have a need to know and may make copies of Confidential Information only to the extent reasonably necessary to carry out its obligations hereunder; and

C. the Receiving Party will notify the Disclosing Party immediately of any actual or attempted unauthorized disclosure or use of the other Party's Confidential Information, and will cooperate with the Disclosing Party to protect all proprietary rights in and ownership of its Confidential Information.

35.4 Personal Data

In connection with this Agreement and performance of the Services, Provider (i) may be provided or obtain, from XYZ Music or otherwise, Personal Data, as defined below, pertaining to XYZ Music's current and prospective personnel, directors and officers, agents, subcontractors, investors, clients and customers, and (ii) may need to use and process such Personal Data and transfer it, all subject to the restrictions set forth in this Agreement and otherwise in compliance with all applicable Laws for the sole purpose of performing the Services. For purposes of this Agreement, "Personal Data" shall mean any information relating to an identified or identifiable individual. For the avoidance of doubt, Personal Data shall include:

A. all "nonpublic personal information," as defined under the Gramm-Leach-Bliley Act (15 U.S.C. §6801 et seq.);

B. "consumer information" and "customer information" as those terms are defined in 12 CFR Part 364 and Appendix B thereto (Interagency Guidelines Establishing Information Security Standards);

C. "protected health information" as defined under the Health and Insurance Portability and Accountability Act of 1996 (42 U.S.C. §1320d);

D. “personal data” as that term is defined in EU General Data Protection Regulation 2016/679 as amended, replaced or superseded from time to time; and

E. “Personal Information” as the term is defined in the California Consumer Privacy Act as amended by the California Privacy Rights Act (Cal. Civ. Code §§ 1798.100 et seq.).

F. all other personal information, personal data, or personally identifiable information protected under any Law pertaining to the privacy or security of such information.

35.5 Treatment of Personal Data

Without limiting any other warranty or obligation specified in this Agreement, and in particular the confidentiality provisions of this Section 35 (Confidentiality), during each Statement of Work Term and thereafter in perpetuity, Provider will abide by the Personal Information Requirements set forth in Section 2 of the Data Protection and Information Security Agreement.

35.6 Retention of Personal Data

Provider will not retain any Personal Data for any period longer than the duration set forth in Schedule 1 (Summary of Personal Information Processing) of the Data Protection and Information Security Agreement.

35.7 Compelled Disclosures

To the extent required by applicable Law or by lawful order or requirement of a court or governmental authority having competent jurisdiction over the Receiving Party, the Receiving Party may disclose Confidential Information, including XYZ Music Data, in accordance with such Law or order or requirement, provided that, as soon as possible after becoming aware of such Law, order, or requirement and prior to disclosing Confidential Information, including XYZ Music Data, pursuant thereto, the Receiving Party will so notify the Disclosing Party in writing and, if possible, the Receiving Party will provide the Disclosing Party notice not less than five (5) business days prior to the required disclosure. The Receiving Party will use reasonable efforts not to release Confidential Information, including XYZ Music Data, pending the outcome of any measures taken by the Disclosing Party to contest, otherwise oppose, or seek to limit such disclosure by the Receiving Party and any subsequent disclosure or use of Confidential Information, including XYZ Music Data, that may result from such disclosure. The Receiving Party will cooperate with and provide assistance to the Disclosing Party regarding such measures. Notwithstanding any such compelled disclosure by the Receiving Party, such compelled disclosure will not otherwise affect the Receiving Party’s obligations hereunder with respect to Confidential Information, including XYZ Music Data, so disclosed.

35.8 Return of Confidential Information

On the Disclosing Party's written request or upon expiration or termination of this Agreement for any reason, the Receiving Party will promptly:

A. with respect to either Provider or XYZ Music, as the case may be, return or destroy, at the Disclosing Party's option, all originals and copies of all documents and materials it has received containing the Disclosing Party's Confidential Information; and

B. with respect to XYZ Music, deliver or destroy, at XYZ Music option, all originals and copies of all summaries, records, descriptions, modifications, negatives, drawings, adoptions, and other documents or materials, whether in writing or in machine-readable form, prepared by Provider, prepared under Provider's direction, or at Provider's request from the documents and materials referred to in subparagraph (A) of this Section 35.8 (Return of Confidential Information), and provide a written statement, certified by the Provider Chief Risk Officer to XYZ Music certifying that all documents and materials referred to in subparagraphs (A) and (B) of this Section 35.8 (Return of Confidential Information) have been delivered to XYZ Music or destroyed, as requested by XYZ Music.

35.9 Solicitation of XYZ Music Customers

During each Statement of Work Term and thereafter in perpetuity, Provider agrees not to use XYZ Music Data or any of XYZ Music's Confidential Information, whether directly or indirectly, to target or solicit XYZ Music's customers or business partners, as such, on behalf of itself or any third party, including, on behalf of entities in direct competition with XYZ Music or commit any other act or assist others to commit any other act which might injure the business of XYZ Music. Provider agrees that it will not use or sell to others lists containing information obtained in connection with this Agreement about any XYZ Music customers or business partners.

35.10 XYZ Music Marks

All trademarks, service marks and trade names, including logos, identifying XYZ Music's products or services ("XYZ Music Marks") are the exclusive property of XYZ Music or an Affiliate of XYZ Music. Provider shall take no action that jeopardizes, diminishes, or dilutes the value of the XYZ Music Marks. Provider may not use the XYZ Music Marks or the XYZ Music logo in any manner without obtaining the prior written Approval of XYZ Music.

35.11 Publicity

Provider shall not use any of the XYZ Music Marks or identifying descriptions in any publication, broadcast, advertisement, promotions or other public or private document or any other type of announcement without XYZ Music's prior written consent. In addition, Provider shall not disclose (except to those who need to know in order to evaluate, maintain, or improve a supply relationship between XYZ Music and Provider) or market the

existence of a relationship between XYZ Music and Provider without XYZ Music's written consent, which may be withheld or withdrawn for any reason, except to the extent disclosure is required by Law.

35.12 Non-Exclusive Equitable Remedy

Each Party acknowledges and agrees that due to the unique nature of Confidential Information, including XYZ Music Data, there is no adequate remedy at law for any breach of its obligations hereunder and that any such breach or threatened breach may result in irreparable harm to such Party and, therefore, that upon any such breach or any threat thereof, each Party will be entitled to seek and obtain appropriate equitable and injunctive relief from a court of competent jurisdiction without the necessity of proving actual loss, in addition to whatever remedies either of them might have at law or equity. Any breach of this Section 35 (Confidentiality) shall constitute a material breach of this Agreement and be grounds for immediate termination of this Agreement in the exclusive discretion of the non-breaching Party.

35.13 Artificial Intelligence

"Artificial Intelligence" or "AI" means any machine learning or automated decision-making tool, model, system, or application, and any technology that is included within the definition of "artificial intelligence" as set forth in Section 3(b) of the U.S. White House Executive Order on the Safe, Secure and Trustworthy Development and Use of Artificial Intelligence, dated October 30, 2023.

35.14 Use of Artificial Intelligence

Provider shall not, and will require and ensure its Affiliates, Subcontractors, or their agents or representatives do not, use or process XYZ Music Data, in whole or in part, in or with any AI, including but not limited to using the XYZ Music Data as AI training data, input data, prompt data, or analysis data. In the event that Provider believes this prohibition on use of AI with respect to the XYZ Music Data is unduly burdensome, Provider will submit a request in writing to XYZ Music describing the specific use case, specific XYZ Music Data categories, and specific AI application or AI model that Provider wishes to use ("AI Request"). Any AI Request will at a minimum provide a model card for the AI at issue and explain how the AI will in no way retain or learn from any XYZ Music Data, will maintain the confidentiality and security of the XYZ Music Data, and will allow for the easy destruction or return of any and all XYZ Music Data submitted to or processed by the AI, as well as any other related information requested by XYZ Music. XYZ Music will consider any AI Request but has no obligation whatsoever to grant it and may in its sole discretion refuse to grant any AI Request.

36. Audit, Inspection, and Examination of Records

Except as expressly stated otherwise herein, this Section 36 (Audits, Inspection, and Examination of Records) shall survive for a period of five (5) years following the termination or expiration of this Agreement.

36.1 Maintenance of Books and Records

Provider shall maintain accurate and complete financial records of its activities and operations relating to this Agreement in accordance with generally accepted accounting principles. Provider shall also maintain accurate and complete corporate documents, contractual agreements, employment agreements and all other documents, agreements, and records relating to this Agreement. Provider shall promptly make available to XYZ Music the results of any reviews or audits conducted by Provider, its Affiliates, Subcontractors, or their agents or representatives (including internal and external auditors), relating to Provider's operating practices and procedures to the extent relevant to the Services or XYZ Music. All such material, including all documents, agreements, financial records, time cards, and other employment records shall be kept and maintained by Provider and Provider's contractors and shall be made available to XYZ Music during each Statement of Work Term and for a period of seven (7) years thereafter unless XYZ Music's written permission is given to dispose of any such material prior to such time.

36.2 Audits Authorized by XYZ Music

Provider agrees that XYZ Music, or individuals or entities authorized by XYZ Music, shall, subject to prior notice of not less than twenty (20) business days, have access to any Provider Service Locations, Subcontractors' locations and any other location where documents, records, agreements and other materials related to this Agreement and the Services are stored, and any of Provider's or Subcontractors' agents, employees and representatives, and the right to examine and audit such Provider Service Locations and Subcontractors' locations, and to examine, audit, excerpt, copy and transcribe any and all pertinent documents, records, agreements, transaction, activity and records relating to this Agreement for any reasonable business purpose, including the following: (i) the accuracy of Charges and invoices; (ii) audits and examinations by XYZ Music's regulatory authorities; (iii) validating performance as required by this Agreement; (iv) the conduct of Provider's operations and procedures; (v) compliance with Section 25.12 (Compliance with Laws); (vi) compliance with XYZ Music Policies and Procedures; (vii) compliance with XYZ Music's Sarbanes-Oxley Act reporting requirements; (viii) the efficiency of Provider in performing the Services; (ix) the functionality of the System; and (x) security. Provider shall provide to such Auditors and agents any assistance they may reasonably require in connection with such audits and inspections. Such audits shall take place annually or more frequently as XYZ Music may request. With respect to any proposed adjustments to the Charges in connection with a Change in the Services, an Extraordinary Event, or any termination-related Charges, if any, authorized by this Agreement, XYZ Music shall have the right to retain an independent third party to audit Provider's or any of its Subcontractor's costs associated with such adjustment. XYZ Music acknowledges that any audits performed pursuant to this Section shall not entitle XYZ Music to inspect any data, information, or records to the extent that such materials relate to Provider's other customers. In addition, XYZ Music shall inform any of XYZ Music's auditors of Provider's security (including information security), safety, and other site-specific regulations and procedures applicable to the auditor while on site at Provider's place of business.

XYZ Music agrees that any audit performed pursuant to this Section 36.2 (Audits Authorized by XYZ Music) shall not be conducted by any of the Provider Competitors listed on Exhibit J (Provider's Competitors); provided, however, that the foregoing limitation on the use of such Provider Competitors shall not apply to audits that are not initiated by XYZ Music (each such audit, a "Non-XYZ Music Audit"), such as audits conducted by or on behalf of XYZ Music artists and their agents. Any Non-XYZ Music Audit shall be limited in scope to apply only to Provider's compliance with this Agreement as it relates specifically to the person or entity initiating, or that is the subject matter of, the Non-XYZ Music Audit.

36.3 Audit Settlements

If any audit reveals that Provider is not in compliance with any generally accepted accounting principle or other requirement of this Agreement, Provider and XYZ Music shall promptly meet to review the audit report, and shall mutually agree upon an appropriate and effective manner in which to respond to identified deficiencies, and implement (in XYZ Music's discretion) Changes suggested by the audit at Provider's cost and expense. If corrective action is suggested by a regulatory authority, Provider shall implement such corrective action (at its cost and expense) within the period of time specified by such auditor or regulatory authority. If, at any time during or after any Statement of Work Term, representatives of XYZ Music conduct an audit of Provider regarding the Services performed under this Agreement, and if such audit finds that XYZ Music's monetary liability for any such Services is less than the payments made by XYZ Music to Provider for the Services that are the subject of the audit, then the difference, together with XYZ Music reasonable costs of the audit (calculated from the date of receipt by Provider of the overcharged amount until the date of payment to XYZ Music), shall be either promptly repaid by Provider to XYZ Music by cash payment upon demand or, at the sole option of XYZ Music, deducted from any amounts due to Provider from XYZ Music under this Agreement.

36.4 Audits

In addition to the audits authorized by XYZ Music as set forth above, on an annual basis, Provider shall perform a self-audit of its business and operations to evaluate its compliance with XYZ Music Policies and Procedures. The scope and nature of such audit shall be determined by XYZ Music in its reasonable discretion. The audit shall be initiated no later than the yearly anniversary date of the Effective Date. Within sixty (60) calendar days after the initiation of the self-audit, Provider shall provide XYZ Music with a written Report outlining the results of the self-audit.

Provider recognizes that XYZ Music shall be subject to Sarbanes-Oxley Act requirements (as determined by XYZ Music). Provider shall provide all reasonable assistance that is necessary to ensure XYZ Music is able to comply with such requirements with respect to its outsourced information technology functions. Provider shall comply with XYZ Music's financial reporting process, including as set forth in the Policies and Procedures Manual (and as such process is revised from time to time by XYZ Music through the Change Control Process), and provide

XYZ Music with copies of all related records, reports, and data as necessary for XYZ Music to satisfy Sarbanes-Oxley Act requirements (as determined by XYZ Music).

At Provider's sole cost and expense, Provider shall cooperate with XYZ Music on SOC 2 audits and on Sarbanes-Oxley Act related documentation and testing activities at the Provider Service Locations and the XYZ Music Service Locations, which will include the Information Technology General Controls implemented by Provider at the enterprise-wide level, and the scope of the audit would be from October 1 - September 30 annually (the "SOC 2 Reporting Period"). Provider shall require its Auditors to conduct an annual examination of the controls placed in operation and tests of operating effectiveness pertaining to the Services, and issue a SOC 2 audit report thereon which shall comply in all material respects with SSAE 18, as such standards may be amended, restated, or amended and restated, from time-to-time, including as and to the extent required or recommended by the Securities and Exchange Commission, the Public Company Accounting Oversight Board, the Association of Independent Certified Public Accountants, or any other regulatory agencies or industry practices. The Parties shall agree on the controls to be examined prior to conducting the examination leading to the creation of the SOC 2 Report. Any changes to the controls caused by a Change in the Services shall be performed at the sole cost and expense of Provider. If, from time-to-time, the SOC 2 Report is replaced by a similar report (whether by the AICPA or pursuant to industry practice), then, upon XYZ Music's request, Provider shall provide such replacement report instead of the SOC 2 Report, but otherwise as and when set forth in this Section 36.4 (Audits). Each SOC 2 Report shall cover the SOC 2 Reporting Period. In addition to the SOC 2 Report, Provider shall promptly deliver the following items to XYZ Music with respect to subparagraph (e) of this Section 36.4 (Audits) below:

A. Bi-weekly status Reports beginning two (2) weeks after the completion of each SOC 2 Reporting Period and continuing every two (2) weeks thereafter until the completion of the Report described in item (B) of this Section 36.4 (Audits). Such bi-weekly status Reports shall contain a summary of any issues and deficiencies discovered as part of the examination which are likely to appear in the final version of the SOC 2 Report.

B. One (1) electronic copy of a nearly completed draft of the SOC 2 Report on or before November 20 of each calendar year.

C. Five (5) copies of the final version of the SOC 2 Report on or before December 15 of each calendar year.

D. A representation letter on or before January 15 of the calendar year following the SOC 2 Reporting Period, which letter shall, at a minimum, contain a representation by Provider that no controls identified in the SOC 2 Type II Report for such SOC 2 Reporting Period have, in any way, changed or been altered from the period between the last day of the SSAE 18 Reporting Period and December 31 of that year, unless such controls have been changed or altered as a result of a deficiency correction made by Provider.

E. Provider acknowledges and agrees that time is of the essence in the production and delivery of the SOC 2 Reports to XYZ Music. Provider shall use its best efforts to promptly correct any deficiencies or resolve any problems identified in the final version of the SOC 2 Report, including if any such SOC 2 Report is issued with a qualified opinion identifying an inadequate control then promptly correcting such inadequacy. If any such deficiencies or problems appear in the SOC 2 Report for the following SSAE 18 Reporting Period, or if the SOC 2 Report for the following SSAE 18 Reporting Period is issued with a qualified opinion identifying the identical or similar control inadequacy identified in the SOC 2 Report for the prior SSAE 18 Reporting Period, then Provider shall provide XYZ Music with a Five Thousand U.S. Dollar (\$5,000.00) credit every week beginning upon XYZ Music receipt of such SOC 2 Report and extending until any such identical or similar control inadequacy is remedied. If XYZ Music subsequently and reasonably incurs charges from its Auditors in connection with an audit of XYZ Music's consolidated financial statements, then, to the extent that such excess charges result from additional audit procedures that such Auditors had to perform because of inadequacies or findings identified in a previously delivered SOC 2 Report that have not been adequately addressed by Provider within one-hundred and eighty (180) calendar days but are reasonably capable of being addressed by Provider within one-hundred and eighty (180) calendar days using best efforts (including control objectives or controls that Provider has not identified nor instituted and that XYZ Music reasonably believes as indicated in writing to Provider are necessary to ensure its desired level of Service), Provider shall promptly reimburse XYZ Music for such excess charges, up to a maximum of Twenty-five Thousand U.S. Dollars (\$25,000.00) for each SSAE 18 Reporting Period. In no event shall this Section 36.4 (Audits) in any way modify or reduce Provider's Auditors' responsibilities under SSAE 18.

F. XYZ Music will reimburse Provider for the independent auditor's fees incurred by Provider that directly relate to a specific SSAE 18 audit performed for XYZ Music at the request of XYZ Music on a Pass-Through Expenses basis, provided that: (i) such costs have been Approved by XYZ Music in writing in advance; (ii) SSAE 18 audits not initiated by XYZ Music will not be chargeable; and (iii) if Provider has other customers who also need a SSAE 18 audit to be performed, that is reasonably related to the SSAE 18 audit performed for XYZ Music, then for XYZ Music-initiated type 2 SSAE 18 audits and where Approved by XYZ Music, Provider will bear such costs.

37. Bankruptcy and Liquidation

In the event Provider shall: (i) make an assignment for the benefit of creditors, or petition or apply to any tribunal for the appointment of a custodian, receiver, or trustee for all or a substantial part of its assets; (ii) commence any case, proceeding under any bankruptcy, reorganization, arrangement, readjustment of debt, dissolution, or liquidation Law of any jurisdiction whether now or hereafter in effect; (iii) have had any such petition or application filed or any such case or proceeding commenced against it in which an order for relief is entered or an adjudication or appointment is made, and which is not dismissed for a period of sixty (60) calendar days or more; (iv) take any corporate action indicating its consent to, approval of, or acquiescence in any such petition, application, proceeding, or order for relief or the appointment of a custodian,

receiver, or trustee for all or substantial part of its assets; or (v) permit any such custodianship, receivership, or trusteeship to continue un-discharged for a period of sixty (60) calendar days or more causing Provider or any third party, including a trustee in bankruptcy, to be empowered under state or federal Law to reject this Agreement or any agreement supplementary hereto, XYZ Music shall have the rights described below:

A. In the event of a rejection of this Agreement or any agreement supplementary hereto, XYZ Music shall be permitted to retain and use any backup or archival copies of the Intellectual Property under this Agreement for the purpose of enabling it to mitigate damages caused to XYZ Music because of the rejection of this Agreement. XYZ Music shall exert reasonable efforts to mitigate such damages by use of such backup or archival copies.

B. In the event of a rejection of this Agreement or any agreement supplementary hereto, XYZ Music may elect to retain its rights under this Agreement or any agreement supplementary hereto as provided in Section 365(n) of the Bankruptcy Code. Upon written request of XYZ Music to, as applicable, Provider or the bankruptcy trustee or receiver, Provider or such bankruptcy trustee or receiver shall not interfere with the rights of XYZ Music as provided in this Agreement or in any agreement supplementary hereto to obtain the Source Materials from the bankruptcy trustee or from a third party escrow agent and shall, if requested, cause a copy of such Source Materials to be available to XYZ Music.

C. Provider acknowledges and agrees that in the event of Provider's bankruptcy:

(1) any and all property belonging to XYZ Music of any nature whatsoever, including XYZ Music's Works, Deliverables, XYZ Music's Intellectual Property, XYZ Music Data and XYZ Music's Confidential Information, in Provider's possession or under Provider's control shall not constitute part of Provider's estate in bankruptcy under Section 541 of the Bankruptcy Code; and

(2) in addition to any other rights and remedies of XYZ Music as stated herein, to the maximum extent permitted by Law, XYZ Music will have the immediate right to retain and take possession for safekeeping any and all property belonging to XYZ Music of any nature whatsoever, including XYZ Music's Works, Deliverables, XYZ Music's Intellectual Property, XYZ Music Data and XYZ Music's Confidential Information, in Provider's possession or under Provider's control until such time as the trustee or receiver in bankruptcy can provide XYZ Music with adequate assurances and evidence to XYZ Music that all of XYZ Music's property will be protected from sale, release, inspection, publication, or inclusion in any publicly accessible record, document, material, or filing. Provider and XYZ Music agree that without this material provision, XYZ Music would not have entered into this Agreement.

38. Assignment and Merger

38.1 Assignment

Neither Party may assign this Agreement without the prior written consent of the other Party, except that XYZ Music may assign its rights and obligations under the Agreement without the approval of Provider (i) to an entity that acquires all or substantially all of the assets of XYZ Music, (ii) to any subsidiary or Affiliate, or (iii) to any successor in a divestiture, merger, or acquisition involving XYZ Music. Any assignment by XYZ Music as permitted herein must: (i) be in writing; and (ii) contain a written acknowledgement of the assignee that it is accepting all obligations of XYZ Music under this Agreement, and agrees to be bound by and discharge each of the Agreement's terms, conditions and obligations as if it were the original party hereto.

38.2 Separation

In connection with the sale, transfer, or other disposition of any of XYZ Music Affiliates, lines of business, or business units for which Provider was providing Services at the time of sale, transfer, or other disposition, such successor entity shall be entitled to continue to receive Services under the terms of this Agreement for a period of up to twenty-four (24) months after the closing date of such transaction. XYZ Music will remain liable for all of its obligations under the Agreement including payment of all Charges relating to such entity's use of the Services. XYZ Music shall be entitled to terminate any or all such Services upon ninety (90) calendar days written notice to Provider. There shall be no termination fee or penalty to XYZ Music or a successor entity arising from the exercise of XYZ Music's rights hereunder. Notwithstanding the foregoing, in the event XYZ Music terminates one or more Services provided by Provider under this Agreement, but not the entire Agreement, XYZ Music shall pay reasonable redeployment costs that may be incurred as a result of such termination provided that Provider provides XYZ Music in advance with a reasonable written identification and estimate of such costs. In addition to the Services set forth in Section 32 (Termination and Expiration Assistance Services), as part of such separation, Provider shall provide XYZ Music with separation support including assessments, transition planning and migration support.

38.3 Acquisitions and Mergers by XYZ Music

If XYZ Music acquires or merges with an entity contracting for services from Provider, the Provider and the several entities will negotiate in good faith in an attempt to integrate the service being provided by Provider to the several entities in order to reach a mutually beneficial agreement for Provider and the several entities, including reducing redundancies, increasing efficiencies, and migrating the entities to a unified platform. If the Parties reach an agreement, there shall be no early termination or other penalty under the several entities' existing agreements. In the event of an acquisition or merger in accordance with this Section 38.3 (Acquisitions and Mergers by XYZ Music), Provider shall provide the Services required pursuant to the applicable Statements of Work.

39. Extraordinary Events

39.1 Definition of Extraordinary Event

As used in this Agreement, an “Extraordinary Event” shall mean a circumstance in which an event or discrete set of events has occurred or is planned with respect to the business of XYZ Music that results or will result in a change in the scope, nature, or volume of the Services that XYZ Music will require from Provider, and which is expected to increase or decrease XYZ Music’s utilization of any Billable Resource Unit by a percentage to be agreed by the Parties in an applicable Statement of Work, and such changes persist or are expected to continue for three (3) or more months.

Examples of the kinds of events that might cause such substantial increases or decreases include:

- A. changes in locations where XYZ Music operates, including office closures;
- B. changes in products of, or in markets served by, XYZ Music;
- C. mergers, acquisitions, or divestitures by XYZ Music;
- D. changes in the method of service delivery;
- E. changes in market priorities or market conditions; and
- F. changes in the number of business units being serviced by Provider that were not anticipated as of the applicable Statement of Work Effective Date.

39.2 Extraordinary Event Pricing

If an Extraordinary Event occurs, rather than utilize the existing RRCs and/or ARCs, if any, and other rates and Charges then specified in the Charges and Resource Baselines Exhibit to a Statement of Work, XYZ Music may elect to receive more favorable pricing as a result of equitable adjustments to the Charges and Resource Baselines specified in the Charges and Resource Baselines Exhibit to the Statement of Work. Provider and XYZ Music shall determine the efficiencies, economies, and savings resulting from such Extraordinary Event and Provider shall implement such efficiencies, economies, and savings in accordance with a mutually agreed to Statement of Work. Charge adjustments shall be based on Provider’s costs (including appropriate indirect and overhead costs) and related profit, and shall be phased in accordance with the Statement of Work as required to pass through to XYZ Music the full benefit of the efficiencies, economies, and savings. An Extraordinary Event shall not result in Charges to XYZ Music being higher than such Charges would have been if the RRCs and/or ARCs, if any, and other rates and Charges then specified in the Charges and Resource Baselines to the Statement of Work had been applied, unless, and to the extent, such Extraordinary Event results in New Services. XYZ Music may, at its sole option, elect at any time to forego its rights under this Section 39 (Extraordinary Events) and instead apply the RRCs and/or ARCs, if any, and other rates and Charges then specified in the Charges and Resource Baselines Exhibit to the Statement of Work.

40. Use of Reduced Resource Credits

40.1 Business Impacts

There shall be no limit on the RRCs XYZ Music is entitled to apply to any Billable Resource Unit Baseline arising from events impacting XYZ Music business such as an industry downturn or economic slowdown, transition off of any mainframe, or any event contemplated under Sections 38 (Assignment and Merger) and 39 (Extraordinary Events) of this Agreement.

40.2 Third Source and In-source Limits on RRCs

XYZ Music's use of RRCs arising from its decision to perform Services that are provided by Provider and included in the Charges, either by itself ("in-source") or through the engagement of a third party ("third source"), shall not exceed in any Contract Year eighty percent (80%) of the fixed and operating components of the first Contract Year's Charges. RRCs resulting from a business impact as provided in Section 40.1 (Business Impacts) shall be included in the determination of the total RRCs available to XYZ Music in any Contract Year arising from its decision to third source or in-source.

41. Amendment of Agreement

No alteration, amendment, or modification of the terms of this Agreement shall be valid or effective unless in writing and signed by Provider and XYZ Music.

42. Waiver

All waivers under this Agreement shall be in writing in order to be effective. No waiver by a Party of any breach of this Agreement or waiver of any warranty, representation, or other provision hereunder shall be deemed to be a waiver of any other breach, warranty, representation, or provision (whether preceding or succeeding, and whether or not of the same or similar nature), and no acceptance of performance by a Party after any breach by the other Party shall be deemed to be a waiver of any breach of this Agreement or of any representation, warranty, or other provision, whether or not the Party accepting performance knows of such breach at the time of acceptance. No failure or delay by a Party to exercise any right it may have by reason of the default of the other Party shall operate as a waiver of default or modification of this Agreement or shall prevent the exercise of any right of the non-defaulting Party under this Agreement.

43. Independent Contractor

This Agreement shall not be construed to constitute either Party as a representative, agent, employee, partner, or joint venturer of the other Party. Provider shall be an independent contractor for the performance under this Agreement. Neither Party shall have the authority to enter into any agreement, nor to assume any liability, on behalf of the other, nor to bind or commit the other in any manner, except as provided hereunder. Provider's employees who provide services

pursuant to this Agreement or who are located on XYZ Music's premises shall remain employees of Provider, and Provider shall have sole responsibility for such employees including responsibility for payment of compensation to such personnel and for injury to them in the course of their employment other than that caused by XYZ Music's tortious conduct. Provider shall be responsible for all aspects of labor relations with such employees including their hiring, supervision, evaluation, discipline, firing, wages, benefits, overtime, and job and shift assignments and all other terms and conditions of their employment, and XYZ Music shall have no responsibility therefor.

44. Subcontractors

44.1 Approval Required

In entering into this Agreement, XYZ Music has relied on the reputation of, and on obtaining the personal performance of, Provider itself. Consequently, no performance of this Agreement, or any portion thereof, shall be subcontracted by Provider without the prior written consent of XYZ Music. Any attempt by Provider to subcontract any performance, obligation, or responsibility under this Agreement, without the prior written consent of XYZ Music, shall be null and void and shall constitute a material breach of this Agreement. Notwithstanding the foregoing, Provider may, in the ordinary course of business, subcontract for third party services or products that are not a material portion of the Services, that are not exclusively dedicated to XYZ Music and that do not include regular direct contact with XYZ Music or XYZ Music Affiliate personnel or the performance of Services at XYZ Music Service Locations.

44.2 Request for Approval

If Provider desires to subcontract any portion of its performance, obligations, or responsibilities under this Agreement, Provider shall make a written request to XYZ Music for Approval to enter into the particular Subcontract. Provider's request to XYZ Music shall include the following:

- A. the subject matter of and the reasons for the proposed Subcontract;
- B. a detailed description of the work to be performed by the proposed Subcontractor and the service location where such Subcontractor will provide the proposed Subcontract;
- C. the name and address of the proposed Subcontractor and an explanation of why and how the proposed Subcontractor was selected; and
- D. any other information reasonably requested by XYZ Music or deemed material by Provider.

44.3 Review of Request

XYZ Music will review Provider's request to subcontract and determine, in its reasonable discretion, whether or not to consent to such request on a case-by-case basis. If XYZ Music expresses concerns to Provider about a proposed Subcontract or any Subcontractor, which is subject to XYZ Music's prior Approval in accordance with Section 44.1 (Approval Required), Provider shall discuss such concerns with XYZ Music and work in good faith to resolve XYZ Music's concerns on a mutually acceptable basis (but subject to XYZ Music's right to Approve such Subcontract).

44.4 Provider Obligations Remain Unchanged

Provider shall remain responsible to XYZ Music for any and all performance required under this Agreement by Provider or its Approved Subcontractors, including the obligation to properly supervise, coordinate and perform all work required under the Services, and no Subcontract shall bind or purport to bind XYZ Music or excuse Provider of performance. Unless XYZ Music otherwise expressly agrees in writing, Provider shall remain the sole point of contact for XYZ Music with respect to any Subcontractors. Provider shall ensure that the level of Services and the systems and controls used by Provider and/or any Subcontractor to perform the Services will not deteriorate as a result of any Subcontract. Provider shall be solely liable and responsible for any and all payments and other compensation to, and the performance of, all Subcontractors and their officers, employees, agents and independent contractors.

44.5 Approval of Subcontractor Personnel; Termination

In the event XYZ Music consents to any subcontracting, such consent shall be subject to XYZ Music's right to give prior and continuing Approval of any and all Subcontractor personnel providing services under such Subcontract. Provider shall ensure that any Subcontractor personnel not reasonably Approved in writing by XYZ Music shall be immediately removed from the provision of any services under the particular Subcontract or that other action is taken as requested by XYZ Music. Further, if XYZ Music consents to any subcontracting, such consent shall be subject to XYZ Music right to revoke such consent, in whole or in part, or require the removal of a Subcontractor, at any time upon written notice to Provider upon the occurrence of a material breach of this Agreement or the relevant Subcontract, provided such breach is not cured within thirty (30) calendar days after such notice. Notwithstanding the foregoing sentence, XYZ Music may require the immediate removal of a Subcontractor if (i) the Subcontractor materially breaches this Agreement and such breach is, in XYZ Music's reasonable discretion, incapable of being cured within thirty (30) calendar days, or immediately, with no cure period, if the Subcontractor breaches any obligation under this Agreement with respect to XYZ Music Data, XYZ Music's other Confidential Information, or XYZ Music Policies or Procedures; (ii) there has been a material misrepresentation by, or concerning, the Subcontract or the Subcontractor, which XYZ Music relied upon in consenting to such Subcontract or Provider using such Subcontractor; or (iii) a regulator directs, or recommends, that the Subcontractor should not continue to be used to perform the Subcontractor's obligations, and Provider is, in XYZ Music's reasonable discretion,

unwilling or incapable of resolving the regulator's concerns. Notwithstanding anything to the contrary contained in this Agreement, XYZ Music shall not be liable or responsible in any way to Provider, to any Subcontractor, or to any officers, employees, or agents of Provider or any Subcontractor, for any claims, demands, damages, liabilities, losses, costs, or expenses, including defense costs and legal, accounting and other expert, consulting and professional fees, in any way arising from or related to XYZ Music's exercise of such rights.

44.6 Subcontractor Agreements; Novation Rights

If XYZ Music provides its Approval of a Subcontractor, Provider shall enter into a written agreement with each such Subcontractor. All agreements between Provider and any Subcontractors shall include provisions at least as favorable to XYZ Music as those contained in this Agreement.

Provider shall use its commercially reasonable efforts to ensure that, unless otherwise specifically agreed by XYZ Music, each agreement between Provider and a material Subcontractor (meaning a Subcontractor that requires XYZ Music's Approval in accordance with Section 44.1 (Approval Required)) includes the right for the agreement and/or any licenses to novate at the end of the applicable Statement of Work Term (or earlier in the case of a termination in part) with respect to the relevant Services being performed by the Subcontractor under such Statement of Work if XYZ Music so elects (at its sole option), so that following such novation, the agreement formerly between Provider and such Subcontractor will be between XYZ Music and the Subcontractor. At XYZ Music's request, Provider will (i) confirm that it has complied with its requirement under this Section 44.6 (Subcontractor Agreements; Novation Rights) to enter into a written agreement with the Subcontractor; and (ii) provide written confirmation from the Subcontractor that the Subcontractor agrees to novate the contract in accordance with this Section 44.6 (Subcontractor Agreements; Novation Rights).

44.7 Restrictions on Further Subcontracting

Subject always to Section 44.1 (Approval Required), a Subcontractor shall not be entitled to further subcontract the performance of any material portion of the Services without XYZ Music's prior written Approval. If XYZ Music does Approve to such further subcontracting, then the provisions in this Agreement relating to subcontracting shall also apply to such subcontracting by the Subcontractor and such subcontracting will not relieve Provider from any liability with respect to its obligations under this Agreement.

44.8 XYZ Music's Right to Designate Key Subcontractors

XYZ Music shall have the right to reasonably designate Subcontractors as key to the provision of the Services. Provider shall not permit such key Subcontractors' contracts to terminate or expire without XYZ Music's prior written Approval (not to be unreasonably withheld).

45. Interpretation of Agreement

45.1 No Third Party Beneficiaries

This Agreement is an agreement between XYZ Music and Provider, and confers no rights upon any of the Parties' employees, agents, contractors, or Subcontractors.

45.2 Conflict Between Agreement and Exhibits

The following Exhibits are attached to, incorporated herein by reference and form a part of this Agreement:

Exhibit A	Defined Terms
Exhibit B	Statements of Work
B.1	BPO Services
B.1(a)	BPO Services Statement of Work
B.1(b)	BPO Services Service Level Agreements
B.1(b)(1)	F&A BPO Services Service Level Agreements
B.1(b)(2)	ISB BPO Services Service Level Agreements
B.1(c)	BPO Services Charges and Resource Baselines
B.1(d)	BPO Services Transition Plan
B.1(e)	BPO Services Key Employees
Exhibit C	Policies and Procedures
Exhibit D	Governance
Exhibit E	Management Reports
Exhibit F	XYZ Music Service Locations
Exhibit G	Provider Service Locations
Exhibit H	Approved Benchmarks
Exhibit I	XYZ Music's Competitors
Exhibit J	Provider's Competitors
Exhibit K	Provider Guarantee
Exhibit L	Disaster Recovery Plan
Exhibit M	Change Control Procedure
Exhibit N	Provider's Code of Business Ethics and Conduct
Exhibit O	Provider's Confidentiality and IP Assignment Agreement
Exhibit P	Provider's Confidentiality and IP Assignment Agreement for Provider Subcontractors
Exhibit Q	Form of Amendment (To Add Additional XYZ Music Entities India, Mexico, and Poland for Direct Invoicing)

Exhibits A through Q are referred to individually and collectively below as the "Exhibits". Each of the Appendices (and Exhibits, if any) attached to the Exhibits to this Agreement are also incorporated herein by reference, and form a part of this Agreement.

References to an Exhibit shall be to such Exhibit of this Agreement, unless otherwise stated. References to a Section in this Agreement or in any Exhibit shall be to the Section in the applicable document, unless otherwise stated.

In the event of any conflict or inconsistency in the definition or interpretation of any word, responsibility, schedule, or the contents or description of any task, subtask, deliverable, goods, service, or other work, or otherwise, between the body of this Agreement, the Exhibits and Appendices, between Exhibits, or between Appendices, then, unless specifically agreed otherwise, in writing, and set forth in this Agreement, such conflict or inconsistency shall be resolved by giving precedence first to the body of this Agreement, and then to the Exhibits and Appendices according to the priority set forth below in this Section 45.2 (Conflict Between Agreement and Exhibits). To be effective, any agreement between the Parties to alter the order of precedence set forth below in this Section 45.2 (Conflict Between Agreement and Exhibits) must (i) be in writing, and (ii) must specifically state the Section, Exhibit, or Appendix, and each applicable portion thereof, that will alter the order of precedence set forth herein. The aforementioned order of precedence is as follows:

A. Exhibit B.1(a) (BPO Services Statement of Work), or the applicable Statement of Work Exhibit B.[n](a) ([...] Statement of Work) of an applicable subsequent Statement of Work, if any.

B. Exhibit B.1(b) (BPO Services Service Level Agreements), or the applicable Statement of Work Exhibit B.[n](b) ([...] Service Level Agreements) of an applicable subsequent Statement of Work, if any.

C. Exhibit B.1(c) (BPO Services Charges and Resource Baselines), or the applicable Statement of Work Exhibit B.[n](c) ([...] Charges and Resource Baselines) of an applicable subsequent Statement of Work, if any.

D. All other Exhibits and Appendices.

45.3 Choice of Law

This Agreement and performance under it shall be governed by and construed in accordance with the Laws of the State of New York, without the application of its conflict of laws provisions.

45.4 Venue and Jurisdiction

The Parties agree that all actions and proceedings arising in connection with this Agreement shall be tried and litigated exclusively in the state or federal (if permitted by Law and a Party elects to file an action in federal court) courts located in New York County in the State of New York. This choice of venue is intended by the Parties to be mandatory and not permissive in nature, and to preclude the possibility of litigation between the Parties with respect to, or arising out of, this Agreement in any jurisdiction other than that specified in this Section 45.4 (Venue and

Jurisdiction). Each Party waives any right it may have to assert the doctrine of forum non conveniens or similar doctrine or to object to venue with respect to any proceeding brought in accordance with this Section 45.4 (Venue and Jurisdiction). Each Party hereto hereby waives, to the fullest extent permitted by applicable Law, any right it may have to a trial by jury in respect of any litigation directly or indirectly arising out of, under or in connection with this Agreement or any applicable Statement of Work.

45.5 Agreement Drafted By All Parties

This Agreement is the result of arm's length negotiations between the Parties and shall be construed to have been drafted by all Parties such that any ambiguities in this Agreement shall not be construed against either Party.

45.6 Terminology

All personal pronouns used herein, whether used in the feminine, masculine, or neuter gender, shall include all other genders, and the singular shall include the plural and vice versa. Unless otherwise expressly stated, the words "herein", "hereof", and "hereunder" and other words of similar import refer to this Agreement as a whole and not to any particular Section, subsection, or other subpart of this Agreement. The words "include" and "including" shall not be construed as terms of limitation and shall, in all instances, be interpreted as meaning "including, but not limited to".

45.7 Section Headings

The Section headings contained herein are for convenience in reference only and are not intended to define or limit the scope of any provision of this Agreement, nor shall any such headings be used in the interpretation of this Agreement.

45.8 Appointment of Agent For Service of Process

During each Statement of Work Term and for a period of two (2) years thereafter, Provider shall maintain for each Affiliate rendering Services under this Agreement registered agents authorized to receive service of process within the State of New York or any other jurisdiction where Services are performed, and shall provide the name and street address of such registered agents to XYZ Music within thirty (30) calendar days after the Effective Date and after any Change during any Statement of Work Term.

46. Notices

Any notices required or permitted to be given hereunder by either Party to the other Party shall be given in writing (i) by personal delivery, (ii) by bonded courier or by a nationally recognized overnight delivery company, or (iii) by United States first class registered or certified mail, postage prepaid, return receipt requested, in each case, addressed to the Parties as follows

(or to such other addresses as the Parties may request in writing by notice given pursuant to this Section):

To XYZ Music:

XYZ Music Entertainment
2 Canal Reach
London N1C 4DB
Attn: Matt Norman, VP, Finance Services
Email: matt.norman@XYZmusic.com

With a copy sent to the attention of:

XYZ Music Entertainment
3390 Mary Street
Miami, FL 33133
Attn: Pattie Sedano, SVP Global Finance Shared Services
Email: patricia.sedano@XYZmusic.com

and

XYZ Music Entertainment

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

To Provider:

[REDACTED]
[REDACTED]
[REDACTED]

With a copy sent to the attention of:

General Counsel

[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

and

legalnotice@ABC.com

Notices shall be deemed received on the earliest of personal delivery, twenty-four (24) hours following deposit with a bonded courier or overnight delivery company, or seventy-two (72) hours following deposit in the U.S. Mail as required herein.

47. Entire Agreement

This Agreement, including the Exhibits and Appendices, constitutes the entire understanding and agreement between the Parties with respect to the transactions contemplated herein and supersedes all prior or contemporaneous oral and written communications with respect to the subject matter hereof, all of which are merged herein. No usage of trade, or other regular practice or method of dealing between the Parties or others, may be used to modify, interpret, supplement, or alter in any manner the express terms of this Agreement. Each Party agrees to execute and deliver any and all additional documents and instruments, and take all other actions that may be necessary to give effect to this Agreement and the transactions contemplated hereby.

48. Severability

If any provision of this Agreement is determined to be invalid or unenforceable, that provision shall be deemed stricken and the remainder of this Agreement shall continue in full force and effect insofar as it remains a workable instrument to accomplish the intent and purposes of the Parties and the Parties shall replace the severed provision with the provision that will come closest to reflecting the intention of the Parties underlying the severed provision but that will be valid, legal and enforceable.

49. Electronic Transfer of Intellectual Property

To the extent practicable, all Intellectual Property shall be delivered to XYZ Music by electronic transmission.

50. Liens

To the extent applicable to Provider and the Services provided pursuant to this Agreement, Provider agrees to keep XYZ Music, all of the real and personal property of XYZ Music, and the Services free and clear of all liens and lien claims. Should any lien or lien claim be asserted for any reason, XYZ Music may, at its sole discretion (i) pay the amount of such lien or lien claim, (ii) deduct such amounts from payments due to Provider, or (iii) require Provider to obtain a properly executed release of lien satisfactory to XYZ Music.

51. Demonstrations, Promotions and References

In no event shall any demonstration or any promotional materials constitute an endorsement, representation, or warranty, express or implied, by XYZ Music. In the event of a dispute between XYZ Music and Provider, XYZ Music's agreement to participate in promotions and demonstrations under this Section and all statements made by XYZ Music in connection with

such activities shall not be deemed an admission or declaration against interest of XYZ Music in any trial or dispute resolution proceeding between the Parties.

52. Non-Exclusive Remedies

Unless expressly provided otherwise in this Agreement, no remedy set forth in this Agreement is intended to be, nor shall be, exclusive of, or mutually exclusive with regard to, any other remedy and each such remedy shall be in addition to every other remedy given hereunder, or now or hereafter existing or available at law, in equity, by statute, or otherwise, individually or in any combination thereof.

53. Surviving Provisions

The provisions of Sections 6 (Service Levels), 8 (Service Locations), 9 (Data Backup and Disaster Plan), 16 (Data and Reports), 18 (Intellectual Property Rights), 22 (Pricing), 23 (Invoices and Payments), 24 (Limitation of Liability and Damages), 25 (Provider's Representations, Warranties, and Covenants), 29 (Internal Dispute Resolution), 30 (Injunctive Relief), 31.12 (Termination Assistance), 32 (Termination and Expiration Assistance Services), 33 (Insurance and Indemnity), 34 (Indemnification), 35 (Confidentiality), 36 (Audit, Inspection, and Examination of Records), 41 (Amendment of Agreement), 42 (Waiver), 43 (Independent Contractor), 44 (Subcontractors), 45 (Interpretation of Agreement), 46 (Notices), 47 (Entire Agreement), 48 (Severability), 52 (Non-Exclusive Remedies), this Section 53 (Surviving Provisions), and any other Sections and terms of this Agreement that by their nature extend beyond any termination or expiration of this Agreement, all of which shall survive the termination or expiration of this Agreement; provided, however, that any provision that is stated to extend for a specified period of time, shall survive only for such specified period.

54. Defined Terms

Capitalized terms used in this Agreement, including in any Schedules, Exhibits, Appendices, Addenda and other documents attached to or otherwise made a part of this Agreement, shall have the meanings ascribed to them in Exhibit A (Defined Terms). Other capitalized words in this Agreement are defined in the context in which they are used and shall have the meanings ascribed to them therein. The terms defined in Exhibit A (Defined Terms) include the plural as well as the singular, as required by the context.

55. Prohibited Persons and Entities

Provider Personnel performing the Services, regardless of their location, shall be validated by Provider upon assignment to not have been on any list published and maintained by the government of the United States of persons or entities with whom any U.S. person or entity is prohibited from conducting business with. Presently, the lists of such persons or entities include the persons and entities listed on the following Web sites: (i) the "Denied Persons List" on the Bureau of Industry and Security at <http://www.bis.doc.gov/dpl/default.shtm>, and (ii) the "Specially Designated Nationals and Blocked Persons List" of the Office of Foreign Assets Control of the

United States Department of the Treasury at <http://www.ustreas.gov/offices/enforcement/ofac/sdn/index.html>. If either Party becomes aware of any Provider Personnel involved in providing Services being included in the list of prohibited persons or entities, Provider shall promptly remove such personnel from the provision of Services under this Agreement. Provider shall conduct a quarterly review of the lists mentioned above and shall provide XYZ Music with the results of such reviews. Provider shall report to XYZ Music promptly if the name of any Provider Personnel is placed on any list published by the government of the United States of persons or entities with whom any U.S. person is prohibited from conducting business with and shall immediately, at Provider's sole cost and expense, remove such personnel from performing any of the Services. Any such personnel so removed shall be replaced by Provider with qualified personnel whose names do not appear on any such lists as soon as possible after any such removal.

56. Electronic Signatures

The Parties acknowledge and agree that (i) this Agreement and any amendments to the Agreement, can be entered into electronically and enforceable in accordance with laws applicable to the recognition of electronic signatures, including without limitation the Electronic Signatures in Global and National Commerce Act (the "E-SIGN Act"); (ii) the electronic signature utilizing the designated method constitutes the individual's signature, acceptance, and agreement the same as if actually signed in writing; (iii) this Agreement as electronically signed shall constitute "original" documents when printed from electronic files and records established and maintained by either Party in the normal course of business; and (iv) the individual signing this Agreement electronically is authorized to enter into this Agreement on behalf of the Party to this Agreement.

[THE REMAINDER OF THIS PAGE IS INTENTIONALLY LEFT BLANK.]

[SIGNATURES ARE ON THE NEXT PAGE.]

IN WITNESS WHEREOF, the Parties have executed this Agreement to become effective as of the Effective Date, notwithstanding the date of signature set out below.

XYZ

4/1/2024

Date

3/30/2024

Date

EXHIBIT A
Defined Terms

Exhibit A (Defined Terms) is attached hereto and incorporated herein by this reference.

EXHIBIT B

Statements of Work

EXHIBIT B.1

BPO Services

EXHIBIT B.1(a)
BPO Services Statement of Work

Exhibit B.1(a) (BPO Services Statement of Work) is attached hereto and incorporated herein by this reference.

EXHIBIT B.1(b)
BPO Services Service Level Agreements

EXHIBIT B.1(b)(1)
F&A BPO Services Service Level Agreement

Exhibit B.1(b)(1) (F&A BPO Services Service Level Agreement) is attached hereto and incorporated herein by this reference.

EXHIBIT B.1(b)(2)
ISB BPO Services Service Level Agreement

Exhibit B.1(b)(2) (ISB BPO Services Service Level Agreement) is attached hereto and incorporated herein by this reference.

EXHIBIT B.1(c)
BPO Services Charges and Resource Baselines

Exhibit B.1(c) (BPO Services Charges and Resource Baselines) is attached hereto and incorporated herein by this reference.

EXHIBIT B.1(d)
BPO Services Transition Plan

Exhibit B.1(d) (BPO Services Transition Plan) is attached hereto and incorporated herein by this reference.

EXHIBIT B.1(e)
BPO Services Key Employees

Exhibit B.1(e) (BPO Services Key Employees) is attached hereto and incorporated herein by this reference.

EXHIBIT C
Policies and Procedures

Exhibit C (Policies and Procedures) is attached hereto and incorporated herein by this reference.

EXHIBIT D
Governance

Exhibit D (Governance) is attached hereto and incorporated herein by this reference.

EXHIBIT E
Management Reports

Exhibit E (Management Reports) is attached hereto and incorporated herein by this reference.

EXHIBIT F
XYZ Music Service Locations

Exhibit F (XYZ Music Service Locations) is attached hereto and incorporated herein by this reference.

EXHIBIT G
Provider Service Locations

Exhibit G (Provider Service Locations) is attached hereto and incorporated herein by this reference.

EXHIBIT H
Approved Benchmarks

Exhibit H (Approved Benchmarks) is attached hereto and incorporated herein by this reference.

EXHIBIT I
XYZ Music's Competitors

Exhibit I (XYZ Music's Competitors) is attached hereto and incorporated herein by this reference.

EXHIBIT J
Provider's Competitors

Exhibit J (Provider's Competitors) is attached hereto and incorporated herein by this reference.

EXHIBIT K
Provider Guarantee

Exhibit K (Provider Guarantee) is attached hereto and incorporated herein by this reference.

EXHIBIT L
Disaster Recovery Plan

Exhibit L (Disaster Recovery Plan) is attached hereto and incorporated herein by this reference.

EXHIBIT M
Change Control Procedure

Exhibit M (Change Control Procedure) is attached hereto and incorporated herein by this reference.

EXHIBIT N
Provider's Code of Business Ethics and Conduct

Exhibit N (Provider's Code of Business Ethics and Conduct) is attached hereto and incorporated herein by this reference.

EXHIBIT O
Provider's Confidentiality and IP Assignment Agreement

Exhibit O (Provider's Confidentiality and IP Assignment Agreement) is attached hereto and incorporated herein by this reference.

EXHIBIT P
Provider's Confidentiality and IP Assignment Agreement for Provider's Subcontractors

Exhibit P (Provider's Confidentiality and IP Assignment Agreement for Provider's Subcontractors) is attached hereto and incorporated herein by this reference.

EXHIBIT Q
Form of Amendment
(To Add Additional XYZ Music Entities India, Mexico, and Poland for Direct Invoicing)

Exhibit Q (Form of Amendment (To Add Additional XYZ Music Entities India, Mexico, and Poland for Direct Invoicing)) is attached hereto and incorporated herein by this reference.

Certificate Of Completion

Envelope Id: AE366E32C8B2431CB3DE101BF43755DB		Status: Completed
Subject: Complete with DocuSign: 1. Data Protection Information Security Agreement (FEC).docx, 1_Framewo...		
Source Envelope:		
Document Pages: 185	Signatures: 4	Envelope Originator:
Certificate Pages: 5	Initials: 0	
AutoNav: Enabled		
Envelope Stamping: Disabled		
Time Zone: (UTC-08:00) Pacific Time (US & Canada)		

Record Tracking

Status: Original	Holder:	Location: DocuSign
3/30/2024 2:51:03 PM		

Signer Events	Signature	Timestamp
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Das@ABC.com Corporate SVP Security Level: Email, Account Authentication (None)	DocuSigned by:  86027EF69FC34D6... Signature Adoption: Drawn on Device Using IP Address: 110.226.183.129 Signed using mobile	Sent: 3/30/2024 5:12:37 PM Resent: 3/30/2024 5:13:02 PM Viewed: 3/30/2024 5:24:56 PM Signed: 3/30/2024 5:25:21 PM
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Security Level: Email, Account Authentication (None)	Signature Adoption: Pre-selected Style Using IP Address: 76.153.111.55	

Electronic Record and Signature Disclosure:
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ID: fe52a537-6d13-4447-bae2-184c5350e79f

In Person Signer Events	Signature	Timestamp
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Editor Delivery Events	Status	Timestamp
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Agent Delivery Events	Status	Timestamp
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Intermediary Delivery Events	Status	Timestamp
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Certified Delivery Events	Status	Timestamp
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Carbon Copy Events	Status	Timestamp
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Electronic Record and Signature Disclosure: Not Offered via DocuSign		

Carbon Copy Events	Status	Timestamp
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██████████ ██████████████████ ABC NORTH AMERICA, Inc Security Level: Email, Account Authentication (None) Electronic Record and Signature Disclosure: Not Offered via DocuSign	COPIED	Sent: 3/31/2024 4:32:12 AM Viewed: 3/31/2024 4:45:07 AM
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Witness Events	Signature	Timestamp
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Notary Events	Signature	Timestamp
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Envelope Summary Events	Status	Timestamps
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Envelope Updated	Security Checked	3/30/2024 5:12:36 PM
Envelope Updated	Security Checked	3/30/2024 5:12:36 PM
Envelope Updated	Security Checked	3/31/2024 4:32:11 AM
Envelope Updated	Security Checked	3/31/2024 4:32:11 AM
Envelope Updated	Security Checked	3/31/2024 4:32:11 AM
Envelope Updated	Security Checked	3/31/2024 4:32:11 AM
Envelope Updated	Security Checked	3/31/2024 9:13:28 AM
Envelope Updated	Security Checked	3/31/2024 9:16:15 AM
Envelope Updated	Security Checked	3/31/2024 9:16:15 AM
Certified Delivered	Security Checked	4/1/2024 6:10:54 AM
Signing Complete	Security Checked	4/1/2024 6:11:08 AM
Completed	Security Checked	4/1/2024 6:11:08 AM

Payment Events	Status	Timestamps
Electronic Record and Signature Disclosure		

ELECTRONIC RECORD AND SIGNATURE DISCLOSURE

From time to time, Morrison and Foerster LLP (we, us or Company) may be required by law to provide to you certain written notices or disclosures. Described below are the terms and conditions for providing to you such notices and disclosures electronically through the DocuSign system. Please read the information below carefully and thoroughly, and if you can access this information electronically to your satisfaction and agree to this Electronic Record and Signature Disclosure (ERSD), please confirm your agreement by selecting the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

Getting paper copies

At any time, you may request from us a paper copy of any record provided or made available electronically to you by us. You will have the ability to download and print documents we send to you through the DocuSign system during and immediately after the signing session and, if you elect to create a DocuSign account, you may access the documents for a limited period of time (usually 30 days) after such documents are first sent to you. After such time, if you wish for us to send you paper copies of any such documents from our office to you, you will be charged a \$0.00 per-page fee. You may request delivery of such paper copies from us by following the procedure described below.

Withdrawing your consent

If you decide to receive notices and disclosures from us electronically, you may at any time change your mind and tell us that thereafter you want to receive required notices and disclosures only in paper format. How you must inform us of your decision to receive future notices and disclosure in paper format and withdraw your consent to receive notices and disclosures electronically is described below.

Consequences of changing your mind

If you elect to receive required notices and disclosures only in paper format, it will slow the speed at which we can complete certain steps in transactions with you and delivering services to you because we will need first to send the required notices or disclosures to you in paper format, and then wait until we receive back from you your acknowledgment of your receipt of such paper notices or disclosures. Further, you will no longer be able to use the DocuSign system to receive required notices and consents electronically from us or to sign electronically documents from us.

All notices and disclosures will be sent to you electronically

Unless you tell us otherwise in accordance with the procedures described herein, we will provide electronically to you through the DocuSign system all required notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you during the course of our relationship with you. To reduce the chance of you inadvertently not receiving any notice or disclosure, we prefer to provide all of the required notices and disclosures to you by the same method and to the same address that you have given us. Thus, you can receive all the disclosures and notices electronically or in paper format through the paper mail delivery system. If you do not agree with this process, please let us know as described below. Please also see the paragraph immediately above that describes the consequences of your electing not to receive delivery of the notices and disclosures electronically from us.

How to contact Morrison and Foerster LLP:

You may contact us to let us know of your changes as to how we may contact you electronically, to request paper copies of certain information from us, and to withdraw your prior consent to receive notices and disclosures electronically as follows:

To contact us by email send messages to: johnmaglio@mofo.com

To advise Morrison and Foerster LLP of your new email address

To let us know of a change in your email address where we should send notices and disclosures electronically to you, you must send an email message to us at rgonzalez@mofo.com and in the body of such request you must state: your previous email address, your new email address. We do not require any other information from you to change your email address.

If you created a DocuSign account, you may update it with your new email address through your account preferences.

To request paper copies from Morrison and Foerster LLP

To request delivery from us of paper copies of the notices and disclosures previously provided by us to you electronically, you must send us an email to johnmaglio@mofo.com and in the body of such request you must state your email address, full name, mailing address, and telephone number. We will bill you for any fees at that time, if any.

To withdraw your consent with Morrison and Foerster LLP

To inform us that you no longer wish to receive future notices and disclosures in electronic format you may:

- i. decline to sign a document from within your signing session, and on the subsequent page, select the check-box indicating you wish to withdraw your consent, or you may;
- ii. send us an email to johnmaglio@mofo.com and in the body of such request you must state your email, full name, mailing address, and telephone number. We do not need any other information from you to withdraw consent.. The consequences of your withdrawing consent for online documents will be that transactions may take a longer time to process..

Required hardware and software

The minimum system requirements for using the DocuSign system may change over time. The current system requirements are found here: <https://support.docusign.com/guides/signer-guide-signing-system-requirements>.

Acknowledging your access and consent to receive and sign documents electronically

To confirm to us that you can access this information electronically, which will be similar to other electronic notices and disclosures that we will provide to you, please confirm that you have read this ERSD, and (i) that you are able to print on paper or electronically save this ERSD for your future reference and access; or (ii) that you are able to email this ERSD to an email address where you will be able to print on paper or save it for your future reference and access. Further, if you consent to receiving notices and disclosures exclusively in electronic format as described herein, then select the check-box next to 'I agree to use electronic records and signatures' before clicking 'CONTINUE' within the DocuSign system.

By selecting the check-box next to 'I agree to use electronic records and signatures', you confirm that:

- You can access and read this Electronic Record and Signature Disclosure; and
- You can print on paper this Electronic Record and Signature Disclosure, or save or send this Electronic Record and Disclosure to a location where you can print it, for future reference and access; and
- Until or unless you notify Morrison and Foerster LLP as described above, you consent to receive exclusively through electronic means all notices, disclosures, authorizations, acknowledgements, and other documents that are required to be provided or made available to you by Morrison and Foerster LLP during the course of your relationship with Morrison and Foerster LLP.